

INNS OF COURT

PAINTED
BY GORDON HOME
DESCRIBED
BY CECIL HEADLAM



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THE INNS OF COURT

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**OLD HALL AND OLD SQUARE FROM THE
TOWER OF THE NEW HALL, LINCOLN'S INN**

On the left is the Old Hall, dating from the reign of Edward VI. (circa 1555), and the scene of the Chancery case of Jarndyce v. Jarndyce in 'Bleak House.' Beyond the Hall are the red roofs of Old Square, and in the distance the domes of the Central

Criminal Court and St. Paul's, the latter appearing
over a portion of the buildings of the Record Office.

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LONDON
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1909

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THE INNS OF COURT

CHAPTER I

ORIGIN OF THE INNS

THE features of every ancient City are marked with the wrinkles and the scars of Time. The narrow lanes, the winding streets, the huddled houses, the blind alleys form, as it were, the furrows upon her aged countenance. They contribute enormously to the charm and beauty of her riper years, for they point to a life rich in experience and varied reminiscences. But, like other wrinkles, they have their drawbacks. As the bottle-neck of Bond Street, which blocks the traffic half the season, is the direct topographical result of the river which once flowed thereabouts, so the boundary of the property of the Knights Templars, marked by the Inner and Middle Temple Gateways, imposes the southern limit of Fleet Street, opposite to Street's Gothic pile of Law Courts and to Chancery Lane. Hence the narrowness of that famous street, and the consequent congestion of traffic on the main route to the City. Then come the Beauty Doctors, who smooth out the old wrinkles, and broaden the ancient, narrow lines, which Time has cut so deeply on the face of the Town. The old landmarks are removed, and Wren's gateways and buildings must disappear in order that broad, straight paths be driven right to the sanctuary of Business.

And yet the old influences and the effects of historic movements and historic events persist, and will persist. It may seem far-fetched to say that everyone whose business or pleasure takes him to Fleet Street is directly subject to the influence of the Crusades. Yet it is so. But for those strange wars of mingled religious enthusiasm and commercial aggression, there would have been no Templars, and had there been no Templars, the whole nomenclature and topographical arrangement of this part of London would have been different; for the Societies of Lawyers, who succeeded to their property, succeeded, of course, to the boundaries of the messuages, as to the Round Church of the Knights Templars.

Of the Temple, and the Templars, and their successors, we shall deal more at length in their proper places. It will be convenient first to consider what these Societies of Lawyers were and are, how they arose, and why

they settled in the particular vicinity wherein they have chosen to set their 'dusty purlieus.'

William the Conqueror had established the Law Courts in his Palace. The great officers of State and the Barons were the Judges of this King's Court—*Aula Regis*—which developed into three distinct divisions: King's Bench and Common Pleas, under a Chief Justice, and Exchequer, where a Chief Baron presided to try all causes relating to the royal revenue. It was the business of a Norman King to ride about the country settling the affairs of the realm, which was his estate, and administering justice. The great Court of Justice, therefore, naturally accompanied the King in all his progresses, and suitors were obliged to follow and to find him, travelling for that purpose from all parts of the country to London, to Exeter, or to York.

It was a system that was found 'cumbersome, painful, and chargeable to the people,' as Stow^[1] puts it, and one of the provisions of Magna Charta accordingly enacted that the Court of Common Pleas should no longer follow the King, but be held in some determined place. The place determined was Westminster. The Court was held, though not at first, in the famous Hall, which William Rufus had erected and Richard II. rebuilt.

It was to be expected that the fixing of the Courts would be followed by the settlement of 'Students in the Law and the Ministers of each Court,'^[2] as Dugdale has it, somewhere near at hand. Advocates had been drawn at first from the ranks of the clergy. This was natural enough, seeing that they formed the only educated class of the day. *Nullus clericus nisi causidicus*, the historian complains. It was equally natural that in the course of time objection should be taken to the spectacle of the professors of Christianity wrangling at the Bar, and monopolizing the power born of legal knowledge. Dugdale notes the first instance of an attempt to check their presence in the Courts as occurring at the beginning of the reign of Henry III. The clergy were at length excluded from practising in the Civil Courts, and a privileged class of lay Lawyers came into existence. Edward I. specially appointed the Justices of the Court of Common Pleas to 'ordain from every County certain Attorneys and Lawyers of the best and most apt for their learning and skill, who might do service to his Court and People, and who alone should follow his Court and transact affairs therein.'

And at this date, or shortly after it, we may assume that ‘students in the University of the Laws’^[3] began to congregate in Hostels, or Inns, of Court, in order to study as ‘apprentices’ in the Guild of Law. For, as at Oxford or Cambridge, an Inn, or Hostel of residence, was the natural necessary requirement of such students when they began to come in numbers to sit at the feet of their teachers, the Masters of Law. The earliest mention of an Inn for housing apprentices of the Law occurs in 1344, in a demise from the Lady Clifford of the house near Fleet Street, called Clifford’s Inn, to the *apprenticiis de banco*, the lawyers belonging to the Court of Common Pleas. And Thavie’s Inn was similarly leased from one John Thavie, ‘a worthy citizen and armourer,’ of London, who died in 1348. In such hostels, leased to the senior members, voluntary associations, or guilds of teachers and learners of law would congregate, and gradually evolve their own regulations and customs.

Other references occur to the ‘apprentices in hostels’ during this same reign (Edward III.). And from about this date the four Inns of Court—Gray’s Inn, Lincoln’s Inn, and the Inner and Middle Temple—‘which are almost coincident in antiquity, similar in constitution, and identical in purpose,’^[4] begin to emerge from the mists of the past.

It is noticeable that all the Inns of Court and Chancery cluster about the borders of the City Ward called Faringdon Without, and were once placed, as old Sir John Fortescue observed, ‘in the suburbs, out of the noise and turmoil of the City.’

The Lawyers were thus conveniently placed between the seat of judicature at Westminster and the centre of business in the City of London, and secured the advantage of ‘ready access to the one and plenty of provisions in the other.’ In the wall which bounds the Temple Gardens upon the modern Embankment of the Thames is set a stone which marks the western boundary of the Liberty of the City and the spot where Queen Victoria received the City Sword (1900); the old Bar of the City, which took its name from the Temple, and



MIDDLE TEMPLE LANE

THE overhanging buildings just inside Sir Christopher Wren's Gateway in Fleet Street (see [p. 67](#)).

Holborn Bar, marked the limit farther north. It is to be remembered that this famous Temple Bar did not mark the boundary of the City proper, but only of the later extension known as the Liberty of the City, and the Temple buildings within the Bar were yet without the narrower boundary of the City.

Temple Bar consisted originally of a post, rails, and chain. Next, a house of timber was erected across the street, with a narrow gateway and entry on the south side under the house.^[5] This was superseded about 1670 by the stone gate-house, designed by Christopher Wren, which was the scene of so many historic pageants when Lord Mayors have received their Sovereigns,

and presented to them the keys of the City. It was here, notably, that the Lord Mayor delivered the City sword to good Queen Bess when she rode to St. Paul's to return thanks for the victory over the Spanish Armada. Hereon, as upon London Bridge, the heads of famous criminals or rebels were stuck to warn the passers-by; and in the pillory here stood Titus Oates and Daniel de Foe—the latter for publishing his scandalous and seditious pamphlet, 'The Shortest Way with the Dissenters.' The citizens, however, pelted De Foe, not with rotten eggs, but with flowers. This noble gate-house was removed when the Strand was widened and the new Law Courts erected. It was rebuilt at Meux Park, Waltham Cross, and its original site is marked by a column surmounted by a griffin, representing the City arms (1880).

It would appear that the Lawyers in choosing sites just outside the City boundaries for the Inns of their University were further influenced by the ordinance of Henry III. (1234), which enjoined the Mayor and Sheriffs to see to it that 'no man should set up Schools of Law within the City.' The object of this prohibition is a matter of dispute; Stubbs, for instance, maintaining that it applied to Canon Law, and others^[6] that only Civil Law was intended, the object being to confine the clergy to the Theology and Canon Law, which seemed more properly their province.

By the middle of the fourteenth century, then, we find the students of what we may call a London University of National Law established in their Inns or Hostels, which clustered about the boundaries of the City, from Holborn to Chancery Lane, from Fleet Street to the River. The Schools of Law, of which this University was composed, were distinctively English, and the University itself developed upon the peculiarly English lines of a College system, closely similar to that of Oxford and Cambridge. The Inns of Court and Chancery were the Colleges of Lawyers in the London University of Jurisprudence.

Here dwelt, and here were trained for the Courts those guilds or fraternities of Lawyers, according to a scheme of oral and practical education which they gradually evolved. Trade Guilds were the basis of medieval social life, and medieval Universities were, in fact, nothing more nor less than Guilds of Study.^[7] The four Inns of Court survive to-day as instances of the old Guilds of Law in London, and the lawyers, in their relations with the Courts, the public and solicitors, seem to represent still a highly organized Trade Union.

The Inns of Court, then, have always exhibited, and still retain, the salient features of a University based upon the procedure of the medieval Guild. Just as, in other Universities, no one was allowed to teach until he had served an apprenticeship of terms, and, having been duly approved by the Masters of their Art, had received his degree or diploma of teaching; just as no butcher or tailor was allowed to ply his trade until he had qualified himself and had been duly approved by the Masters of his Guild, so in the Masters of these Guilds of Law was vested the monopoly of granting the legal degree, or call to practise at the Bar, to apprentices who had served a stipulated term of study and passed the ordeal of certain oral and practical preparation. And as though to emphasize beyond dispute the Collegiate nature of these Societies, we find that each one of them made haste to provide itself with buildings and surroundings, which still present to us, in the midst of the dirt and turmoil of busy London, something of the charm and seclusion and self-sufficiency of an Oxford College, with its Hall and Chapel, its residential buildings, its Library, and grassy quadrangles, and its Gateway to insure its privacy.

The same system of discipline, of celibate life, of a common Hall, of residence in community, and of compulsory attendance at the services of the Church, which marked the ordinary life of a medieval University, was repeated at the Inns of Court.

And the kind of Collegiate Order into which they shaped themselves was also shown by the several grades existing within the Societies themselves. The word 'barrister' itself perpetuates the ancient discipline of the Inns, where the dais of the governing body, or Benchers, corresponding to the High Table of an Oxford College, was separated by a bar from the profane crowd of the Hall. The Halls of the Inns were not only the scenes of that business of eating and drinking, the 'dinners' to which so much attention was devoted, and by which the students 'eat their way to the Bench,' but also the centres of the social life and educational system of these Guilds.

Dugdale gives at length the degrees of Tables in the Halls of the Inns—the Benchers' Tables, the tables of the Utter Barristers, the tables of the Inner-Bar, and the Clerks' Commons, and, without the screen, the Yeoman's Table for Benchers' Clerks.

The *Utter-* or *Outer Barristers* ranked next to the Benchers. They were the advanced students who, after they had attained a certain standing, were

called from the body of the Hall to the first place outside the bar for the purpose of taking part in the *moots* or public debates on points of law. The *Inner Barristers* assembled near the centre of the Hall.

‘For the space of seven years or thereabouts,’ says Stow, ‘they frequent readings, meetings, boltinges, and other learned exercises, whereby growing ripe in the knowledge of the lawes, and approved withal to be of honest conversation, they are either by the general consent of the Benchers or Readers, being of the most auncient, grave and iudiciall men of everie Inn of the Court, or by the special priviledge of the present Reader there, selected and called to the degree of Utter Barristers, and so enabled to be Common Counsellors, and to practise the law, both in their Chambers, and at the Barres.’

Readers, to help the younger students, were chosen from the Utter Barristers. From the Utter Barristers, too, were chosen by the Benchers ‘the chieftest and best learned’ to increase the number of the Bench and to be Readers there also. After this ‘second reading’ the young Barrister was named an Apprentice at the Law, and might be advanced at the pleasure of the Prince, as Stow says, to the place of Serjeant, ‘and from the number of Serjeants also the void places of Judges are likewise ordinarily filled.’ ‘From thenceforth they hold not any roome in those Innes of Court, being translated to the Serjeants’ Innes, where none but the Serjeants and Judges do converse’ (Stow, i., pp. 78, 79).

Upon the Benchers, or Ancients, devolved the government of the Inn, and from their number a treasurer was chosen annually.

Readings and *Mootings* would seem to have been the chief forms of legal training provided by the Societies, and they may be said roughly to represent the theoretical and practical side of their system of education. As to Readings, the procedure in general was as follows: Every year the Benchers chose two Readers, who entered upon their duties to the accompaniment of the most elaborate ceremonial and feasting. Then upon certain solemn occasions it was the duty of one of them to deliver a lecture upon some statute rich in nice points of law. The Reader would first explain the whole matter at large, and after summing up the various arguments bearing on the case, would deliver his opinion. The Utter Barristers then discussed with him the points that had been raised, after which some of the Judges and Serjeants present gave their opinions in turn.^[8]

I have referred to the *feasting* that attended the appointment of the Readers. We have seen that medieval Universities were Guilds of Learning, scholastic fraternities of masters or students, who framed rules and exacted compliance with certain tests of skill, precisely in the same way as did the masters and apprentices of ordinary manual trades. It was a universal feature of the Guilds, whether of manual crafts or of Learning, that the newly-elected Master was expected to entertain the Fraternity to which he had been admitted, or in which he had just been raised to the full honours of Mastership. And just as at Oxford, Cambridge, or Paris, a Master was obliged to give a feast, or even some more sumptuous form of hospitality, such as a tilt or tourney, upon the attainment of his degree, so at the Inns of Court the newly-appointed Reader was obliged by custom to entertain the Benchers and Barristers in Hall. It was the general experience everywhere that such entertainments tended to increase in splendour and costliness, and to be a severe tax upon the resources of the new Masters, and a check, consequently, upon the number of aspirants. So here the excessive charges attending Readers' feasts led to a decrease in the Readers, which was regarded as tending to 'an utter overthrow to the learning and study of the Law,' and the Justices of both Benches accordingly issued an order insisting upon their observance, and at the same time regulating the amount that a Reader might expend upon 'diet in the Hall.'

Moots were a kind of rehearsal of real trials at the Bar. They were cases argued in Hall by the Utter and Inner Barristers before the Benchers.

When the horn had blown to dinner, says Dugdale, a paper containing notice of the Case which was to be argued after dinner was laid upon the salt. Then, after dinner, in open Hall, the mock-trial began. An Inner Barrister advanced to the table, and there propounded in Law-French—an exceedingly hybrid lingo—some kind of action on behalf of an imaginary client. Another Inner Barrister replied in defence of the fictitious defendant, and the Reader and Benchers gave their opinions in turn.

As in other Universities, other subjects besides Law were included in the educational curriculum.

'Upon festival days,' says Fortescue, who wrote in the seventeenth century, 'after the offices of the Church are over, they employ themselves in the study of sacred and profane history; here everything which is good and virtuous is to be learned, all vice is discouraged and banished. So that

knights, barons, and the greatest nobility of the kingdom often place their children in those Inns of Court, to form their manners, and to preserve them from the contagion of vice.'

As time went on, in fact, the Inns of Court gradually changed their character, and became a kind of aristocratic University, where many of the leading men in politics and literature received a general training and education.

And whilst Oxford and Cambridge, essentially more democratic, drew their students chiefly from the yeoman and artisan class, the Inns of Court became the fashionable colleges for young noblemen and gentlemen.

Throughout the Renaissance, indeed, the Inns of Court men were the leaders of Society, and the Gentlemen of the Long Robe laid down the law, not only upon questions of politics, but upon points of taste, of dress, and of art.

In the reign of Henry VI. the four Inns of Court contained each 200 persons, and the ten Inns of Chancery 100 each. The expense of maintaining the students there was so great that 'the sons of gentlemen do only study the Law in these hostels.'

'There is scarce an eminent lawyer who is not a gentleman by birth and fortune,' says Fortescue; 'consequently they have a greater regard for their character and honour.'

And John Ferne, a student of the Inner Temple, wrote,^[9] in 1586, especially commending the wisdom of the regulation that none should be admitted to the Houses of Court except he were a gentleman of blood, since 'nobleness of blood, joyned with virtue, compteth the person as most meet to the enterprizing of any publick service.'

Shortly after the accession of James I., a royal mandate denied admission to a House of Court to anyone that was 'not a gentleman by descent.'

'The younger sort,' says Stow (1603), 'are either gentlemen, or the sons of gentlemen, or of other most welthie persons.'

It is one of the almost unvarying features of a Guild that a fixed period of apprenticeship must be served before admission to be a Master. The term of apprenticeship in the Inns of Court has varied with each Society, and in different epochs.

In June, 1596, the period of probation which must be spent by a student in attending preliminary exercises in the Inns, before graduating in Law, was limited by an ordinance of the Judges and Benchers to seven years. Before that date the 'exercises' necessary for 'a call to the Bar' occupied eight years, during which twelve grand moots must be attended in one of the Inns of Chancery, and twenty petty moots in term time before the Readers of one of the greater Societies.

But in 1617, in a 'Parliament' of the Benchers of the Inner Temple, it was ordained that 'no man shall be called to the Bar before he has been full eight years of the House.' Nor was lapse of time to be considered sufficient without proportionate acquisition of learning. Only 'painful and sufficient students' were to be called, who had 'frequented and argued grand and petty moots in the Inns of Chancery, and brought in moots and argued clerks' common cases within this House.' A proviso against outside influence was added by the injunction that 'anyone who procured letters from any great person to the Treasurer or Benchers in order to be called to the Bar, should forever be disqualified from receiving that degree within that House.'

In the seventeenth century, however, 'readings' and 'mootings' alike fell into desuetude, and official instruction practically disappeared. The Inns became merely formal institutions, residence within the walls of which, indicated by the eating of dinners, was alone necessary for admittance to the Bar. The loss of the Law was the gain of Letters. A new class of students, educated in literature and politics, and highly born, were bred up to take their place in the direction of affairs and the criticism of writers.

'When the "readings" with their odds and ends of law-French and Latin went out into the darkness of oblivion, polite literature stepped into their place. "Wood's Institutes" and "Finch's Law" shared a divided reign with Beaumont and Fletcher, Butler and Dryden, Congreve and Aphra Behn. The "pert Templar" became a critic of *belles lettres*, and foremost among the wits, whereas his predecessors had been simply regarded by the outer world as a race that knew or cared for little else save black-letter tomes and musty precedents. Polite literature ultimately came to clothe the very forms of law with an elegance of diction not dreamed of in the philosophy of the older jurists, and thus deprived an arduous study of one of its most repellent features.'

[\[10\]](#)

Another cause which greatly contributed to the brilliant record of the Inns as homes of Literature and the Drama, as well as of the Law, was the rule which, up till quite a few years ago, compelled Irish Law-students to keep a certain number of terms in London prior to 'call' at the King's Inn, Dublin. Daniel O'Connell, at Lincoln's Inn, Curran, Flood, Grattan, the orators; Tom Moore, the poet, and Richard Brinsley Sheridan, the dramatist, at the Temple, are among the later 'Wild Irishmen' who owed something to the London Inns in accordance with this rule, and rewarded the Metropolis with their eloquence and wit.

In modern times the need of general regulations as to qualification by the keeping of terms and of examinations as a guarantee of competency has been recognized.

After over 200 years of survival as an obsolete office, Readerships have been revived again to perform their proper functions. 'A council of eight Benchers, representing all the Inns of Court, was appointed to frame lectures "open to the members of each society," and five Readerships were established in several branches of legal science (1852). Attendance at these lectures was made compulsory, unless the candidate preferred submitting to an examination in Roman and English Law and Constitutional History. Three years



INTERIOR OF THE MIDDLE TEMPLE HALL

THE date of its erection (1570) is in the stained-glass window on the right. In this Hall Queen Elizabeth may have danced with Sir Christopher Hatton, and here Shakespeare's 'Twelfth Night' was first performed (see [pp. 75-78](#)).

later, a Royal Commission advised the establishment of a preliminary and final examination for all Bar students, together with the formation of a Law University with power to confer degrees in Law. The suggestions of the Commission were only partially acted upon, and then not till 1870, when Lord Chancellor Westbury succeeded in getting a preliminary examination in Latin and English subjects adopted and the final examination made obligatory.'^[11]

And it is pleasant to note, too, that about the same time (1875) the custom of the ancient mootings, so useful for promoting ready address and sound knowledge of the Law among the aspirants to the Bar, was revived at Gray's Inn.

The discipline which the Inns of Court enforced upon their students corresponded in general to that exercised by an Oxford or Cambridge College.

Fines and 'putting out of Commons' were the usual forms of punishment, though the power of imprisoning 'gentlemen of the House' for wilful misdemeanour and disobedience 'was sometimes exercised by the Masters of the Bench.'^[12]

Attendance at Divine Service was insisted upon, and the wearing of long beards forbidden. A beard of over three weeks' growth was subject to a fine of 20s. A student's gown and a round cap must be worn in Hall and in Church, and gentlemen of these Societies were forbidden to go into the City in boots and spurs, or into Hall with any weapon except daggers. They were forbidden to keep Hawkes, or to ill-treat the Butlers. They were not allowed to play shove-groat. In the reign of Elizabeth, by an order of the Judges for all the Inns of Court, the wearing of a sword or buckler, of a beard above a fortnight's growth, or of great hose, great ruffs, any silk or fur, was equally forbidden, and no Fellow of these Societies was allowed to go into the City or suburbs 'otherwise than in his gown according to the ancient usage of the gentlemen of the Inns of Court,' upon penalty of expulsion for the third transgression. The wearing of gowns of a sad colour was enjoined by Philip and Mary, and long hair, or curled, was forbidden as surely as white doublets and velvet. These are echoes of the ordinary sumptuary laws of the period.

'There is both in the Inns of Court and the Inns of Chancery,' says Fortescue, 'a sort of an Academy or Gymnasium fit for persons of their station, where they learn singing and all kinds of music, dancing and Revels.' These forms of recreation constituted, indeed, the lighter side of the educational and social life of the Inns.

All-Hallowe'en, Candlemas, and Ascension Day, were the grand days for 'dancing, revelling, and musick,' when, before the Judges and Benchers seated at the upper end of the Hall, the Utter Barristers and Inner Barristers performed 'a solemn revel,' which was followed by a post-revel, when

‘some of the Gentlemen of the Inner-Barr do present the House with dancing.’^[13] On occasions of more particular festivity, even so great dignitaries as the Lord-Chancellor, the Justices, Serjeants, and Benchers, would dance round the coal fire which blazed beneath the louvre in the centre of the Hall, whilst the verses of the Song of the House rang out in rousing chorus, like the song of the Mallard of All Souls, at Oxford.

Dugdale gives the order of the Christmas ceremonies in delightful detail: ‘At night, before supper, are revels and dancing, and so also after supper, during the twelve daies of Christmas. The antientest Master of the Revels is after dinner and supper to sing a carol or song, and command other gentlemen then there present to sing with him and the company.’ On Christmas Day ‘Service in the Church ended, the gentlemen presently repair into the Hall, to breakfast with Brawn, Mustard and Malmsey,’ and so forth. The good-fellowship and the long evenings of Christmastide had natural issue in the production of plays and masques in these Halls, by students who have always been in close touch with the drama. It is not surprising, therefore, that one of Shakespeare’s plays was written for Twelfth Night, and first produced by the students of Law, at the Temple, for this merry and convivial season (see [Chapter IV.](#)).

On St. Stephen’s Day the Lord of Misrule was abroad, and at dinner and afterwards games and pageants were performed about the fire that burned in the centre of the Hall, and whence the smoke escaped through the open chimney in the roof. For instance: ‘Then cometh in the Master of the Game apparelled in green velvet, and the Ranger of the Forest also, in a green suit of satten, bearing in his hand a green bow and divers arrows, with either of them a hunting horn about their necks; blowing together three blasts of Venery, they pace round about the fire three times.’ They make obeisance to the Lord Chancellor, and then ‘a Huntsman cometh into the Hall, with a Fox and a Purse-net, with a Cat, both bound at the end of a staff, and with them nine or ten couple of Hounds. And the Fox and Cat are by the Hounds set upon, and killed beneath the fire’ (Dugdale).

The Post Revels, we are told, were ‘performed by the better sort of the young gentlemen of the Societies, with Galliards, Corrantoes, or else with Stage-plays.’ Masques were frequently performed by the members of the Inns, and Sir Christopher Hatton first obtained Queen Elizabeth’s favour by his appearance in a masque prepared by the lawyers.

Besides the solemnities of Christmas and Readers' Feasts, the *Antique Masques and Revelries*, as Wynne in his 'Eunomus' observes (ii., p. 253), 'introduced upon extraordinary occasions, as to the grandeur of the preparations, the dignity of the performers and of the spectators, at which our Kings and Queens have condescended to be so often present, seem to have exceeded every public exhibition of the kind.'

One famous masque was presented by the four Inns of Court to Charles I. and Henrietta (1633), which cost some £24,000. So pleased were the King and Queen with 'the noble bravery of it,' and the answer implied in it to Prynne's 'Histrio Mastix,' that they returned the compliment by inviting 120 gentlemen of the Inns of Court to the masque at Whitehall on Shrove Tuesday.

If these and other old customs have fallen into abeyance, the traditional spirit of sociability is far from being dead, and on 'Grand Nights' their old habit of hospitality is gratefully revived by the Inns of Court in favour of famous men, who are honoured as their guests.

CHAPTER II

THE KNIGHTS TEMPLARS AND THEIR SUCCESSORS

ABOUT the year 1118 certain noblemen, horsemen, religiously bent, bound themselves by vow in the hands of the Patriarch of Jerusalem, 'to serve Christ after the manner of Regular Canons in chastity and obedience, and to renounce their owne proper willes for ever.'

The Order was founded by a Burgundian Knight who had mightily distinguished himself at the capture of Jerusalem. Hugh de Paganis was his name. Only seven of his comrades joined the Brotherhood at first.

Their first profession was to safeguard pilgrims on their way to visit the Holy Sepulchre, and to keep the highways safe from thieves. A rule and a white habit were granted to this pilgrims' police by Pope Honorius II. Crosses of red cloth were afterwards added to their white upper garments, and earned them the familiar title of the Red-Cross Knights. And for their first banner they adopted the Beaucéant, the upper part of which was black, signifying, it is said, death to their enemies; the lower part white, symbolizing love for their friends.

Their services were rewarded and their efforts encouraged by Baldwin, King of Jerusalem, who granted them quarters in his palace, within the sacred enclosure of the Temple on Mount Moriah.

Hence they came to be known as the Knights of the Temple, or Knights Templars. For Baldwin's Palace was formed partly of a building erected by the Emperor Justinian, partly of a mosque built by the Caliph Omar, upon the site of Solomon's Temple.

The Order increased rapidly in popularity. It spread over Europe and the East, accumulating property and privileges. It was most highly organized, and at its head was a Grand Master, who resided at first in Jerusalem. A visit paid by the Founder, Paganis, to Henry I. in Normandy led to the establishment of settlements in England. Cambridge, Canterbury, Warwick, and Dover are mentioned amongst others by Stow. Temples, 'built after the form of the Temple near to the Sepulchre at Jerusalem,' were erected in many of the chief towns in England. And this circular shape of church,

modelled upon the Holy Sepulchre in accordance with a prevailing love of imitating the holy places at Jerusalem, as, for instance, the Stations of the Cross, was the design adopted for the Templars' London Churches. The date of their first settlement in London is not certain, but about the middle of the twelfth century they are said to have established themselves in Chancery Lane, between Southampton Buildings and Holborn Bars. Their property, which was afterwards to be known as the Old Temple, embraced part of the site of what is now Lincoln's Inn. The foundations of a round church were discovered in 1595 near the site of the present Southampton Buildings.

But it was not long before they moved to a pleasanter site, to the 'most elegant spot in the Metropolis,' as Charles Lamb declared. For, about the year 1180, the Templars acquired a large meadow sloping down to the broad River Thames, on the south side of Fleet Street, and stretching from Whitefriars on the east to Essex Street on the west. Here they built themselves a lordly dwelling-place and a splendid Church, again a round Church upon the same sacred model, part of which still stands. Across the way lay their recreation ground. For the site of the modern Law Courts—that Gothic pile which we can never wholly see, and in which Street just failed to design a truly complete, effective, and absolute building, and failed entirely to produce a building practically suited for its purpose—was known then as Fitchett's Field. The scene of the labours of the Lawyers, who have succeeded to their inheritance, was once the tilting-ground of the Knights Templars.

Five years later, in 1185, in the presence of Henry II. and all his Court, the dedication of the Round Church of the 'New Temple' took place. The ceremony was performed by Heraclius, Patriarch of Jerusalem.

The surroundings of the 'New Temple,' when Henry graced it upon this occasion with his royal presence, were extraordinarily different even from the aspect they wore a century later.

Fleet Street itself was not yet in existence. Its neighbourhood was a mere marsh, and Fleet Ditch, at the bottom of Ludgate Hill, was spanned by no bridge. The two highways to the City, when the Templars first settled at this spot, were first and foremost the River, and, secondly, by land, the old Roman Way through Newgate, up Holborn Hill to Holborn Bars, striking southwards from St. Mary-le-Strand, past the Roman Bath, to the River. But seventy years later a new main route to the City was constructed, which

passed by the boundary of the Templars' plot. For the marshes were drained, a bridge was thrown across the Fleet, and the 'Street of Fleetbrigge' came into existence.

The grandeur of the ceremony of dedication and the splendour of the Templars' Church itself indicate clearly enough the importance of the 'New Temple' as the headquarters of the Order in England, and also the waxing wealth and power of the Order itself.

For these 'fellow-soldiers of Christ,' as they termed themselves, 'poor and of the Temple of Solomon,' had bound themselves to a vow of poverty, but they soon changed their allegiance to Mammon. The heraldic sign of the Winged Horse, which is now the well-known badge of the Inner Temple, and meets the eye at every turn as we pass through the narrow lanes and devious courts of which their property is composed, recalls and typifies the changing purposes of the ancient Templars and their successors. For the old crest of the Templars was a horse carrying two men, which probably was intended to suggest their profession of helping Christian pilgrims upon their road, but in which some saw an emblem of humiliation and of a vow to poverty so strict that they could afford but one horse for two knights. Whatever its significance, the badge was changed with changing circumstances. The two riders were converted into two wings, and the horse transformed into a Pegasus—Pegasus argent on a field azure—upon the occasion of some Christmas Revels and pageantry held at the Inner Temple in honour of Lord Robert Dudley, 1563, when it appears that this emblem, typical of the soaring ambitions of the new Society, was adopted by that Inn. The Middle Temple appropriated another badge, which the Templars had assumed in the thirteenth century. This was the sign of the *Agnus Dei*, the Holy Lamb, with the banner and nimbus, which figures so prominently upon the buildings of this Inn. These heraldic signs of Winged Horse and Holy Lamb should be encouraging to the young litigant, who, in his first experience of the Law, may be led to expect 'justice without guile and law without delay' from these legal fraternities, supposing that, in the words of the witty skit,

'The Lamb sets forth their innocence,
The Horse their expedition.'

The Order of Templars followed the almost invariable practice of such Institutions in accumulating treasure at the expense of the devout, and they

succeeded more strikingly than most. By the beginning of the fourteenth century they had long abandoned all pretence to the performance of their original duties, but had at least earned the reputation of being exceedingly wealthy. The Treasury, indeed, of these devotees of Poverty was a prominent feature of their House, and they seem to have acted as Bankers, to whom the charge of money and jewels was entrusted in those troublous times.

Here King John stored his Royal Treasury; here he often lodged, seeking refuge from his Barons; and here he passed the night before he signed the Great Charter at Runnymede. Henry III. followed his example in endowing the Temple with manors and privileges, whilst from his guardian, Hubert de Burgh, Earl of Kent, whom he had imprisoned in the Tower, he extracted all the Treasure that careful nobleman had committed to the custody of the Master of the Temple.

Hither came King Edward I., and under pretence of seeing his mother's jewels there laid up, this royal burglar broke open the coffers of certain persons who had likewise lodged their money here, and took away to the value of a thousand pounds.

Of the Templars' Treasure House nothing now remains, but the Treasurer survives, one of the chief officials of the Inn, whose duties correspond roughly to those of a Bursar of an Oxford College.

The laying up of treasure upon earth is always apt to provoke the predatory instinct, even in the breast of a Chancellor of the Exchequer, and to the motive of greed was added, in the case of the Templars, the unanswerable charge that they had done nothing for many years to redeem their vows to succour Jerusalem or protect pilgrims. They were also accused, not without reason, of indulging in odious vices, and of being a masonic society devoted to the propagation of some heresy. The rival fraternity of military Knights, the Order of St. John, who had settled themselves in the rural seclusion of Clerkenwell, envied them. The Pope himself turned against them. Philip le Bel, who seems to have been the leading spirit in a general attack, dealt cruelly with the Order in France, causing the chief Members of it to be put to death. In England Edward II. contented himself with confiscating their possessions. The Order was abolished (1312), and, by decree of the Pope,



LAMB BUILDING FROM PUMP COURT, TEMPLE
A GLIMPSE of the Temple Church appears on the left.

confirmed by the Council of Vienne, all their property was granted to the Knights Hospitallers, the rival Order of St. John of Jerusalem. Edward, however, at first ignored their claims. He granted that part of the Templars' domain which was not within the City boundaries, and which is now represented by the Outer Temple, to Walter de Stapleton, Bishop of Exeter. It was thenceforth known indifferently as Stapleton Inn, Exeter Inn, or the Outer Temple. It passed by purchase to Robert Devereux, Earl of Essex. Essex House was then erected, which, with its gardens, covered the site now occupied by Essex Court, Devereux Court, and Essex Street, and the buildings that abut upon the Strand.

The Gate at the end of Essex Street, with the staircase to the water, is the only portion of the old building that survives. The Outer Temple was never occupied by any College or Society of Lawyers. But the history of the portion of the Templars' property which lay within the liberties of the City, indicated by Temple Bar, was destined to be very different. This property was granted by Edward II. to Thomas, Earl of Lancaster. On his rebellion

the estate reverted to the Crown, and was granted, in 1322, to Aymer de Valence, Earl of Pembroke. He died without issue, and Edward bestowed the property upon his new favourite, Hugh le Despencer, upon whose attainder it passed again to the Crown. At length the claim of the Knights Hospitallers was admitted. For in 1324 Edward II. assigned to them 'all the lands of the Templars,' except, of course, some nineteen-twentieths which King and Pope 'touched' in transference. The King finally made to them an absolute grant of the whole Temple, apart from the Outer Temple, in consideration of £100 contributed for the wars.

What happened next it is impossible, owing to lack of documentary evidence, with certainty to say. This absence of evidence is partly due, no doubt, to the behaviour of Wat Tyler's men in 1381, as quoted by Stow. For they not only sacked and burned John of Gaunt's noble palace, the neighbouring Savoy, but also 'destroyed and plucked down the houses and lodgings of the Temple, and took out of the Church the books and records that were in Hutches of the apprentices of the law, carried them into the streets and burnt them.' And later records must have disappeared in other ways, notably in the fire of 1678. Be that as it may, the fact with which everybody is familiar is that the Temple property passed into the occupancy, and finally into the possession, of two Societies of Lawyers, who existed, and still exist, on terms of absolute equality, neither taking precedence of the other, and both sharing equally the Round Church of the Knights Templars. These two Societies or Inns are called after the property of the Knights within the boundaries of the City, which they divided between them—the Inner and the Middle Temple.

Now, the first discoverable mention of the Temple as an abode of lawyers occurs in Chaucer's 'Prologue to the Canterbury Tales' (c. 1387). Geoffrey Chaucer himself, a fond tradition would have us believe, dwelt for a while in these Courts, and was a student of the Inner Temple. Be that as it may, he tells us

'A manciple there was of a Temple ...
Of Masters had he mo than thrice ten,
That were of Law expert and curious;
Of which there was a dozen in that house
Worthy to been Stewards of rent and land
Of any Lord that is in England,' etc.

Here, then, we have a clear indication of a Society of Masters dwelling in the Temple, whilst Walsingham's account of Wat Tyler's rebellion refers to apprentices of the Law there. But there is nothing to indicate the existence of the two Inns till about the middle of the fifteenth century, when we find references to them in the Paston Letters (1440 *ff.*), and in the Black Book of Lincoln's Inn (1466 *ff.*). This does not, of course, prove that there was only one Inn before. Such, however, is the traditional account. 'In spite of the damage done by the rebels under Wat Tyler,' says Dugdale, 'the number of students so increased that at length they divided themselves in two bodies—the Society of the Inner and the Society of the Middle Temple.' Those who believe this maintain that when, in course of natural development—rapid expansion apparently following the rebels' onslaught—the original Society had attained an unwieldy bulk and outgrown the capacity of the Old Hall, a split was made. Two distinct and divided Societies, upon a footing of absolute equality, took the place of the parent body. A new Hall was built, but equal rights in the Old Church and the contiguous property were maintained.

This form of propagation by subdivision is common enough, of course, in the vegetable and insect world, but it seems highly improbable in the case of a learned body. It is to me an incredible dichotomy. And it is not necessary to stretch one's credulity so far. There are indications—faint, it is true, but still indications—of the existence of two Societies of Lawyers settled here on two parcels of land that once belonged to the Knights Templars, and dating from almost the earliest days after Edward's confiscation.

For, according to Dugdale, who repeats a tradition which is probably correct, the Knights Hospitallers leased the property soon after they had acquired it to 'divers apprentices of the Law that came from Thavie's Inn in Holborn' at an annual rental of £10. This must have been before 1348. For in that year died John Thavye, who bequeathed this Inn to his wife, and described it in his will as one 'in which certain apprentices of the Law *used* to reside' (*solebant*). But there is also evidence of another and earlier settlement of lawyers on this property. Some lawyers, it is recorded, 'made a composition with the Earl of Lancaster for a lodging in the Temple, and so came thither and have continued ever since.'^[14] The Earl of Lancaster, as we have seen above, held the Temple c. 1315-1322.

Here, then, we have indications of two Societies of Lawyers settling in the Temple. The first body, holding from the Earl of Lancaster, may reasonably be supposed to have had their grant confirmed by the owners who succeeded him. The Society of the Middle Temple must be considered the successors of those tenants. And this Society Mr. Pitt Lewis, K.C.,^[15] has traced to a former home in St. George's Inn, a students' hostel mentioned by Stow.

The second body, migrating from Thavye's Inn, obtained a lease of the part not occupied by the former, at an annual rental of £10, as Dugdale states. And from them are descended the Inner Templars of to-day.

From the time when the Order of the Knights Hospitallers was dissolved, till 1608, these two Societies held these two separate parcels of land direct of the Crown by lease, paying two separate rents. Then they discovered that James I. was beginning to negotiate a sale of the freehold.

The present of a 'stately cup of pure gold, filled with gold pieces,' presented by the two Societies, converted the Scholar-Monarch. On August 13, 1608, he granted a Charter to the Treasurers and Benchers of the Inner and Middle Temple, conferring upon them the freehold of the Temple, together with the Church, 'for the hospitation and education of the Professors and Students of the Laws of this Realm,' subject to a rent charge of £10, payable by each of the two Societies. In 1673 these rents were extinguished by purchase by the two Societies.

This patent of James I. is the only existing formal document concerning the relations between the Crown and the Inns, though it would be strange indeed if no other grant or patent ever existed. It is preserved in the Church in a chest kept beneath the Communion Table, which can only be opened by the keys held by the two Treasurers. The importance of the patent is, for the purpose of our investigation, that it is based almost certainly upon documents that have disappeared, but which reached back to the original conveyance, and it shows that there were two separate parcels, exacting two separate rents. Moreover, it provided that *each* Society should continue to pay a rental of £10. Now, if these two Societies represented a division of the one parent body which had come from Thavye's Inn and held the *whole* Inner and Middle Temple at a rent of £10, it is hardly conceivable that when this supposed division took place, each Society should have continued to

pay the whole rent. The first thing they would have divided, after dividing themselves, would surely have been that rent of £10.^[16]

That the theory of a division having taken place early caused much wonderment is shown by a report that was rife in the seventeenth century. This 'report' was to the effect that the division arose from the sides taken by the Lawyers in the Wars of the Roses. Those wars, however, took place after the date when there is evidence of the existence of the two Societies. The 'report' represents an attempt to explain the existence of the two Societies when their origin was already forgotten, and was perhaps suggested by the fact that it was in the Temple Gardens that Shakespeare placed the famous incident that led to the Wars of the Roses:

‘PLANTAGENET. Let him that is a true-born gentleman,
And stands upon the honour of his birth,
If he suppose that I have pleaded truth,
From off this briar pluck a white rose with me.

‘SOMERSET. Let him that is no coward, nor no flatterer,
But dare maintain the party of the truth,
Pluck a red rose from off this thorn with me.

‘WARWICK. This brawl to-day,
Grown to this faction in the Temple Garden,
Shall send, between the red rose and the white,
A thousand souls to death and deadly night.’

In 1732, in order to put an end to many questions of property, an elaborate deed of partition was agreed to by the two Inns, and forms the final authority upon what belongs to each.

CHAPTER III

THE TEMPLE CHURCH

IT is natural to turn from this story of the Templars to the Round Church in the Temple, which is their chief memorial. We leave the roar and rattle of Fleet Street, and pass through the low Gateway of the Inner Temple into the narrow lane which leads us between the gross modern buildings, called after Oliver Goldsmith and Dr. Johnson, to the west end of the Church—the west end, which is formed by the round building which we have already mentioned.

The Gate-House beneath which we have passed is in itself a building of no ordinary interest. It is, as we now see it, a modern (1905) version of an old timber and rough-cast house, with projecting upper stories, pleasantly contrasting with the Palladian splendour of the adjoining Bank. It was built ‘over and beside the gateway and the lane’ in 1610 by one John Bennett, and was perhaps designed by Inigo Jones. The room on the first floor was, there is every reason to suppose, used by the Prince of Wales as his Council Chamber for the Duchy of Cornwall. It contains some fine Jacobean and Georgian panelling, an admirable eighteenth-century staircase, and an elaborate and beautiful Jacobean plaster ceiling, with the initials, motto, and feathers of Prince Henry, who died 1612.

This is No. 17, Fleet Street. No. 16, to the west of it, with the sign of the Pope’s Head, was the shop of Bernard Lintot, who published Pope’s ‘Homer,’ and later of Jacob Robinson, the bookseller and publisher, with whom Edmund Burke lodged when ‘eating his dinners’ as a student of the Middle Temple.

The Gate-House escaped the Fire of London, and, having been restored, is now preserved to the public use by the London County Council.^[17] It forms an appropriate introduction to those narrow lanes and quiet Courts and that lovely Church, whose pavements once resounded with the tread of the mail-clad champions of Christendom, and echo now with the softer footfall of bewigged, begowned Limbs of the Law. Dull and prosaic must

he be indeed who cannot here feel the thrill of imagination which stirred the soul of Tom Pinch as he wandered through these Courts:

‘Every echo of his footsteps sounded to him like a sound from the old walls and pavements, wanting language to relate the histories of the dim, dismal rooms; to tell him what lost documents were decaying in forgotten corners of the shut-up cellars, from whose lattices such mouldy sighs came breathing forth as he went past; to whisper of dark bins of rare old wine, bricked up in vaults among the old foundations of the Halls; or mutter in a lower tone yet darker legends of the cross-legged knights, whose marble effigies were in the Church’ (‘Martin Chuzzlewit’).

The Round part of the Church of the Knights Templars, which we now see lying below us, is one of the very few instances of Norman work left in London—the only instance, save the superb fragments of St. Bartholomew’s Church and the splendid whole of the Tower of London. It was dedicated, as we have seen, in 1185 to St. Mary by Heraclius, Patriarch of Jerusalem. This fact was recorded on a stone over the door, engraved in the time of Elizabeth, and said by Stow to be an



INTERIOR OF THE TEMPLE CHURCH

A ROUND CHURCH of the Order of Knights Templars (dedicated in 1185). The oblong nave is seen through the pillars of polished Purbeck marble (1240).

accurate copy of an older one. It also proclaimed an Indulgence of sixty days to annual visitors, the earliest known example, I believe, of this particular form of taxation. The Church was again dedicated in 1240. The rectangular portion of the Church, the Eastern portion added to the Western Round, was now probably reconstructed, supplanting a former chancel or choir, just at the period when the new Pointed style had ousted the round Norman.

The circular type of church is not peculiar to the Order of Templars, as we have seen, or even to the Christians, but the choice of it was due in this

case to the practice of imitating the architecture, as the topography, of the Holy Places at Jerusalem. In England, Round Churches occur at Ludlow and Cambridge (1101), built before the Knights of the Temple were established. St. Sepulchre at Northampton is possibly a Templar Church, but the Round Church at Little Maplestead in Essex belongs to the twelfth and thirteenth centuries, and was built by the Knights Hospitallers.

The Temple Church escaped the Fire of London as by a miracle, for the flames came as near as the Master's House at the East End. It escaped the fire of 1678, when the old Chapel^[18] of St. Anne, once perhaps the scene of the initiation of the Knights Templars, lying at the junction of Round and Rectangle, was destroyed by gunpowder to save the church. But it could not escape the destroying hands of the nineteenth-century Goths. For here, between 1824 and 1840, the great Gothic Revivalists indulged in one of their most ineffable and ineffaceable triumphs of intemperate enthusiasm. The Round part of the Church was almost rebuilt, and the old carvings were supplanted by inferior modern work. The conical roof was added; the horrid battlements banished. The old marble columns were removed and replaced by new ones, to obtain which the old Purbeck quarries were reopened. This marble takes an extraordinarily high polish, and presents a surface so clean and lustrous as to be almost shocking in its contrast to our dingy London atmosphere, and buildings begrimed with dirt and soot.

The many brasses, which Camden praised, have disappeared; the rich collection of tablets and monuments and inscribed gravestones that once pleased the eye of Pepys, and formed a feast of heraldic ornament, has been dispersed, and found sanctuary in the tiny Churchyard without, on the north side of the Church, or in the Triforium. The floor of the Church was, at the same time, wisely lowered to its original level, and covered with a pavement of tiles designed after the pattern of the remains of old ones found there, or in the Chapter House of Westminster.

A continuous stone bench, or sedile, which runs round the base of the walls was added at this period, together with the delightful arcade above it, with grotesque and other heads in the spandrels. The wheel window—a lovely thing—was uncovered and filled with stained glass, and the windows in the circular aisle of the Round have since been filled by Mr. Charles Winston with stained glass which is good, but the colour of which it is absurd to compare, as Mr. Baylis does, with the blues and rubies of the glass of the best period. It is to be hoped that the remaining windows will

not be filled with coloured glass, as Mr. Baylis^[19] suggests, for the interior of the Round is too dark already.

The result of all this Gothic reconstruction is that, save for the old rough stones in the exterior Round walls, and some of the ornate semicircular arches, the Templars' Church exists no more. The grandeur, beauty, and historical interest of their building can be gathered now from old engravings only; the monuments of many famous men, in judicial robes and with shields rich in heraldry, a representative gallery of unbroken centuries, which once crowded its floors, must be judged by broken and scattered fragments. What we have is a reconstruction such as the Restorers chose to give us—that is, a light and very pleasing Early English interior, fitted into a Round Norman exterior, beneath the remaining arcade of round arches and windows.^[20]

If the enthusiasm of the Restorers, however, led them to destroy so that we can never forgive them for having taken from us original work for the sake of indulging their own fancy, yet it is evident that there was much for them legitimately to undo. There were plaster and stucco, and dividing gallery and whitewashed ceiling, and all the usual horrors of the eighteenth century, to be got rid of. The graves and monuments were historically interesting, but they crowded the little church unbearably. And at least the Restorers have given us beautiful work of their own, and a seemly and beautiful sanctuary worthy of the place.

The Round is entered by a western door—a massive oaken door superbly hung upon enormous hinges, quite modern. It closes beneath a semicircular arch enriched by deeply-recessed columns with foliated capitals of the transitional Norman style, though all this work, like the Gothic Porch which contains it, is modern restoration. The scene as we enter the Church is one of striking singularity. Near at hand is the arcaded sedile about the walls of the Round, and through six clustered columns of great elegance, made of polished Purbeck marble, which support the dome, we catch a glimpse of the polished marble columns in the Choir, the lancet windows in the North and South walls, and the three stained windows of the East End, beneath which the gilded Reredos glitters. And through the painted windows of the Round itself the light strikes upon a wonderful series of monumental recumbent figures, some of which are made of this flashing Purbeck marble too. It is a strange, unforgettable sight, that summons up unbidden the vision of the Red-Cross Knights, to the tread of whose mailed feet these

pavements rang, when, beneath their baucéant banners, they gathered here to the Dedication of their Temple.

These monuments, though re-arranged and restored indeed by Richardson, 1840, are still of great interest. Nine only out of eleven formerly mentioned remain. Two groups of four each lie beneath the Dome, with the ninth close by the South wall, balancing a stone coffin near the North. Two of them belong to the twelfth century and seven to the thirteenth, and these silent figures wear the armour of that period—the chain mail and long surcoats, the early goad spurs, the long shields and swords, the belts, and mufflers of mail.

The Monuments in the Temple Church have been frequently described, by Stow and Weever, for instance, by Dugdale,^[21] and by Gough.^[22] The tradition that they represent ‘ancient British Kings,’ or even necessarily Templars, has been long exploded. The theory that every figure whose legs are crossed in effigy belonged to that Order has been consigned to the limbo of vulgar errors. But five of these effigies are mentioned by Stow as being of armed Knights ‘lying cross-legged as men vowed to the Holy Land, against the infidels and unbelieving Jews.’ And it is very probable that cross-legs did indicate those who had either undertaken a Crusade or vowed themselves to the Holy Land. At any rate, I know no evidence to show that this was *not* the symbolism by which the medieval mason in England and Ireland chose to indicate the Crusader.

None of these remarkable monuments can with certainty be identified. Of those now grouped upon the South side Stow says: ‘The first of the crosse-legged was W. Marshall, the elder Earl of Pembroke, who died 1219; Wil. Marshall, his son, the second, and Gilbert Marshall, his brother, also Earl of Pembroke, slayne in a tournament at Hertford, besides Ware,’ in 1241. And this may or may not be so. The fourth is nameless; the fifth, near the wall, is possibly that of Sir Robert Rosse, who, according to Stow, was buried here.

Of the group upon the North side, only that of the cross-legged knight in a coat of mail and a round helmet flattened on top, whose head rests on a cushion, and whose long, pointed shield is charged with an escarbuncle on a diapered field, can with any probability be named. For these are the arms of Mandeville (*de Magnavilla*)—‘quarterly, or and gules, an escarbuncle, sable’—and this monument of Sussex marble gives us the first example of

arms upon a sepulchral figure in England.^[23] It is supposed to be the effigy of Geoffrey Mandeville, whom Stephen made first Earl of Essex, and Matilda Constable of the Tower. A ferocious and turbulent knight, he received an arrow-wound at last in an attack upon Burwell Castle, and was carried off by the Templars to die. But, as he died under sentence of excommunication, it is said that they hung his body in a lead coffin upon a tree in the Old Temple Orchard, until absolution had been obtained for him from the Pope. Then they brought him to the new Temple and buried him there (1182).

The Choir, or rectangular part of the Church, of which the nave is broader than the aisles, but of the same height, is a beautiful example of the Early English style, and is lighted by five lancet triplet windows. By the Restorers the old panelling and the beautiful seventeenth-century Reredos were removed. Tiers of deplorable pews, deplorably arranged, and a very feeble Gothic Reredos^[24] were substituted. The roof, supported by the Purbeck marble clustered columns that culminate in richly-moulded capitals, was painted with shields and mottoes in painstaking imitation of the thirteenth century. The windows at the East End were filled with very inferior modern stained glass, none of it of the least interest, poor in colour and wretchedly ignorant in design—ignorant, that is, of the rules which guided the art of the medieval glazier.

A bust of the 'Judicious' Hooker, Master of the Temple Church, and author of the 'Ecclesiastical Polity,' the grave of Selden near the South-West corner of the Choir, and above it a mural tablet to his memory, are the monuments of known men most worthy of attention. The fine fourteenth-century sepulchral effigy near the double piscina of Purbeck marble is supposed to be that of Silvester de Everden, Bishop of Carlisle.

The Organ, frequently reconstructed and finally renewed by Forster and Andrews, 1882, has been famous for generations. It was originally built by Bernard Schmidt. Dr. Blow and Purcell, his pupil, played upon it in competition with that built by Harris. The decision of this Battle of the Organs was referred to the famous, or infamous, Lord Chief Justice Jeffreys, who was a good musician, and in this matter, at least, seems to have proved himself a good Judge.

The *Triforium*^[25] is reached by a small Norman door in the North-West corner of the oblong. A winding staircase leads to the Penitential Cell—4

feet long, by 2 feet 6 inches wide—where many of the Knights were confined. To the Triforium many tablets and monuments (*e.g.*, of Plowden), once in the Church below, have been removed.

Among the epitaphs in brass, quoted at length by Dugdale, is one in memory of John White:

‘Here lieth a John, a burning, shining light;
His name, life, actions, were all White.’

The Templars’ Church was equally divided between the two Societies of Lawyers from ‘East to West, the North Aisle to the Middle, the South



THE EAST END OF THE TEMPLE CHURCH AND THE MASTER'S HOUSE

to the Inner Temple.' This fact, with many others, clearly indicates the basis of perfect equality upon which the two Societies were agreed to stand, and on which, in spite of subsequent claims to precedence on the part of both, declared groundless by judicial authority, they will henceforth continue. As to the Round, it appears to have been used by both Societies in common, largely as a place of business, like the Parvis of St. Paul's, where lawyers congregated, and contracts were concluded. Butler refers to this custom in his 'Hudibras':

'Walk the Round with Knights o' the Posts
About the cross-legged Knights, their hosts,
Or wait for customers between
The pillar rows in Lincoln's Inn.'
BUTLER: *Hudibras*.

Joint property of the two Societies, also, is that exquisite example of Georgian domestic architecture, the Master's House (1764). This perfect model of a Gentleman's Town-House owes its great charm almost entirely to its beautiful proportions, and to the appropriate material of good red brick and stone of which it is built. It is a thousand pities that blue slates have been allowed to supplant the good red tiles that should form the roof. The House itself is the successor of one which was erected (1700) after the Great Fire.^[26] The original Lodge is said to have been upon the site of the present Garden, directly in line with the east end of the Church. In the vaults beneath this Garden many Benchers of both Inns have been laid to rest.

In this Lodge, then, dwells the Master of the Temple Church.

'There are certain buildings,' says Camden, 'on the east part of the Churchyard, in part whereof he hath his lodgings, and the rest he letteth out to students. His dyet he hath in either House, at the upper end of the Bencher's Table, except in the time of reading, it then being the Reader's place. Besides the Master, there is a Reader, who readeth Divine Service each morning and evening, for which he hath his salary from the Master.'

A Custos of the Church had been appointed by the Knights Hospitallers, but after the Dissolution of the Monasteries the presentation of the office was reserved to the Crown. The Church is not within the Bishop's

jurisdiction. On appointment by the Crown, the Master is admitted forthwith without any institution or induction. But the Master of the Temple Church is Master of nothing else. When, in the reign of James I., Dr. Micklethwaite laid claim to wider authority, the Benchers of both Temples succeeded in proving to the Attorney-General that his jurisdiction was confined to his Church.

Masters of real eminence have been few. By far the greatest was the learned Dr. John Hooker, appointed by Elizabeth, who resigned in 1591. Dr. John Gauden, who claimed to have written the 'Eikon Basilike,' was Master of the Temple before he became Bishop of Exeter and Worcester. And in our own day Canon Ainger added to the charm of a singularly attractive personality the accomplishments of a scholar who devoted much of his time to the works of another devout lover of the Temple—Charles Lamb.

The Church was once connected with the Old Hall by Cloisters, communicating with the Chapel of St. Thomas that once stood outside the north door of it, and with the Refectory of the Priests, a room with groined arches and corbels at the west end of the present Inner Temple Hall, which still survives (see [p. 48](#)). Later on, Chambers were built over the Cloisters, and the Church itself was almost stifled by the shops and chambers that were allowed to cluster about it, along the South Wall, and even over the Porch. Beneath the shelter of these Cloisters the Students of the Law were wont to walk, in order to 'bolt' or discuss points of law, whilst 'all sorts of witnesses Plied in the Temple under trees.'

The Fire of 1678 burnt down the old Cloisters and other buildings at the south-west extremity of the Church. The present Cloisters at that angle, designed by Wren, were rebuilt in 1681, as a Tablet proudly proclaims.

The Cloister Court is completed by Lamb Building, which, though apparently within the bounds of the Inner Temple, belongs (by purchase) to the Middle Temple, and is named from the badge of that Inn, the Agnus Dei, which figures over the characteristic entrance of this delightful Jacobean building, and has now given its title to the whole Court. Here lived that brilliant Oriental Scholar, Sir William Jones, sharing chambers with the eccentric author of 'Sandford and Merton,' Thomas Day. And it was to the attics of these buildings, where Pen and Warrington dwelt, that Major Pendennis groped his way through the fog, piloted, as he might be to-day, 'by a civil personage with a badge and white apron through some dark

alleys and under various melancholy archways into courts each more dismal than the other.’^[27]

The consecrated nature of their tenement resulted in certain inconveniences to the Lawyers. On the one hand, the Temple was a place of Sanctuary, and its character suffered accordingly. Debtors, criminals, and dissolute persons flocked to it as a refuge, so that it became necessary to issue orders of Council (1614) that the Inns should be searched for strangers at regular intervals, whilst, with the vain view of reserving the precincts for none but lawyers, it was ordained that ‘no gentleman foreigner or discontinuer’ should lodge therein, so that the Inns might not be converted into ‘taverns’ (*diversoria*). On the other hand, the benevolence of the Benchers was taxed by many unnatural or unfortunate parents, who used the Temple as a crèche, and left their babies at its doors. The records give many instances of payments made towards the support of such infants, who were frequently given the ‘place-name’ of Temple.

I have quoted from Thackeray a phrase not so over-complimentary to the surroundings of Lamb Building.

But now, before passing on to the story of the Halls of these renowned Societies, and the Chambers which have harboured so many famous men, I must quote, as an introduction, the passage in which the novelist makes amends, and nobly sums up the spirit of the life men lead there, and the atmosphere of strenuous work and literary tradition which lightens those ‘dismal courts’ and ‘bricky towers.’

‘Nevertheless, those venerable Inns which have the “Lamb and Flag” and the “Winged Horse” for their ensigns have attractions for persons who inhabit them, and a share of rough comforts and freedom, which men always remember with pleasure. I don’t know whether the student of law permits himself the refreshment of enthusiasm, or indulges in poetical reminiscences as he passes by historical chambers, and says, “Yonder Eldon lived; upon this site Coke mused upon Lyttelton; here Chitty toiled; here Barnwell and Alderson joined in their famous labours; here Byles composed his great work upon bills, and Smith compiled his immortal leading cases; here Gustavus still toils with Solomon to aid him.” But the man of letters can’t but love the place which has been inhabited by so many of his brethren or peopled by their creations, as real to us at this day as the authors whose children they were; and Sir Roger de Coverley walking in

the Temple Gardens, and discoursing with Mr. Spectator about the beauties in hoops and patches who are sauntering over the grass, is just as lively a figure to me as old Samuel Johnson rolling through the fog with the Scotch Gentleman at his heels, on their way to Dr. Goldsmith's chambers in Brick Court, or Harry Fielding, with inked ruffles and a wet towel round his head, dashing off articles at midnight for the *Covent Garden Journal*, while the printer's boy is asleep in the passage.'

[\[28\]](#)

CHAPTER IV

THE MIDDLE TEMPLE

THE passage I have quoted from Thackeray at the end of the last chapter shadows forth eloquently enough something of the feeling of respect and awe which the young barrister—and even those who are not young barristers—may naturally feel for the precincts within which the great English Lawyers lived and worked—the Inns of Court, where the splendid fabric of English Law was gradually built up, ‘not without dust and heat.’

But for most laymen the Temple and its sister Inns have other and perhaps more obvious charms. For as we pass by unexpected avenues into ‘the magnificent ample squares and classic green recesses’ of the Temple, they seem to be bathed in the rich afterglow of suns that have set, the light which never was on sea or land, shed by the glorious associations connected with some of the greatest names in English literature. Here, we remember, by fond tradition Geoffrey Chaucer is reputed to have lived. Here Oliver Goldsmith worked and died, and here his mortal remains were laid to rest. Here, within hail of his beloved Fleet Street, Dr. Johnson dwelt, and Blackstone wrote his famous ‘Commentaries.’ Here the gentle Elia was born. Hither possibly came Shakespeare to superintend the production of ‘Twelfth Night.’ Here, in the Inner Temple Hall, was acted the first English tragedy, ‘Gorboduc; or Ferrex and Porrex,’ a bloodthirsty play, by Thomas Sackville, Lord High Treasurer of England, and Thomas Norton, both members of the Inner Temple. And hither, to witness these or other performances, came the Virgin Queen.

The main entrance to the Middle Temple is the gateway from Fleet Street, scene of many a bonfire lit of yore by Inns of Court men on occasions of public rejoicing.^[29] This characteristic building, of red brick and Portland stone, with a classical pediment, was designed by Sir Christopher Wren, and built, as an inscription records, in 1684. An old iron gas-lamp hangs above the arch, beneath the sign of the Middle Temple Lamb.

Wren's noble gate-house replaced a Tudor building, erected, according to tradition, by Sir Amias Paulet, who, being forbidden—so Cavendish^[30] tells the story—to leave London without license by Cardinal Wolsey, 'lodged in this Gate-house, which he re-edified and sumptuously beautified on the outside with the Cardinal's Arms, Hat, Cognisance, Badges, and other devices, in a glorious manner,' to appease him. The fact seems to be that this old Gateway was built in the ordinary way when one Sir Amisius Pawlett was Treasurer.^[31]

Adjoining this Gateway is Child's Bank, where King Charles himself once banked, and Nell Gwynne and Prince Rupert, whose jewels were disposed of in a lottery by the firm. Part of this building covers the site of the famous Devil's Tavern, which boasted the sign of St. Dunstan—patron of the Church so near at hand—tweaking the devil's nose. Here Ben Jonson drank the floods of Canary that inspired his plays; hither to the sanded floor of the Apollo club-room came those boon companions of his who desired to be 'sealed of the tribe of Ben,' and here, in after-years, Dr. Johnson loved to foregather, and Swift with Addison, Steele with Bickerstaff.

Immediately within the Gateway, on the left, is



THE MIDDLE TEMPLE GATEHOUSE IN FLEET STREET

It stands on the south side close to the site of Temple Bar, was designed by Sir Christopher Wren, and built in 1684.

an old and very picturesque stationer's shop, belonging to the firm of Abram and Sons, in whose family it has been since 1774. It is much more than a stationer's shop, for Messrs. Abram have accumulated in the course of years a very valuable and interesting collection of old deeds and documents and prints. The overhanging stories of the house rest upon a row of slender iron pillars—pillars which Dr. Johnson used to touch with superstitious reverence each time he passed, in unconscious continuation of that ancient pillar-worship of which many traces linger, for those who have

eyes to see, about the Temple and St. Paul's. We are now in Middle Temple Lane, the narrow street down which the citizens of London were wont to hurry in order to take boat to Westminster from the Temple Stairs, in the days when the River was the highway between the City and the Court, between London and Westminster, the counting-houses of the merchants and the palace and abbey of the King. Of late years the introduction of tramways and of motor traffic on the Embankment has tended largely to revive the popularity of the old route, though not all the thousands of pounds squandered by the London County Council upon an ill-considered scheme of steamboats could induce the Londoner to adopt again the waterway, which the bend of the River and the tide must make slow. Next below us on the left is the group of chambers called Hare Court, a plain to ugly, red-brick to stock-brick barracks, through which one can reach the Temple Church. Beyond, on the right, we come to what remains of Brick Court. This is a most charming specimen of the Queen Anne style. An inscription over the doorway of No. 3, *Phœnicis instar revivisco*, informs us that it rose like the Phoenix from its ashes in 1704. But in this present year of Grace (1909), an old brick building has been removed, which fronted the Hall and the Lane, and which claimed to be the oldest building left in the Temple, the first constructed of brick, erected there in Elizabeth's reign, and referred to by Spenser in the lines of his 'Prothalamion':—

‘Those bricky towres,
The which on Themmes brode aged backe doe ryde,
Where now the studious lawyers have their bowers,
There whylome wont the Templar Knights to byde,
Till they decayed thro' pride.’

There is nothing, however, to prove that Spenser was referring to Brick Court. The 'Prothalamion' was published in 1596; and I would suggest that the phrase 'bricky towres' might apply most naturally to the Middle Temple Hall.

Of all the Chambers in the Inns of Court rich in reminiscences of famous men, none are so redolent of literary fame as No. 2, Brick Court. We cannot, as Thackeray^[32] wrote, who himself, like Winthrop Mackworth Praed, had chambers here, pass without emotion 'the staircase which Johnson, Burke, and Reynolds trod to see their friend, their kind Goldsmith—the stair on which the poor women sat weeping bitterly when they heard that the greatest and most generous of all men was dead within the black oak door.'

Not the Temple, but No. 6, Wine Office Court, nearly opposite the Cheshire Cheese, was the scene of Dr. Johnson's famous rescue of the author of 'The Vicar of Wakefield,' who had been arrested by his landlady for his rent, and sent for his friend in great distress. 'I sent him a guinea,' says Johnson, 'and promised to come to him directly.... I perceived that he had already changed my guinea, and had a bottle of Madeira and a glass before him. I put the cork into the bottle, desired he would be calm, and began to talk to him of the means by which he might be extricated. He then told me that he had a novel ready for the press. I looked into it, and saw its merit; told the landlady I should soon return, and, having gone to a bookseller, sold it for sixty pounds.'

Goldsmith left Wine Office Court and lodged for a while in Gray's Inn, and thence migrated to some humble Chambers upon the site of No. 2, Garden Court, Middle Temple (1764). These buildings have disappeared. But the success of his play, 'The Good-Natured Man,' for which he received £500, enabled him to launch forth into more splendid apartments. He purchased the lease of No. 2, Brick Court, which still stands as he left it, for £400. He furnished his rooms with mahogany and Wilton carpets, and, bedecking himself in a suit of 'Tyrian bloom satin grain,' prepared to entertain his most aristocratic acquaintances. Johnson, Percy, Reynolds, Bickerstaff, and a host of other friends of either sex, climbed those stairs to the rooms on the second floor on the right-hand side ('two pair right'), were entertained to dinners and suppers, much to the discomposure of the studious Blackstone, who, painfully compiling his great 'Commentaries' in the chambers below, found good cause to grumble at the racket made by 'his revelling neighbour.'^[33] And some years later the staircase that led to the rooms of that most lovable of geniuses was crowded by friends, 'mourners of all ranks and conditions of life, conspicuous among them being the outcasts of both sexes, who loved and wept for him because of the goodness he had done.'^[34] For from these rooms, one April afternoon, the mortal remains of Oliver Goldsmith were borne forth, to be buried somewhere on the north side of the Temple Church. The exact spot is not known, but as near to it as can be ascertained a plain gravestone now bears the inscription (1860): 'Here lies Oliver Goldsmith.' The Goldsmith Buildings, that run parallel to the north side of the Church, belong, like Lamb Buildings, somewhat unexpectedly to the Middle Temple, but they have no immediate connection with Oliver Goldsmith.

The bedroom in Goldsmith's Chambers Thackeray describes as a mere closet, but he commented upon the excellence of the carved woodwork in the rooms. The windows looked upon a rookery, which for long flourished in the elm-trees, since cut down, which gave their name to Elm Court. Gazing upon this colony, Goldsmith, in the intervals of composing his 'Traveller' or 'Deserted Village,' would note their ways, and so recorded them in his 'Animated Nature':^[35] 'The rook builds in the neighbourhood of man, and sometimes makes choice of groves in the very midst of cities for the place of its retreat and security. In these it establishes a kind of legal constitution, by which all intruders are excluded from coming to live among them, and none suffered to build but acknowledged natives of the place. I have often amused myself with observing their plan of policy from my window in the Temple, that looks upon a grove where they have made a colony in the midst of the City....'

In recent years many of the brightest ornaments of the English Bar have had Chambers in Brick Court, including Lord Coleridge, Lord Bowen, Lord Russell, and Sir William Anson. There is a sundial in this Court—one of the many for which the Inn is famous—from which Goldsmith may often have taken the hour. It warns us that Time and Tide tarry for no man, and took the place (1704) of one that bore the motto, 'Begone about your business,' of which the story goes that it was a Bencher's curt dismissal of a Mason who asked him for the motto to be engraved thereon.

The Buildings in the Inns grew up in haphazard fashion. They were erected by individual members or Benchers at their own cost, and interspersed with stalls and shops, with the sanction of the Benchers. The builders were granted the right of calling their blocks of chambers after their own names, if they chose, and of nominating a certain number of successors from among members of the Society, who might become tenants without paying rent to the Inn.

To this haphazard method of building, and to the influence of numerous fires, is due the devious labyrinth of little Courts, the inextricable maze of blocks of Chambers, which lie upon our left as we descend Middle Temple Lane, and which lend so peculiar a character to the Temple Inns. Pump Court, Elm Court, Fig-Tree Court, which fill the spaces between the Lane and Wren's Cloisters and the Inner Temple Hall, owe their irregular shape to these causes, and their titles to the chief features of the plots about which they were built.

First comes Pump Court, where Henry Fielding, the novelist, and Cowper, the poet, once had chambers. Upon its old brick walls is a sundial with its warning motto: 'Shadows we are, and like shadows depart.'^[36] The great fire of 1679, which damaged the Middle Temple far more than the Fire of London, broke out at midnight in Pump Court. It raged for twelve hours. The Thames was frozen, and barrels of ale, so tradition runs, were broached to feed the pumping engines in lieu of water. Pump Court, Elm-Tree Court, Vine Court, the Cloisters, and part of Brick Court were consumed. The Church and Middle Temple Hall were only saved by the timely use of gunpowder, a device that had been found effective in the Great Fire of 1666.

Elm Court Buildings, as they now are, date from 1880. They are built of good red brick and stone, but marred by feeble Renaissance ornament. They boast a sundial, facing the Lane, which proclaims that the years pass and are reckoned—*pereunt et imputantur*. The Middle Temple Lane ends in the atrocities of the nineteenth century: between the walls of the feeble Harcourt Buildings, the stock-brick ugliness of Plowden Buildings, which have rather less architectural charm than a soap-factory, and in the dreadful Temple Gardens and the Gateway which opens upon the Embankment, a gross abomination of florid ugliness.

On the right, below Brick Court, beneath a gas-lamp raised upon a graceful iron arch, some steps



FOUNTAIN COURT AND MIDDLE TEMPLE HALL

lead us to a raised pavement, dotted with a few plane-trees, beyond which lies the Fountain. This pavement is the forecourt of the Middle Temple Hall, a building which, in spite of restorations and recasings and counter-restorations, remains of unique and unsurpassed interest. For now that Crosby Hall is to be translated, it is the only building left *in situ* in London which can be directly and certainly connected with William Shakespeare. The Middle Temples had an ancient Hall between Pump Court and Elm Court, the west end of which abutted upon Middle Temple Lane. This was superseded in 1572 by the present famous building.

‘Gray’s Inn for walks,
Lincoln’s Inn for a wall,
The Inner Temple for a garden,
And the Middle for a Hall.’

The old doggerel lines fairly sum up the features of the Inns. And this lovely Hall of the Middle Temple, whose proportions are so fair—it is 100 feet by 42 feet by 47 feet high—produces a delightful impression of space and lightness. A magnificent timber roof with Elizabethan hammer-beams harmonizes with the rich panelling, on which are painted the arms of ‘Readers,’ and the gorgeous carving of the Renaissance Screen, which was erected in 1574, some fourteen years before the date of the Spanish Armada, from the spoils of which fond tradition says it was constructed.

The Hall is very rich in heraldry, and has some interesting portraits, chiefly of royal personages. Above the Bench Table hangs Van Dyck’s portrait of Charles I. The windows illustrate the survival of Gothic detail long after other details had passed into the Italian style. The points are very slight, but contrast sharply enough with the Renaissance curves and pendent roof. There is some modern stained glass, tolerable in colour, but incongruous in style.

Parliament Chamber and the Benchers’ rooms are approached through old carved oak doors, relics of the old Hall in Pump Court.

The Entrance Tower was designed by Savage (1831): the Louvre was restored by Hakewill. An oil-painting, attributed to Hogarth, of the Hall Court, with the Entrance Tower of the Hall in its ancient state, is to be seen in the Benchers’ Committee Room of the Inner Temple.

One of the most splendid Refectories in England, comparable to the Hall of Christ Church at Oxford, this noble room adds to the charm of its beauty the charm of a literary memorial. For from this stage the exquisite poetry and gentle fun of Shakespeare’s ‘Twelfth Night’ first fell upon the ears of the listening lawyers upon occasion of a Christmas Revel three hundred years ago. Here Shakespeare himself, we must believe, has trodden; those rafters rang once with the poet’s voice. For even if he did not act himself in his play that night of wonderful Post-Revels—and that, in spite of tradition, is indeed scarcely probable, for the dramas performed on these occasions were, as we have seen, acted by members of the Inn—yet it is more than

probable that he would be employed as Stage-Manager for the occasion, and would take his natural part in rehearsing the play.

It so happens that one John Manningham—a fellow-student, by the way, of John Pym—kept a diary of his residence in the Temple from 1601 to 1603. That diary has been preserved among the Harleian Manuscripts now in the British Museum. And on February, 160½, he made a note which will cause his name to live for ever. ‘At our feast,’ he wrote, ‘Wee had a play called “Twelve Night, or What you will,” much like the “Commedy of Errores,” or “Menechmi” in Plautus, but most like and neere to that in Italian called “Inganni.”’^[37]

And to this stately Hall, we may be sure, came Elizabeth, surrounded by a brilliant group of statesmen, lawyers, sailors, to witness such plays, or perchance to lead the dance with some comely courtier like Sir Christopher Hatton. The connection of the Middle Temple with the great Elizabethan Admirals and Adventurers is indeed noteworthy.

Sir Francis Drake was honourably received by the Benchers in this Hall after his victories in the West Indies (1586), and in the Hall, below the daïs, is a serving-table made out of the timber of his ship, the *Golden Hind*. He had been admitted, *honoris causa*, to the Society of the Inner Temple four years earlier. Other famous Elizabethan seamen were admitted at the Middle Temple in the persons of Sir Martin Frobisher, Admiral Norris, Sir Francis Vere (all in 1592), and Sir John Hawkins (1594). Taken in conjunction with the fact that Richard Hakluyt, the elder, was a Bencher of the Middle Temple; that Sir Walter Raleigh, who had been admitted to membership of the Inn in 1575, placed the expedition he sent out in 1602 under the command of Bartholomew Gosnold, another Middle Templar; that the records show that several members of the Middle Temple were interested in the early development of Virginia; and that the Inn possesses the only existing copy of the ‘Molyneux Globes,’ this and other indications seem to justify Mr. Bedwell’s contention^[38] that ‘the colonizing enterprises of the closing years of the sixteenth century were closely associated with the Middle Temple,’ and that on both sides of the Atlantic members of that Inn took a prominent part in the ‘birth of the American Nation.’

This connection with the Colonies, natural, necessary and profitable both to those new countries, which thus obtained the services of educated men—Governors trained in knowledge of affairs, and Attorney-Generals imbued

with the high traditions of English Law—and to the Inns themselves, which were thus kept in touch with the New World, is illustrated by the fact that the Middle Temple is represented by no less than five of the signatories to the Declaration of Independence. Of these, Thomas McKean is said to have written the Constitution of Delaware in a single night. And of the other four, Edward Rutledge, Thomas Lynch, Thomas Heyward, and Arthur Middleton—all Representatives of South Carolina—the first is believed to have drafted the greater part of the Constitution of that State, and was afterwards Chairman of the Committee of Five who drafted the first Constitution of the United States.

Meanwhile the literary and dramatic tradition of the Middle Temple was continued by such members of the Society as Congreve, Wycherley, Ford, Sir Thomas Overbury, and Shadwell, King William's Poet Laureate, who lives in Dryden's Satire. Later, that tradition was continued by Sheridan, Thomas Moore, Thomas de Quincey, and Henry Hallam, the historian of the Middle Ages.

Since 1688, when a change was made in the oath of supremacy, which, by a statute of 1563, all Utter Barristers were required to take, the names of the members of the Inns of Court who are entitled to practise in the Courts have been preserved in the Barristers' Roll. Since 1868 barristers have been excused the oath, but the Roll must still be signed after call to the Bar. The lists are kept in the Public Record Office.

The names of eminence inscribed upon this wonderful Roll can only be hinted at here. The Middle Temple can boast such great lawyers as Edmund Plowden and Blackstone, and Lord Chancellors in Clarendon, Jeffreys (who was a student here, but called to the Bar at the Inner Temple), Somers, Cowper, and Eldon; whilst Mansfield, C.J., Lord Ashburton, Robert Gifford, Lord Stowell, Lord Campbell, Cockburn, the Norths, and the Pollocks, were men and lawyers of no less eminence. Nor must we omit to mention one whose undying fame was earned, not in the Courts, but in the Camp; for Sir Henry Havelock, the hero of Cawnpore and Lucknow, figured among the Templars ere he went to India. Of another kind of eminence was Elias Ashmole, the Antiquary, whose name lives at Oxford. In the destructive fire of 1678 he lost in his rooms at the Middle Temple his papers, books, and rich collection of coins and medals. His friend, John Evelyn, the diarist, also had rooms in the Middle Temple, in Essex Court, just over against the Hall Court (1640).

The north wing of Essex Court, which forms part of Brick Court, was rebuilt in 1883;^[39] the remainder of these charming brick buildings, with the Wigmaker's shop, belong to the second half of the seventeenth century.

Though the Gateway which leads to Middle Temple Lane is the grander, there is another entrance by 'the little Gate,' which is still more charming and characteristic. Screened by the tortuous ways of Devereux Court, an old wrought-iron gate opens onto an ancient and spacious quadrangle.

As we stand beneath the old brick buildings of this 'New Court'—so 'new' that it was built by Sir Christopher Wren (1677)—the whole charm of the Temple scenery unfolds before our eyes, and we understand at once the 'cheerful, liberal look of it' which Charles Lamb loved.

For below us lies the most unique and one of the loveliest views in London, a city of beautiful vistas. A flight of steps, framed by ancient iron standards bearing the sign of the Lamb, leads down to a Fountain in the centre of a broad paved terrace. And through the trees that shade it we catch glimpses of green lawns and flower-beds hedged about by Hall and Library and Chambers. Here still, beneath the shady trees—though Goldsmith's rooks no longer caw in them—sparkles the water of the Temple Fountain, though the Fountain itself is not that which provoked Lamb's wit, nor that which Dickens loved. It was through the smoky shrubs of Fountain Court that the delicate figure of Ruth Pinch flitted, in fulfilment of her little plot of assignation with Tom, who was always to come out of the Temple past the Fountain and look for her 'down the steps leading into Garden Court,' to be greeted 'with the best little laugh upon her face that ever played in opposition to the Fountain, and beat it all to nothing. The Temple Fountain might have leaped twenty feet to greet the spring of hopeful maidenhood that in her person stole on, sparkling, through the dry and dusty channels of the Law; the chirping sparrows, bred in Temple chinks and crannies, might have held their peace to listen to imaginary skylarks, as so fresh a little creature passed; the dingy boughs, unused to droop, otherwise than in their puny growth, might have bent down in a kindred gracefulness, to shed their benedictions on her graceful head; old love letters, shut up in iron boxes in the neighbouring offices, and made of no account among the heaps of family papers into which they had strayed, and of which, in their degeneracy, they formed a part, might have stirred and fluttered with a moment's recollection of their ancient tenderness, as she went lightly by.'^[40]

From the Fountain Terrace we look down upon a terraced garden framed by various blocks of buildings, which, if they do not group and harmonize so as to form a perfect whole, yet produce an effect which is quite singular and has a charm of its own. Beneath the Terrace, on the left the west end of the Hall abuts upon a green lawn; on the right a flight of steps leads down to a path which skirts the not unpleasing gabled façade, in red brick and stone, of the Garden Court (1883). Facing us now, are the steps which lead up to the embattled Lobby of the Library, beneath which an archway leads to the Library Chambers facing Milford Lane. Hence a private gate leads out into the Lane, where are the steps to Essex Street, remains of the old Water Gate of Essex House. The left-hand side of the green parallelogram of garden is formed by those ugly Plowden Buildings, for which the only hope is that they may soon be buried in the decent obscurity of Virginia Creeper, which can cover a multitude of architectural sins, and the still uglier Temple Gardens, and the Gateway, for which there is no hope at all.

In Dugdale's time the Middle Temple Library, owing to the fact that it always stood open, had been completely despoiled of books. The present



MIDDLE TEMPLE LIBRARY

ON the left are the buttresses of Middle Temple Hall.

building, in the Gothic style by H. R. Abraham, is ugly in itself, its proportions, especially when viewed from the Embankment, being painfully bad. Its height is far too great for its length and breadth, and this is due to the fact that two stories of offices and chambers are beneath the Library Room, which is approached by a charming outside staircase. The Library itself, which is 86 feet long, is a beautiful room with a fine open hammer-beam roof. It was opened on October 31, 1861, by King Edward VII., then Prince of Wales, who was called to the Bar and admitted as a Bencher of the Middle Temple on the same day.

CHAPTER V

THE INNER TEMPLE

MR. LOFTIE very justly observes of the Middle Temple that ‘Its Lawn seems wider, its trees are higher, its Hall is older, its Courts are quainter, than those of the other member of this inseparable pair.’ The Middle Temple has, indeed, been unkindly compared to a beautiful woman with a plain husband. This comparison, however, is far from just. For though its beauty is perhaps less obvious and has been much impaired by the ravages of modern builders, yet the Inner Temple remains a *locus classicus* for the fine beauty of the Jacobean and Queen Anne styles, and across its green lawn the view of the Embankment, the River, and Surrey Hills—too often, alas! shrouded in smoke—is extremely delightful. Moreover, the heart of the Inner Temple presents the engaging completeness of a Collegiate Building. The Church and Master’s House on the North; the Cloisters on the West; the Buttery, Refectories, Hall, and Library on the South; the Master’s Garden, the Graveyard and Garden of the Inn on the East, form just such a Court or Quadrangle as delights the eye at Oxford or Cambridge.

I have spoken of the Inner Temple Gateway. In King’s Bench Walk—once known as Benchers’ Walk—the Inner Temple can boast a row of typical Jacobean mansions, with handsome doorways,^[41] which look upon a broad and classic avenue of trees. Nor can an Inn, which records the names of Sir Edward Coke and of John Selden amongst its members, and which was the home of Dr. Johnson and Charles Lamb, be reckoned inferior to any in the fame and interest of its *alumni*.

Dr. Johnson moved from Staple Inn to Gray’s Inn, and from Gray’s Inn to No. 1, Inner Temple Lane (1760). Here, in a spot so favourable for retirement and meditation, as Boswell calls it, in a house whose site is indicated by the ugly block of Johnson’s Buildings (1851), were those rooms which have been so vividly described by the great man’s admirers. Here, in two garrets over his chambers, his library was stored, ‘good books, but very dusty and in great confusion.’ Here was housed an apparatus for the chemical experiments in which he delighted, whilst the floor was strewn with his manuscripts for Boswell to scan ‘with a degree of veneration,

supposing they might perhaps contain portions of the “Rambler” or of “Rasselas.” ’ It was in his chambers here on the first floor, furnished like an old counting-house, that the uncouth genius received Madame de Boufflers—received her, no doubt, clad, as usual, in a rusty brown suit, discoloured with snuff, an old black wig too small for his head, his shirt collar and sleeves unbuttoned, his black worsted stockings slipping down to his feet, which were thrust into a pair of unbuckled shoes. And then, when he began to talk, ‘with all the correctness of a second edition,’ all thought of his slovenly appearance and his uncouth gestures vanished; the knowledge and the racy wit of the man triumphed. We see the lady, fascinated by the great man’s conversation, bowed out of those dirty old rooms, whilst the ponderous scholar rolls back to his books. Then her escort hears ‘all at once a noise like thunder.’ It has occurred to Johnson that he ought to have done the honours of his literary residence to a foreign lady of quality.

Eager to show himself a man of gallantry, he hurries down the stairs in violent agitation. ‘He overtook us,’ says Beauclerc, ‘before we reached the Temple Gate, and, brushing in between me and Madame de Boufflers, seized her hand and conducted her to the coach.’ To the bottom of Inner Temple Lane came the devoted Boswell, and took chambers in Farrar’s Buildings—now rebuilt (1876)—in order to be near to the object of his biographical enthusiasm. Another name famous in Literature the Inner Temple can boast. Francis Beaumont, the dramatist, was a Member of this Inn, and in 1612 he wrote the Masques performed by this Inn and Gray’s Inn before King James at Whitehall, in honour of the marriage of Princess Elizabeth and the Count Palatine of the Rhine. This Masque he dedicated to Sir Francis Bacon, who represented Gray’s Inn in its preparation.

The grey walls of Paper Buildings; the plain yellow brick of Crown Office Row; the stock-brick of Mitre Court, the Goldsmith Buildings that have supplanted the dingy attic of No. 4, Inner Temple Lane, which looked through the trees upon the (now vanished) pump in Hare Court, are none of them buildings which in themselves can stir any emotion but repulsion, but they have a lasting charm and interest, for they are the sites of the homes of Elia; they are haunted by the ‘old familiar faces’ of Charles Lamb and his friends.

Charles Lamb first saw the light in No. 2, Crown Office Row, ‘right opposite the stately stream which washes the garden-foot,’ and there passed the first seven years of his life. ‘Its church, its halls, its gardens, its fountain,

its river, I had almost said, for in those young years what was this king of rivers to me but a stream that watered our pleasant places?—these are of my earliest recollections.’

The name of these buildings was derived naturally enough, because, at least from the days of Henry VII., the Clerk of the Crown occupied the Crown Office in this Inn until its removal to the Courts of Justice in 1882. The eastern yellow brick half of the row, Nos. 1, 2, and 3, was built in 1737, the western half, Nos. 4, 5, and 6, of stone in the Italian style, in 1864, by Sydney Smirke. The Row no longer extends to No. 10, where Thackeray had chambers, sharing them possibly with Tom Taylor, before he migrated to No. 2, Brick Court.

Of his old Chambers here Taylor wrote with affectionate regret when he heard of the ‘bringing low of those old chambers, dear old friend, at Ten, Crown Office Row.’

‘They were fusty, they were musty, they were grimy, dull, and dim,
The paint scaled off the panelling, the stairs were all untrim;
The flooring creaked, the windows gaped, the doorposts stood awry,
The wind whipt round the corner with a wild and wailing cry.
In a dingier set of chambers no man need wish to stow,
Than those, old friend, wherein we denned at Ten, Crown Office Row.’

The present Mitre Court Buildings date from 1830. At No. 16, in the old block, Charles Lamb once lived (1800), preferring ‘the attic story for the air.’ ‘Bring your glass,’ he writes to a friend, ‘and I will show you the Surrey Hills. My bed faces the river, so as by perking upon my haunches and supporting my carcass upon my elbows, without much wrying my neck, I can see the white sails glide by the bottom of King’s Bench Walk, as I lie in my bed.’ In Fuller’s Rents, now replaced by Nos. 1 and 2, Mitre Court Buildings, the Earl of Leicester, Elizabeth’s favourite, and Sir Edward Coke, the great Chief Justice, once had chambers (1588 *ff.*).^[42]

Coke was a Bencher before he became Chief Justice and wrote upon Lyttleton. Sir Thomas Lyttleton (author of the famous ‘Treatise on Tenures’) is the first name upon the list of the Benchers of the Inner Temple.

A heavy iron gate, shut at night, marks the entry to Mitre Court and what was formerly Ram Alley. Between the North side of Mitre Court Buildings and the entrance to Serjeants’ Inn are the remains of a small garden, marked by a few sickly trees. Beyond, is a passage leading into Serjeants’ Inn, which is approached by a flight of steps, and is shut off from Mitre Court by a door, which at the present day is seldom, if ever, closed. Through this private way of his, the lines of which can still be traced, the compact and wiry figure of the great Lord Chief Justice, Coke, might often have been seen passing between the two Inns.^[43]

From 1809 to 1817 Charles Lamb lived at No. 4, Inner Temple Lane, a house that has been replaced by part of the ugly Johnson’s Buildings. ‘It looks out,’ he says, ‘upon a gloomy churchyard-like Court, called Hare Court, with three trees and a pump in it. I was born near it, and used to drink at that pump, when I was a Rechabite of six years old.’

‘That goodly pile of building strong, albeit of Paper hight,’ as Lamb facetiously calls it, succeeded Heyward’s Buildings, where Selden laboured. Paper Buildings were burnt down in 1838, thanks to the carelessness of Sir

John Maule, the eccentric Judge, who left a candle burning by his bedside. Both he and Campbell, afterwards Chancellor, lost everything in the flames.

In Paper Buildings George Canning, the Statesman, and Samuel Rogers, the poet, had chambers, and Lord Ellenborough also (No. 6). The present block, by Smirke, contains the chambers of another Prime Minister in Mr. Asquith. The Inner Temple can boast yet another Premier in George Grenville, who became Prime Minister (1763) in the same year as he was elected Bench.

The name of Edward Thurlow, the rough-tongued, overbearing Lord Chancellor, is unhappily connected, like that of Grenville, with the policy which resulted in the loss of our American Colonies.

Thurlow had chambers in Fig-Tree Court, the smallest and most dismal of these legal warrens in the Temple. He died in 1806, and was buried in the Temple Church.

Amongst other great lawyers who had chambers in Paper Buildings, Stephen Lushington, Edward Hall Alderson, and Sir Frank Lockwood must be named.

Paper Buildings form the Western boundary of the 'Great Garden,' which, indeed, before the erection of buildings here, used to extend to King's Bench Walk. It stretched from Whitefriars to Harcourt Buildings and Middle Temple Lane, and from the Hall to the river wall, and if it has been narrowed by Paper Buildings, it has been elongated by the successive embankments of the River. Always carefully cultivated and planted with shrubs and roses, it remains, little altered by the passing centuries, one of the sweetest and most grateful of things—a trim garden in the midst of a grimy town. This is the scene chosen for that great and growing Flower Show, which is one of the most popular and pleasing of the social functions of the London season. The great wrought-iron gate opposite Crown Office Row is a magnificent specimen of eighteenth-century craftsmanship. It will be noticed that it bears, in addition to the winged Horse, the arms of



HALL AND LIBRARY, INNER TEMPLE

CROWN OFFICE ROW is on the left, Paper Buildings on the right. The Gardens run right down to the Thames Embankment, and are the scene of the Temple Flower Show.

Gray's Inn—a compliment to the ancient ally of this Inn, which was returned upon the gateway of Gray's Inn Gardens, and over the arch of the Gatehouse leading to Gray's Inn Road. It was upon the neighbouring terrace that the Old Benchers, of whom Lamb wrote so pleasingly, used to pace. Immediately within the railings is a sundial, which dates from the beginning of the eighteenth century. Of these 'garden gods of Christian gardens, these primitive clocks, the horologes of the first world, there is a delightful profusion in the Temple. Best known of all of them, perhaps, is that which

is borne by a kneeling black figure in a corner of the garden near the foot of King's Bench Walk. It was brought here from Clement's Inn. The oft-quoted epigram, which was one day found attached to this Blackamoor, is feeble enough:

‘In vain, poor sable son of woe,
Thou seek'st the tender tear;
From thee in vain with pangs they flow,
For mercy dwells not here.
From cannibals thou fled'st in vain;
Lawyers less quarter give—
The first won't eat you till you're slain,
The last will do't alive.’

Occasionally as I pass these many sundials, shrouded in the yellow haze of London fog, or scarce visible through the murk upon the dark walls of narrow Courts, I find myself repeating Edward Fitzgerald's mot, when, after a wet week spent with James Spedding at Mirehouse, he gazed reflectively upon the sundial in the garden there, and observed: ‘It *must* have an easy time of it.’

Fires, frequent and disastrous, have destroyed nearly all the old buildings in the Inner Temple. Only the Church and a fragment of the Hall survive from medieval days. The Great Fire (1666), which left the Middle Temple almost unscathed, wrought devastation in the Inner. The Inn was then rebuilt with great rapidity, the erection of Chambers being left to the enterprise of Members, as before, whilst the Society as a whole devoted itself to the construction of the Library and Moot-Chamber beneath. In the fire of 1678 the old Library was blown up with gunpowder in order to save the Hall.

The present Inner Temple Hall is a crude, pseudo-Gothic structure, which was designed by Sydney Smirke, and was opened by the Princess Louise in 1870. It supplanted the restored and tinkered remains of the old Hall. For the ancient Refectory of the Knights Templars stood in the time of Henry VII. on the same site as this Hall, and does, indeed, form the nucleus of it.^[44] The Clock Tower, at the East end of the Library, which forms one side of the nondescript Tanfield Court, perpetuates an ancient tower, which was surmounted by a turret built of chalk, rubble, and ragstone, like the Church, and carried a bell under a wooden cupola. It stood near to this spot, and was attached to the Treasurer's house. The feeble architecture of the

exterior is agreeably at variance with the fine interior of the Hall, with its open timber roof and handsome screen. Upon the panelled walls, like those of the Middle Temple Hall, are painted the coats of arms of past Treasurers and Readers, in perpetuation, as it were, of the old custom of the Knights Templars, who used to hang their shields upon the walls when they sat two by two at dinner in the old Hall, wherein, as the Accusers averred, the Novices of the Order were compelled to spit upon the Cross, to kiss an Idol with a black face and shining eyes, and to worship the Golden Head kept in the Treasury adjoining. The doors in the panelling at the East End lead now to nothing more thrilling than Parliament Chambers—‘a handsome set of rooms, the walls of which are covered with portraits and engravings of legal luminaries.’^[45]

In the minstrel gallery hang some old drums and banners, which serve to remind us of the martial achievements of the Lawyers, when ‘forth they ride a-colonelling.’ Two very richly carved doors at the north and south entrances to the Hall, one of which bears the date 1575, are reasonably supposed to be surviving fragments of the great carved screen, said by Dugdale to have been erected in the Hall in 1574.

The four fine bronze statues of Knights Templars and Knights Hospitallers are by H. H. Armstead (1875). The Hall is rich in portraits. Beneath a large painting of Pegasus are portraits of King William III. and Queen Mary, of Queen Anne, George II., and Queen Caroline. Portraits of Sir Edward Coke and Sir Thomas Lyttleton, Sir Matthew Hale, Sir Randolph Carew, and Sir Simon Harcourt, among others, hang upon the walls.

The old Hall of this, as of the other Inns, was frequently the scene of Revels and Merry-making.^[46] Here, as elsewhere, Christmas Feasts formed prominent incidents in the life of the Society, and one such has been described by Gerard Leigh (1576), when the guests were served ‘with tender meats, sweet fruits and dainty delicacies confectioned with other curious cookery ... and at every course the Trumpeters blew the courageous blast of deadly War, with noise of drum and fyfe; with the sweet harmony of Violins, Sackbutts, Records and Cornetts, with other instruments of music, as it seemed Apollo’s harp had tuned their stroke. Thus the Hall was served after the most antient of the Island.’ And it was in the old Hall of the Inner Temple that the first performance of the first English tragedy took place in 1561. This was ‘Gorboduc; or Ferrex and Porrex,’ and it was

written by two distinguished members of this Society: Thomas Norton and Thomas Sackville. A hundred years later Sir Heneage Finch, afterwards Lord Chancellor and Earl of Nottingham, 'the Oracle of Impartial Justice,' gave in this Hall the most magnificent 'Reader's Feast' upon record.

King Charles came in his barge from Whitehall, with his Court, and was received at the Stairs by the Reader and the Lord Chief Justice in his scarlet robes. He passed into the Temple Garden through rows of Readers' servants, clad in scarlet cloaks and white Tabbie doublets, and the Gentlemen of the Society in their gowns, whilst music and violins sounded a welcome to His Majesty. The Duke of York was also present upon this occasion, and so delighted was he with the entertainment that he, together with Prince Rupert, was at once admitted to the Society, and presently became a Bencher.

Sir Heneage Finch was the most famous of a long line of distinguished members of that family who have been Benchers. It is characteristic of the Inner Temple that it has and always has had a tendency for members of the same families to supply the vacancies among the Benchers. The Pollocks, Wests, Wards, and Finches point back to a long roll of ancestors distinguished in the Law and the annals of the Temple. This tendency coincides with the aristocratic nature of the Society. For many centuries a candidate for Bencher was required to show at least three generations of 'gentle blood,' a regulation which affords a curious contrast to the more democratic nature of Oxford and Cambridge. In Elizabeth's reign it was ordered that 'none should be admitted of the Society, except he were of good parentage and not of ill-behaviour.' Such another Inner Temple family was that of the Hares, who lived for generations in Hare Court, the south side of which was built by Nicholas Hare about 1570. Hare Court, together with the rooms once occupied by Chief Justice Jeffreys, has been recently rebuilt. A doubtful portrait of that ferocious Judge by Sir Peter Lely was presented to the Inn by Sir Harry Poland, K.C.

The exterior of the Library Building is not imposing. It contains on the ground and first floors the Parliament Chambers, offices, and lecture-rooms, and on the second floor a very fine library, admirably arranged in a room perfectly suited to the student.

Very early indications of a Library existing with chambers under it are found in the records. It stood at the west end of the Hall. A later building,

apparently, at the east end of the Hall was afterwards used as the Library, and was rebuilt in 1680, after having been destroyed by gunpowder in 1678 in order to save the Hall from the fire in that year.

The north wing, upon the site of No. 2, Tanfield Court, was opened in 1882. A case containing a collection of 'Serjeants' Rings' is of some interest. In the anteroom to the Parliament Chambers hangs a portrait of William Petyt, a former Treasurer of the House and Keeper of the Records at the Tower, who bequeathed his exceedingly valuable collection of historical documents, etc., to the Inn. A fine piece of carving by Grinling Gibbons, as it is supposed, which is placed in this anteroom also, bears the inscription 'T. Thoma Walker Arm. A.D. 1705,' and was the result of a payment of £20 5s. made by Sylvester Petyt, Principal of Barnard's Inn and brother of William, as executor of the latter's will.^[47]

The narrow alley that leads from Fleet Street through Mitre Court and Mitre Buildings, gives little promise of the broad open expanse of gravel



NO. 5, KING'S BENCH WALK, INNER TEMPLE
A DOORWAY, probably by Sir Christopher Wren.

walks, sparsely dotted with plane-trees, and narrowing down to a distant glimpse of gardens, and of the River beyond, to which it guides our feet.

This stretch of gravel walks is enclosed on the west by Paper Buildings and on the east by the buildings of the King's Bench Walk. The lower half of the latter, below the gateway leading into Temple Lane, and facing the Gardens, dates from 1780, and is quite devoid of architectural merit or even any pretence to it; but the northern section is composed of houses of rare excellence. The fine proportions, the appropriate material, the handsome doorways of these houses, and the graceful iron lamp-brackets in front of them (Nos. 3, 4, 5, 6), all proclaim the influence of a great master in a good

period. The doorways of Nos. 4 and 5 are, indeed, with every probability, attributed to Sir Christopher Wren, whose genius was largely employed in the re-building of the Temple. For the Fire of London reached the Temple two days after it broke out, and almost completely destroyed all the buildings east of the Church, King's Bench Walk included. The houses then were quickly rebuilt, but, as an inscription on a tablet on No. 4 records, only to be burnt down again in 1677. No. 4 was rebuilt in 1678, No. 5 in 1684.

In No. 1, James Scarlett, Lord Abinger, had chambers; at No. 5, William Murray, Lord Mansfield, of whom Colley Cibber, parodying the lines of Pope, wrote:

‘Persuasion tips his tongue whene’er he talks,
And he has chambers in the King’s Bench Walks.’

Another famous lawyer who had rooms here was Frederick Thesiger, Lord Chelmsford. The most remarkable of the cases tried by him is said to have formed the basis of Samuel Warren’s ‘Ten Thousand a Year,’ a novel whose title we most of us know now better than its contents. The author of this popular novel, with its legal satire of Quirk, Gammon, and Snap, was written at No. 12, King’s Bench Walk, in what Warren calls ‘this green old solitude, pleasantly recalling long past scenes of the bustling professional life’;—though how King’s Bench Walk can be called a solitude, or why a solitude should recall the bustling professional life, deponent sayeth not. Warren was treasurer in 1868. A painting, attributed to Hogarth, of King’s Bench Walk in 1734, hangs in the Benchers’ Committee Room, together with a painting of Fountain Court, also attributed to him. At No. 3 lived Goldsmith in 1765.

And now, since we have drifted again from law to poetry, mention must be made of two other poets whose names are connected with the Inner Temple. About the year 1755 William Cowper left his lodging in the Middle Temple, and took Chambers in the Inner, remaining there till his removal to the Asylum ten years later. That was nearly three hundred years after the Father of English poetry is said to have lived here. For, if we could believe the life of Chaucer prefixed to the Black Letter Folio of 1598, both he and Gower, the poet, were members of the Inner Temple. ‘For not many years since Master Buckley did see a record in the same house, where Geoffrey Chaucer was fined two shillings for beating a Franciscan Friar in Fleet Street.’ Master Buckley was Chief Butler of the Inner Temple (1564), and

as such performed the functions of Librarian. He may, therefore, quite well have seen a record to this effect. But there is no reason to identify this Chaucer with the poet.

CHAPTER VI

LINCOLN'S INN AND THE DEVIL'S OWN

IT was probably the removal of the Knights Templars to the New Temple that gave rise to the construction of New Street. Some thoroughfare connecting their old property in Holborn with their new premises and the river was necessary to their convenience and their trade. Thus, probably through their instrumentality, New Street, or, as we now call it, Chancery Lane, came into existence, and, connecting two of the main arteries leading from the western suburbs into the City, and cutting through the very heart of the area occupied by the Inns of Court, it soon developed into what Leigh Hunt described as 'the greatest legal thoroughfare in England.'^[48] Chancery Lane, or Chancellor's Lane, as the name appears in its earlier form, is said to have been called after a Bishop of Chichester, who was Chancellor of England at the end of the thirteenth century. A house and garden, near the southern end of Chancery Lane, was, we know, the town residence of the Bishops of Chichester. Here dwelt St. Richard, Bishop of Chichester (1245-1253), 'in true possession thereof in right of his Church of Chichester.' The name of Chichester Rents perpetuated the memory of this episcopal habitation. Possession of this town residence of the Bishops of Chichester was finally acquired by the lawyers about the middle of the sixteenth century. A few years later (1580) they obtained the freehold of the open space known as Coney Garth, or Cotterell's Garden. But it is not at all clear how the Society of Lincoln's Inn came into occupation of these premises, or how its name had come to be attached to property properly belonging to the See of Chichester and St. Giles's Hospital. In the absence of any other obvious explanation, we must look back for the origin of the Society of Lincoln's Inn to a group of lawyers housed in an Inn belonging to the Earl of Lincoln, and must try to account for their presence on their present property by the theory of a migration from their first hostel. This theory fortunately presents no difficulty, and it is supported by various facts and indications.

The parent house of Lincoln's Inn would appear to be the Inn of the great Justiciar Henry de Lacy, Earl of Lincoln, which stood to the south-east

of St. Andrew's Church. It was natural and necessary for the great Administrators of the Law to gather about their Courts a following of trained lawyers to help them to enunciate the theory, and to perform the business thereof. As the followers of Le Scrope, the great Justice of King's Bench, settled in Scrope's Inn, and the followers of De Grey, the Justiciar of Chester, in Grey's Inn, so about the residence of the great Justice Henry de Lacy, Earl of Lincoln, in his Manor of Holborn, congregated the forerunners of the Society of Lincoln's Inn, students of law and practisers in the Justiciar's Court.

The hostel of the Earl of Lincoln stood at the north end of Shoe Lane, near Holeburn Bridge. The buildings were erected upon the ruins of the Monastery of the Blackfriars. The Blackfriars had settled themselves in Holborn, west of the north end of Chancery Lane, and gradually amassed property that reached down to the house of the Bishops of Chichester. But presently they followed the example of the Knights Templars, and moved nearer the River to the site of what is still called Blackfriars, just within the City Wall. Their Holborn property they sold a few years later (1286) to the Earl of Lincoln, who undertook to pay 550 marks, in instalments, to the Friars, 'for all their place, buildings and habitation near Holeborn.'^[49]

Now, of Henry, Earl of Lincoln, tradition says that he developed his new estate by cultivating the gardens and orchards upon it, and that he made large sums by selling the fruit grown there. But it was, no doubt, to the labours of the former monkish owners, the preceding Blackfriars, that the gardens and orchards of the Earl of Lincoln owed their so rich and wonderful harvests.

Lincoln, it is said, had so great a love for Lawyers that his house was filled with students of the Law. He had already arranged, according to this tradition, to transfer his house to them entirely, when, in 1311, he died. Such, according to Dugdale, was the story current 'among the antients here.' This tradition represents the fact that the Justiciar gathered about him a nucleus of men conversant with the Law, who should be capable of transacting the business of his Court, and who would naturally make it part of their business to train others to their trade. Equally naturally such Lawyers of Lincoln's Inn would, in accordance with the almost invariable custom of medieval times, form themselves into a Guild, the Society of Lincoln's Inn. It is probable, then, that the students 'apt and eager,' whom the Earl had gathered about him, formed themselves into the very Society

which still exists, though it has changed its habitation. That change did not take place immediately after the Earl of Lincoln's death. Through Lincoln's daughter and heiress, Alesia, all his property passed to Thomas, Earl of Lancaster. The great quantities of wax and parchment recorded, among his household expenses,^[50] as used in his Hostel at Shoe Lane, would seem to indicate that the legal business was still carried on here in 1314. Before entering upon the inheritance of Alesia, the Earl of Lancaster had already acquired the property of the Knights Templars, which included not only the New Temple, but also nearly the whole of the western side of New Street or Chancery Lane. Upon the attainder of the Earl of Lancaster in 1321, all his property, including Lincoln's Inn in Shoe Lane, became the escheat of the King. This was subsequently restored to Alesia, who was known as Countess of Lincoln.

The business of the Law had by this time become centred round Chancery Lane, and the Society of Old Lincoln's Inn may well have deemed it desirable to migrate southwards. In such case it would be natural to find them settling upon a site which was likewise part of the property of the Earldom afterwards the Duchy, of Lancaster.

Once in full possession of their property, the Lawyers turned with great energy to the business of building. They began to enclose their domain with lofty brick walls. The great Gateway, a Hall, a Library, and a Chapel were begun in the reign of Henry VII. The material chosen was the native red brick of London, so admirably suited to the Town, and the style adopted was that Tudor treatment of brick so admirably suited to the material. The Lawyers were guided in their choice, no doubt, by the possession of a Brick-field in the Coney Garth (= Searle's Court, now New Square).

One of the chief features of Lincoln's Inn is the Tudor Gateway, which forms the main entrance into Chancery Lane. The liberality of Sir Thomas Lovell, one of the Benchers of the Society, and Treasurer of the Household of Henry VII., was chiefly responsible for its erection. This magnificent Gatehouse, with its flanking Towers of brick, built in 1518, whilst Wolsey was Chancellor, narrowly escaped destruction, in obedience to the imperious will of Lord Grimthorpe and his Gothic followers.

Fortunately it has survived, and, with the exception of the magnificent Gatehouses of Lambeth Palace and St. James's Palace, remains almost

alone as a specimen of this period of architecture in London, when the Gothic was yielding place to the Palladian style.

The walls of the massive tower, four stories high, are striped with diagonal lines of darker brick. The entrance, under an obtusely-pointed arch, was originally vaulted. The groining has disappeared, but the front still bears, in a heraldic compartment over the arch, the arms of Henry VIII. within the Garter, and crowned, having on the dexter side the purple lion of Lacy, Earl of Lincoln, and on the sinister the arms and quarterings of Sir Thomas Lovell.

The bricks of which this Gatehouse and the outer wall of Lincoln's Inn are built have an interest beyond their colour and their age. For upon the task of laying them 'Rare Ben Jonson'



OLD SQUARE, LINCOLN'S INN

SHOWING the interior side of the gateway, built in 1518. Ben Jonson worked as a bricklayer on this gatehouse.

is said to have laboured, trowel in hand and book in pocket. Aubrey, in his 'Lives,' records that Ben Jonson worked some time with his father-in-law, a bricklayer, 'and particularly on the garden wall of Lincoln's Inne, next to Chancery Lane.... A bencher, walking thro' and hearing him repeat some Greeke verses out of Homer, and finding him to have a wit extraordinary, gave him some exhibition to maintain him at Trinity College in Cambridge.' This is only a tradition, though a very likely one; and, as Leigh Hunt says, tradition is valuable when it helps to make such a flower grow out of an old wall.

Within the Gatehouse a small Quadrangle is formed by the Chapel, Old Library, and the two wings of Old Buildings. Octagonal turret-staircases fill the corners of these brick buildings, and in the turret at the South-East corner lived Thurloe, who was Secretary of State to Oliver Cromwell. A tablet in Chancery Lane, on the outer face of the building, records this fact, whilst the Treasurership of William Pitt in 1794 is apparently thought so little worthy of memorial that the sundial which once commemorated it has been allowed to disappear.^[51] A portrait by Gainsborough of that great Statesman hangs in the Benchers' Room. Tradition has it that Oliver Cromwell once had chambers in Lincoln's Inn, an idea which probably sprang from the fact that Richard Cromwell was a student here in 1647.

The brick buildings forming this Court within the Gatehouse were constructed during James's reign, and it was then decided to build 'a fair large chapel, with three double chambers under the same,'^[52] in place of the one then standing, which had grown ruinous, and was no longer large enough for the Society. This older chapel, which did not stand on precisely the same site, was dedicated to St. Richard of Chichester. The new chapel was raised on arches, which form in themselves a tiny cloister, and produce a pleasing and unexpected effect amid these dusty purlieus of the Law.

The Chapel of Lincoln's Inn, which was designed, according to Dugdale, by Inigo Jones, in his Gothic manner, and in which Dr. Donne, the witty prelate and great poet, preached the first sermon on Ascension Day, 1623, suffered even more than the Church of the Templars at the hands of the destructive Gothic Revivalists. The Chapel was needlessly enlarged. The

buttresses were stuccoed. The beautiful proportions, which Inigo Jones, like all the truly great architects, knew how to impart to his buildings, were wantonly and inexcusably destroyed.

John Donne had entered as a law student at Lincoln's Inn, and, after taking Orders, he was appointed preacher to the Inn. Before this, when Secretary to Lord Keeper Egerton, he had been secretly married to Anne, Lady Egerton's niece. Ruin stared him in the face when, on discovery of the marriage, he was dismissed. With a characteristic 'conceit' he 'sent a sad letter to his wife,' as Walton^[53] says, 'and signed it John Donne, Anne Done, Un-done.'

Having taken Orders at the instance of King James, he was soon afterwards 'importuned by the grave Benchers of Lincoln's Inn, who were once the companions and friends of his youth, to accept of their lecture.' Before he finally left the Inn to be Dean of St. Paul's, he laid the foundation-stone of the new Chapel, and at the consecration ceremony, 1623, Ascension Day, he preached a sermon on the text, 'And it was at Jerusalem, the feast of the dedication, and it was winter.' So great was the throng of listeners that 'two or three were endangered and taken up dead for the time with the extreme press.' But Donne, great preacher as he was, lives, not by his sermons, but by his poems and by the Life with which the pen of Izaak Walton conferred immortality upon him.

Like the Master of the Temple, the Chaplain of Lincoln's Inn presides over the Chapel and attends in Hall during term-time. A Preachership was instituted in 1581, and the office has been filled by such men as Reginald Heber, Bishop of Calcutta and hymnologist, and Thomson, Archbishop of York. Amongst earlier Preachers may be mentioned Herring (1726), afterwards Archbishop of Canterbury, and Warburton (1746), Bishop of Gloucester, who founded the Warburton Lectures on Religion, which are annually delivered in the Chapel.

The old coloured glass, representing Old Testament figures and the Twelve Apostles, made by Hall, of Fetter Lane, but probably designed by the Flemish artist, Bernard van Linge, is very good. It is contemporary with the original building, and was paid for by subscribers, who included in their number Noy, the Attorney-General, and Southampton and Pembroke, the friends of Shakespeare.

In the Vaults lie Prynne, whose grave is unmarked, and the youthful daughter of the great Lord Brougham (1839), the only woman ever buried here. Lord Wellesley composed a Latin epitaph to grace her tomb. It has no great merit as a composition.

The Old Hall stands at right angles to the Chapel. Older than the Gatehouse itself, it has been quite ruined by frequent alterations, restorations, and by hideous plastering. It was stuccoed by Bernasconi about the year 1800. 'The Looover or Lanthorn,' according to the Records of the Society, was 'set up in the sixth of Edward VI.'

That the same customs obtained in Lincoln's Inn as in the other Inns, and were celebrated in this Hall, is indicated by an order of the Society during the reign of Henry VIII., that the 'King of Cockneys on Childermass Day should sit and have due service; and that he and all his officers should use honest manner and good order, without any waste or destruction making, in wine, brawn, chely, or other vitails ... and that Jack Straw and all his adherents should be banisht and no more be used in this House.'

It was in this Hall that the Lord Chancellor used to sit and hold his Court, under a picture by Hogarth of 'S. Paul before Felix' (1750), before the new Law Courts were built.

Adjoining the Hall, on the South side, was the Library. The building is now let out in chambers. This Library was founded by John Nethersale, a member of the Society, who bequeathed forty marks to be spent on the building and on Masses for the repose of his soul (1497). Ever since, it has been increased, and, passing from Old Square to Stone Buildings, and from Stone Buildings to its present noble home, has grown in wealth and usefulness.

Many of the volumes still retain the iron rings attached to their covers, by which, in old times, books in a Library were chained to the desks—as may be seen in the College and University Libraries at Oxford and Cambridge. The Library was further enriched by Sir Matthew Hale, Chief Justice, 1671, who bequeathed his MSS. to it.

In 1787 the Library was moved to Stone Buildings, and finally to a noble building adjoining the New Hall, which Hardwick had just erected. The fair proportions of this building were unfortunately ruined by Sir Gilbert Scott, who, backed by Lord Grimthorpe, altered them to 130 feet by 40 feet. This new Library and the magnificent Hall adjoining



THE NEW GATEWAY AND HALL OF LINCOLN'S INN

THE Hall was built in 1843, and opened by Queen Victoria on the occasion when Prince Albert was created a Bencher.

it were erected in 1843 on the west side of that garden, where Ben Jonson is said to have laboured; and thus, whilst the southern half of the view into Lincoln's Inn Fields was sacrificed by the Society, a beautiful site, amidst broad green stretches of lawns, shady trees, and flower-beds, was secured for their new blocks. Moreover, the Benchers took great and praiseworthy pains^[54] to procure a good design, which should harmonize with the existing buildings 'in the style of the sixteenth century, before the admixture of Italian architecture.'^[55] The result of much deliberation and

delay was a singularly successful design by Philip Hardwick, the architect who built the classical portions of Euston Station. Nobly proportioned, constructed of striped brick in the Tudor fashion, with stone dressings, so as to harmonize fitly with the Gatehouse opposite, and decorated with six bays, a projecting window at the north end, and a great south window, fine in detail and fine in its proportions, Lincoln's Inn Hall is a building as distinguished as it is surprising, when we remember that it is a product of the year 1843.

This Hall was opened with great ceremony by Queen Victoria, and upon that occasion Prince Albert was created a Bencher of the Inn. Within, as without, the Hall is superb; the proportions and the materials are excellent. The roof is elaborately carved, and ornamented with colour and gilt. The windows are rich in stained glass; the royal arms figure in the centre of the beautiful south window, the others are filled with old glass. In some directions, it must be confessed, the decoration is a trifle overdone, especially the heraldic decoration. The arms of the Inn, fifteen *fers de moline* on a blue ground, with the shield of Lacy 'or, a lion rampant purpure,' are repeated with bewildering frequency in every material.

Above the daïs is the great fresco 'School of Legislation' (1852). G. F. Watts had proposed to paint the larger hall of Euston Station, gratis, with a series of frescoes illustrating the 'Progress of Cosmos.' The Directors of the London and North-Western Railway fought shy of so unbusinesslike a proposal. Nor can it be said that they were not in some degree wise, for London atmosphere is by no means suitable for fresco-work. The work of art, which the Directors rejected, took shape upon the north wall of the Hall of Lincoln's Inn. For the Benchers accepted a similar offer from Watts, and that generous-minded artist adorned their Hall with the greatest of English fresco-decorations: 'Justice, a Hemicycle of Law-givers,' a group of legislators from Moses to Edward I. The painting has suffered sadly from the acids of the smoke-laden compost known as London air.

The Benchers' rooms, delightful sanctums that remind one of Oxford Common-rooms, contain some very fine portraits of distinguished members of the Inn: Chief Justice Rayner, by Soest; Pitt, by Gainsborough; Lord Erskine, by Sir Thomas Lawrence; and later portraits by Cope, Sargent, Watts and others, of Lord Davey, Lord Russell of Killowen, Sir Frank Lockwood, Lord Macnaghten, etc. The men famous in Law, in Letters, and in Politics, who have been members of Lincoln's Inn, are too numerous to

mention. Of lawyers, besides Lord Brougham, there are Murray, Lord Mansfield, Lord Chancellor, the Earl of Bathurst, and Lord Campbell. Canning, Perceval, Disraeli, Gladstone, Daniel O'Connell, William Penn, and William Prynne stand out among the makers of history who have been members of this Inn; whilst, among men of Letters, the George Colmans (father and son), Horace Walpole, Charles Kingsley, and George Wither, are amongst the most prominent, though the latter produced his best-known poem in the Marshalsea Prison. And another shade, one may fancy, haunts the green fields of Lincoln's Inn and the busy, muddy thoroughfare of Chancery Lane: it is that of Sir Thomas More, who passed from Oxford and New Inn to enter at Lincoln's Inn in 1496, and was presently appointed Reader at Furnival's Inn. Here, in the intervals of his political career, he made a very large income at the Bar.

The south end of the Hall faces the garden, which is enclosed by the old houses of New Square. The fig-tree and the vine, like some stray survivals from the monkish vineyard, flourish against the soot-blackened bricks at the corner of these old houses, which, in pleasing calm and quiet dignity, surround the well-kept lawn and flower-beds. An empty basin in the centre of this garden marks the spot which was once adorned by a sun-dial and fountain, said to have been designed by Inigo Jones. By Inigo Jones were certainly designed the noble houses on the western side of the great green expanse of Lincoln's Inn Fields—houses with 'Palladian walls, Venetian doors, grotesque roofs, and stucco floors.' I believe some of these houses contain beautiful work in the ceilings, mantelpieces, etc.

The whole Square, indeed, was 'intended to have been built all in the same style and taste, but, unfortunately, not finished agreeable to the design of that great architect, because the inhabitants had not taste enough to be of the same mind, or to unite their sentiments for the public ornament and reputation' (Herbert).

Just as the Templars rented a field adjoining their buildings which they used for tilting, so, beyond the houses of Henry Lacy, Earl of Lincoln, and the Bishop of Chichester, lay a meadow, and beyond it again the Common, still known as Lincoln's Inn Fields.

Before 1602 there were no buildings on the north side of Lincoln's Inn, and, so late as the reign of Henry VIII., so rural were the surroundings that

rabbits abounded there, and had, indeed, to be preserved from the sporting proclivities of the students.

In Great Turnstile and Little Turnstile we have the names of narrow lanes which still recall the days when Lincoln's Inn Fields were fields indeed, and the Turnstiles gave access to a path which ran under the boundary wall of the Inn, and formed a short cut to the Strand.^[56] The enclosing of the Fields with buildings caused much heart-burning among the Benchers and Students of Lincoln's Inn, and in 1641 the Society presented a petition to Parliament, complaining of the great increase of buildings in their neighbourhood, and 'the loss of fresh air which the petitioners formerly enjoyed.' But Parliament turned a deaf ear to the stifling Lawyers, and the building went on unchecked. A century later Gay, in his 'Trivia,' recounted the dangers of the neighbourhood:

'Where Lincoln's Inn's wide space is railed around,
Cross not with venturous step; there oft is found
The lurking thief; who while the daylight shone,
Made the wall echo with his begging tone:
That crutch which late compassion moved, shall wound
Thy bleeding head, and fell thee to the ground.'

No. 13, Lincoln's Inn Fields is one of the most fascinating, as it is one of the richest, of the smaller museums that I know. It is the house of an architectural and artistic genius, filled with the treasures he collected, amidst which he loved to live and work. It is preserved for us as he left it. For this is the home which Sir John Soane built for himself, and in which he died, at the age of eighty-three, in 1837, bequeathing his house and treasures to be preserved as a trust for the Public, and more especially for Amateurs and Students in Painting, Sculpture, and Architecture.

Sir John Soane started life as an office boy at Reading; he was the Architect of the Bank of England and the Dulwich Galleries; he surrounded himself with a school of young architects, and for their instruction and his own delight ransacked Europe for treasures of art, both antiques and of his own day. The scope of this Collection is as striking as its very high level of excellence. Chippendale furniture, French fifteenth-century glass, a noble architectural library, and many historical curios—these are the least of the lovely things he has given to us. Beautiful bronzes and Greek and Etruscan vases are balanced by the work of Wedgwood and Flaxman; superb illuminated manuscripts by the exquisite Mercury of Giovanni di Bologna,

and curious ancient gems, upon one of which a head is cut so cunningly that whichever way you turn its gaze follows you. We pass from the marvellous alabaster tomb of Seti I., King of Egypt about 1370 B.C., and Greek and Roman sculptured marbles, to a room in which first editions of 'Paradise Lost' and 'Robinson Crusoe' confront Tasso's manuscript, Reynolds' sketch-book, and the folios of Shakespeare's plays which Boswell possessed. And yet we have taken no account of the pictures—of Sir Joshua Reynolds' 'Snake in the Grass,' of Canaletto's 'Venice' and Turner's 'Van Tromp's Barge,' of Watteau's 'Les Noces,' of Raffael's Cartoons—of a score of pictures and portraits by first-rate artists; and yet there remains that wonderful little room, which is lined by the masterpieces of Hogarth—'The Election Scenes' and the 'Rake's Progress.' It is a wonderful place, this London, in which such a treasure-house can lie, unnoticed and almost unvisited, in the centre of an old square in the City.

It is somewhat outside the scope of this book to deal with the dwellers in Lincoln's Inn Fields, but mention may be made of Thomas Campbell, the poet, who had chambers at No. 61, whilst No. 58 was the House of Forster, the biographer of Dickens, which is described in 'Bleak House': 'Formerly a house of State ... in these shrunken fragments of its greatness lawyers lie, like maggots in nuts.'

More fascinating than all is that 'Old Curiosity Shop' which still survives upon a tiny triangular plot amidst the ruin of tenements that have been lately razed to the ground. It proclaims itself the house immortalized by Dickens, and may very well have been the shop which suggested to him the scene of his 'Old Curiosity Shop.' It is an ancient building—an old red-tiled cottage, possibly as old as those superb houses of Inigo Jones, ornamented with the Rose of England and the Fleur-de-Lys of France, on the west side of Lincoln's Inn Fields, which were put up a year before Charles laid his head upon the block in Whitehall.

A legend, however, says that it is of later date, a relic of a dairy once belonging to that famous Louise Renée de Perrincourt de Queronnaille, favourite of Charles II., who was created by him Duchess of Portsmouth. Portsmouth House stood opposite, and was believed to have been purchased by the Duchess from the proceeds of a ship and cargo presented to her by King Charles. But whether this was so or not, and whether the little shop in question is the actual begetter of Dickens's vision, we cannot say with certainty. We need at least say nothing to discourage the belief which guides

the feet of the lover of Dickens to Portsmouth Street, there to purchase souvenirs and conjure up the vision of the dark little shop, with its low ceiling and odd, unexpected corners, once more littered with knick-knacks and second-hand furniture in all stages of breakage and decay, and little Nell and her tender old grandfather sitting there again in the candlelight.^[57]

It remains to mention the Northern wing of Lincoln's Inn, the rectangular Court which lines Chancery Lane on the one side and faces the green sward of the Garden on the other. 'The Terrace walk,' says Herbert (p. 301) truly enough, 'forms an uncommonly fine promenade ... and the gardens themselves, adorned with a number of fine, stately trees, receive a sort of consequence from the grandeur of the adjoining pile.' This is Stone Building, and is the outcome of a design to rebuild the whole Inn in 1780 in the Palladian style. The design was not carried out, and even this section of the undertaking remained incomplete for sixty years. Even now much of the building is of brown brick. In 1845 Hardwick, who was then carrying out his fine Gothic design for the Hall, completed the façade commenced by Sir Robert Taylor. The fine Corinthian pilasters of freestone, the simple pediments, and the chaste greys and pearly whites of the plain stone, thrown into strong relief by the soot-blackened portions of the building where it is not exposed to the cleansing effect of wind and rain, render this nobly-proportioned



**STONE BUILDINGS, LINCOLN'S INN, FROM THE
GARDENS**

COMMENCED in 1780 as part of a great scheme of rebuilding the whole Inn in the Palladian style. The illustration shows the so-called 'Pitt' sundial.

Court delightful to the eye, and, contrasting with the warm reds of the other buildings in Lincoln's Inn, convince one, if one needs convincing, that red-brick and Portland stone are the only materials suitable for London architecture.

In the Eastern wing of Stone Buildings is the Drill Hall of the Inns of Court Volunteers, and here are preserved various memorials of the many Volunteer Associations which have been connected with the Inns of Court.

So far back as the time of the Spanish Armada an armed force was raised amongst the barristers and officers of the Inns for the defence of the country.

A copy of the original deed of this association of lawyers to resist the threatened invasion (1584), relating to Lincoln's Inn, hangs in the Drill Hall. The original is still in possession of the Earl of Ellesmere, whose ancestor, Thomas Egerton, then Solicitor-General and afterwards Chancellor, was the first to sign it.

Upon the arrest of the Five Members in 1642, five hundred warlike Lawyers marched down to Westminster to express their determination to protect their Sovereign, Charles I.

Upon the outbreak of the Civil War, Charles, who from the beginning of his reign had always encouraged the Benchers and Students to exercise themselves in arms and horsemanship, granted a commission to Edward, Lord Lyttleton, Lord Keeper of the Great Seal, to raise a regiment of infantry from 'the Gentlemen of the Inns of Court and Chancery.' Lyttleton died of a chill contracted whilst drilling his recruits, and was succeeded by Chief Justice Heath. A regiment of foot 'for the security of the Universitie and Cittie of Oxford,' and a regiment of cavalry 'very fine and well-horsed,' to guard the King's person, did not exhaust the fighting capacity of the Lawyers, for the majority of the Bar, who saw the real issue at stake in the country, sided with the Parliament. Bulstrode Whitelock, Lieutenant-General Jones, and Commissary Ireton were Gentlemen of the Robe, who rose to eminence in the service of the Commonwealth. John Hampden, we have seen, was a member of the Inner Temple; Oliver St. John was a member of Lincoln's Inn, and so, too, tradition says, was Oliver Cromwell, who, when Captain of the Sleppe Troop of the Essex Association, occupied chambers in the old Gatehouse here.

Dugdale quotes some orders that were drawn up, in the reign of King James, for establishing 'the Company of the Inns of Court and Chancery in their exercises of Military Discipline,' among which was the wise provision that 'if anyone be a common swearer, or quarreller, he shall be cashiered.' The number was limited to 600, and 'It is intended that no Gentlemen are to be enjoined to exercise in this kind, but such as shall voluntarily offer themselves, to be tolerated to do it at their own voluntary charge.' The officers were to be chosen by their Captain; every House to give their own

Gentlemen their rank, and the priority of the Houses to be decided by chance of dice.

During the rising of the Young Pretender in '45, Chief Justice Willes raised a regiment 'for the defence of the King's person.' The occasion for arms passed away quickly, and it was not till 1780 that the barristers and students found themselves compelled once more to meet force by force. For the Gordon Rioters, after sacking Lord Mansfield's house in Lincoln's Inn Fields, set fire to a distillery belonging to a papist, near Barnard's Inn, and the gutters of Holborn ran with blazing spirit, of which the rioters drank until they died. It was to escape the fury of the mob that John Scott, afterwards Lord Eldon, escorted his lovely young wife from his house in Carey Street to the Middle Temple, of which he was a member. Her dress was torn, her hat lost, and her hair dishevelled by the violence of the rioters. 'The scoundrels have got your hat, Bessie,' cried the gallant husband, who had made a runaway match with her, 'but never mind, they have left you your hair!'

So long as the riots continued, the Lawyers kept armed watch in the Halls of their respective Societies. At the Inner Temple the mob forced the gate, 'and would no doubt have plundered and burnt the place as Wat Tyler's followers did four centuries before, had not a sergeant of the Guards, who acted as military instructor to the law-gentlemen, called out to the armed Templars: "Take care no gentleman fires from behind!" The rioters, fearing that some ambush had been prepared for them, took to their heels and never again molested this sanctuary of the law. In and around Gray's Inn, a similar armed watch kept the 'No Popery' people at bay, and many years later Sir Samuel Romilly used to point out the gate where, musket in hand, he had stood sentry during some of the worst nights of the riots. The Lincoln's Inn students, it seems—or, as another account says, those of the Temple—would have joined the military in repressing the riots, but were told by one of the officers in command that he did not wish 'to see his own men shot!'^[58]

After the French Revolution, at the first rumour of invasion by the armies of the Republic, companies of Volunteers were recruited from Lincoln's Inn and the Temple. Two corps appear to have been formed—one known as the Bloomsbury and Inns of Court Association, and the other the Legal Association. The Lincoln's Inn Corps was commanded by Sir William Grant, then Master of the Rolls, who had seen service in Canada, at

the Siege of Quebec. The Temple Companies were commanded by Lord Erskine, who had served in the Royal Navy before he took to the Law.

Embodied in 1803, the Gentlemen of the Inns of Court took part in the grand Review of Volunteers in Hyde Park before the King. When the Temple Companies defiled before King George III., His Majesty asked Lord Erskine, who commanded them, who they were. 'They are all lawyers, sir,' said Erskine. 'What! what!' exclaimed the King. 'All lawyers? Then call them the Devil's Own!'

Many amusing stories are told of the Lawyer Volunteers—how Erskine used to read the word of command from the back of a paper like a brief, and how Lord Eldon and Lord Ellenborough had to be dismissed for sheer inability to learn the 'goose-step.' And it was said that when the word 'charge' was given, every member of the Corps produced a note-book and forthwith wrote down six and eightpence! Such was the origin of the subsequent Volunteer Corps, which, when the Volunteer movement came again to the front in the crisis of 1859, was enrolled as the 23rd Middlesex—a title afterwards changed to the 14th Middlesex. Upon the standard of this Inns of Court Volunteer Corps it was proposed to inscribe the appropriate phrase, 'Retained for the Defence.' Its popular title, the Devil's Own, which it still keeps, is inherited from George III.'s witticism—if it was indeed his—anent the Legal Association.

For the South African War some forty men were selected from the Inns of Court for service with the specially raised City Imperial Volunteers, popularly known as the C.I.V. In the welter of War Office rearrangements the existence of the Devil's Own has been almost miraculously preserved 'for the Defence.' But, of course, its title has been altered. The 14th (Inns of Court) Middlesex Volunteer Rifle Corps has now become the 27th London Regiment.

CHAPTER VII

GRAY'S INN

BEYOND Lincoln's Inn, across Holborn—the road which takes its name from the burn that flowed through the hollow—lies Gray's Inn, a great quiet domain, quadrangle upon quadrangle, with a large space of greensward enclosed within it.

‘Nothing else in London,’ so Nathaniel Hawthorne noted, ‘is so like the effect of a spell as to pass under one of these archways and find yourself transported from the jumble, rush, tumult, uproar, as of an age of weekdays condensed into the present hour, into what seems an eternal Sabbath. It is very strange to find so much of ancient quietude right in the monster city's very jaws—which yet the monster shall not eat up—right in its very belly indeed, which yet in all these ages it shall not digest and convert into the same substance as the rest of its bustling streets.’

Yet the site of Gray's Inn lies outside the City Boundary, and the Chambers, where Francis Bacon wrote, were set in a quiet spot amidst gardens, beyond which stretched Gray's Inn Fields, intersected by the country roads of Holborn and Gray's Inn Lane. The latter lane took the name of Theobald's Road later, because it led to Theobalds in Hertfordshire, which was the favourite hunting seat of King James I. In these fields beyond Gray's Inn Lord Berkeley's hounds showed sport to the Gentlemen of the Inns of Court in the reign of Queen Mary.

It is indeed difficult to realize and remember how small London was, how comparatively tiny even the ‘Great Wen,’ which moved Cobbett's wrath and disgust, and how recent is the growth of that continuous monotony of streets, which have spread over the fields where our grandfathers shot snipe and partridges. Even at the beginning of the last century Gray's Inn was a ‘private place in the suburbs,’ suitable for study, removed from the bustle of the City. ‘The moment the sun peeps out,’ wrote Sir Samuel Romilly from his Chambers in 1780, ‘I am in the country, having only one row of houses between me and Highgate and Hampstead.’

There is a popular legend that Gray's Inn derives its name from the Grey Friars, whose Church stood hard by. But this legend is not in any way supported by the probabilities. Gray's Inn, in fact, was the Inn, *hospitium*, or dwelling-house of the Greys of Wilton. Its site was included in the Manor of Portpool, the name of which survives in Portpool Lane. The name of this Manor is derived from Port (= market or gate), and pool, just as in West Smithfield there was a pool called Horsepool.^[59] The 'market-pool' in question may have been that in the northern Courtyard of Staple Inn, or somewhere else on the property of the De Greys.

A very large portion of the Hundred of Ossulston, in which Gray's Inn lies, appears to have belonged to the Bishop and Canons of St. Paul's, and from the Manor of Portpool an ancient prebend of St. Paul's Cathedral takes its name.

The exact date when the De Greys first came into possession of the Manor of Portpool is not certain. But Reginald de Grey died in 1308, according to an Inquisition taken after his death at 'Purtpole,' seized of a messuage and certain lands there, which he held of the Dean and Chapter of St. Paul, London, by rent, service, and suit.

This Reginald de Grey was Justiciar of Chester, whose work would often bring him to the Capital. It is reasonable to suppose that his following of clerks and lawyers would, as in the case of the Earl of Lincoln, be resident in his London 'Inn,' and thus form the nucleus of what afterwards developed into a School, Guild, or Society of Lawyers.

The Society of Gray's Inn probably came into corporate existence some time in the fourteenth century. The exact date cannot, indeed, be determined. As in the case of the other Inns, the known surviving records are scanty. And this, perhaps, is due to the same cause.

Fire wrought havoc in Gray's Inn, as elsewhere, and the earliest archives of this Inn, as of the Temple, were probably destroyed at the end of the seventeenth century. In 1687 we learn that, 'as they were in the midst of their revels and masquerades, a violent fire broke out, which destroyed most of the paper buildings that remained; several records are also lost and burnt or blown up.'

Such early records as do exist of the Inn as a corporate institution in its early days do not amount to convincing evidence, but they do point to the existence of Gray's Inn as an Inn of Court in the fourteenth century. A list of

the Readers of the Inn, with their Arms, from the year 1359, compiled in the reign of Henry VIII. (Harleian MSS.), we may take for what it is worth. It is said that William Skipwith, a Serjeant-at-Law in 1355, belonged to Gray's Inn, and was the first Reader. Again, in 1589, Sir Christopher Yelverton, in resigning his membership of Gray's Inn, as it was compulsory for him to do on being appointed a Serjeant-at-Law, made a farewell speech to his brother members, stating that 'I doe acknowledge myself deeplie and infinitely indebted unto this House for the singular and exceeding favours that I and myne ancestors have received in it ... *for two hundred years agoe at least* some of them lived here.' This statement, if accurate, would prove the Inn to have been a corporate institution at least as early as 1389. Again, we gather from the 'Paston Letters' that Sir William Byllyng, Chief Justice in 1464, told William Paston that he had been 'a felaw in Gray's Inn,' and also mentioned one Ledam as a 'felaw' there. This is the first, and for many years the last, mention of any Fellows in Gray's Inn. It may either be considered to be a confirmation of the view that the Lawyers' Society was in possession in the fifteenth century, or merely a proof that Byllyng himself and Ledam were fellow-lodgers in some part of Lord Grey's tenement. But there is, in fact, no indubitable mention of the Lawyers' settlement here until the time of Henry VIII. However, the great-grandson of the Justiciar, Reginald de Wilton, leased out the *hospitium* in Pourtepole in 1343. And in 1370 Lord Grey de Wilton let 'a certain Inn in Portepole' for 100 shillings. Stow, on the authority of one Master Saintlow Kniveton, says that gentlemen and professors of the Common Law were Lord Grey's tenants. At any rate, before the end of the fourteenth century (1397) the records show that the Lords de Grey had enfeoffed others—who possibly represented the Society of the Inn—with the use of their property. Then, in 1506, Edmund, Lord de Grey, decided to part with it altogether. He was perhaps persuaded to adopt this course by the fact that the suburban villa of the De Greys was by this time already being swamped by the rising tide of houses that was flowing westward from the City. He sold to Hugh Denys and others 'the Manor of Portpoole, otherwise called Gray's Inn, four messuages, four gardens, the site of a windmill, eight acres of land, ten shillings of free rent, and the advowson of the Chantry of Portpoole aforesaid.'

The Manor presently escheated to the King, and licence was granted to the previous tenants to alienate to the House of Jesus of Bethlehem at Shene

(i.e., Richmond) in Surrey, both the Manor of Portepoole and the lands in the parish of St. Andrew of Holborn, and the advowson of the chantry pertaining thereto, to be held to the annual value of ten marks (£6 13s. 4d.). Then, in 1516, occurs the first distinct mention of a Society of Lawyers settled in these four messuages, with their gardens, windmill, and chapel. For an association consisting of two Serjeants and four Barristers, representatives of a Society of Students of Law, took out a lease in that year of the Manor of Portpool from the Prior and Convent of Shene at a rent of £6 13s. 4d. This lease was renewed, at the same rent, by Henry VIII. when, at the dissolution of the monasteries, the Inn, together with the whole of the Priory of Shene, passed into the hands of the Crown. The rent was commuted into a freehold by the Commissioners of the Commonwealth in 1651, upon payment of a heavy fine. It was resumed by Charles II., the sale being declared null and void, and was sold to Sir Philip Matthews. Gray's Inn thenceforth paid the old rent to him and his heirs, until, in 1733, the Benchers bought the freehold of the property from them. It is now the absolute legal property of the Society of Gray's Inn.

By the reign of Queen Elizabeth, Gray's Inn had risen into great popularity. The Inns of Court now formed one of the leading Universities of England—'the noblest nurseries of humanity and liberty in the Kingdom,' Ben Jonson declared. And chief among the Colleges of Law, with almost double the number of students in any other Inn, stood Gray's Inn. The great Lord Burghley always refers to it with the deepest affection, mentioning it as 'the place where myself came forth unto service.'

Its popularity, however, can hardly have been due to the luxuriousness of its chambers, which, we are told, were 'disagreeably incommodious.'

Dugdale remarks that there was 'not much of beauty or uniformity' in the buildings, 'the structure of the more ancient having been not only very mean, but of so slender capacity that even the Ancients of this House were necessitated to lodge double'—as, for instance, in Henry VIII.'s day, Sir Thomas Nevile wrote to say that he would accept of Mr. Attorney-General to be his bedfellow in his Chamber there.

In 1688, it appears, the Inn was divided into three Courts—Holborn, Coney, and Middle or Chapel Court. Coney and Chapel Courts were afterwards converted into Gray's Inn Square—a title conferred upon them in 1793.

Holborn Court must have included South Square and Field Court, the latter so called from its being a passage into the Red Lion Fields,^[60] where a Bowling-Green was laid out in the seventeenth century. When, at the close of that century, Dr. Barebone, the great builder, bought Red Lion Fields and began to build upon that site, ‘the Gentlemen of Graies Inn took notice of it, and thinking it an injury to them, went with a considerable body of 100 persons, upon which the workmen assaulted the gentlemen, and flung bricks at them, and the gentlemen at them again, so a sharp engagement ensued, but the gentlemen routed them at last.’^[61]

The principal entrance to Gray’s Inn was formerly from Gray’s Inn Lane. It was not till the end of the sixteenth century that, as Stow puts it, ‘the Gentlemen of this House purchased a messuage and a curtillage situate upon the south side of this House, and thereupon erected a fayre gate and a gatehouse, for a more convenient and more honourable passage into the High Street of Holborne, whereof this house stood in much neede, for the former gates were rather posterns than gates.’

By Gray’s Inn Gate, Jacob Tonson, Pope’s publisher, kept his shop before moving to Fleet Street. Soon after Holborn Gate was erected, the shop underneath was taken by another bookseller, one Henry Tomes by name, who, appropriately enough, published the first edition of Bacon’s ‘Advancement of Learning.’

The Entrance Gate from Holborn leads us from the throng and bustle of the streets, the din and rush of the City, and the noisome fumes of twopenny tubes and motor-buses, through a dull and narrow alley into South Square—a large, irregular quadrangle of pleasing, harmonious eighteenth-century houses. Opposite the entrance passage a detached block faces us (No. 10), containing the Common Room, admirably rebuilt in 1905. This is connected by an archway with the Hall, Chapel, and Library.

The foundation of the Library has been



A DOORWAY IN SOUTH SQUARE, GRAY'S INN
It is one of several classic entrances of this type in the Square, and bears the date 1738.

attributed to Francis Bacon, Lord Verulam. But references to it occur before 1576, the year in which he became a Member of the Inn.^[62] But it was not till 1737 that the need was felt for the erection of a building specially intended to house it. Then an Order was passed for building a Library in Holborn Court, now known as South Square. A hundred years later additions were made, and in 1883 a new Library building was added, which is entered separately from the internal angle of South Square, and which fronts externally upon the then newly-made Gray's Inn Road. The Library boasts a small but valuable collection of manuscripts, including that of Bracton's 'De Legibus et Consuetudinibus Angliæ.'

The old Hall was rebuilt in 1556. It follows the usual plan of a sixteenth-century Hall, having a raised dais and 'high' table at the east end, and the characteristic Tudor bay window on the north side. A very handsome oak screen, richly carved with Renaissance ornament, and divided into round arched bays by Ionic columns, conceals the vestibule. Above the enriched cartouche frieze of the Screen is an open and carved balustrade, extremely handsome, though of later date, which forms a front to the Minstrel Gallery. A glazed lantern in the centre of the Hall indicates the ancient louvre. A very fine open timber roof of the hammer-beam type covers this charming room, and harmonizes with the eighteenth-century oak panelling, which lines the walls, and is decorated with the arms of the Treasurers. A large traceried window over the Minstrel Gallery, five mullioned and transomed windows on the south side, and four similar windows, in addition to the large bay window, on the north, adequately light the Hall. Many of the windows contain fine heraldic glass, with escutcheons of famous members of the Society.^[63] On the walls of the Hall hang portraits of Kings Charles I. and II., and James II., Sir Nicholas Bacon and Francis Bacon, Viscount St. Albans, Baron Verulam, Lord Coke, Sir Christopher Yelverton (1602), Sir John Turton (1689), Lord Raymond, Chief Justice (1725), Sir James Eyre (1787), Sir John Hullock (1823), Stephen Gardiner, Bishop of Winchester, etc. But the chief treasure is the portrait of Queen Elizabeth, hung above the dais, which was presented to the Society by Henry Griffith, one of the Masters of the Bench.

The exterior of the Hall was sadly ruined by the Goths, or Vandals, of 1826. The walls and gables of dark red brick, ornamented with brick battlements, and relieved by labels and mullions of stone, were, like those of the Chapel, rendered hideous by the stucco madness of the age; mean modern battlements were added; slate was substituted for the warm red tiles of the old roof; and a wooden lantern of new and feeble design placed instead of the octangular wooden lantern, with a leaded cupola, which rose from the centre of the roof. More recently the stucco disfigurations have been removed, and the old red-brick buttresses and walls with the stone labels have been happily revealed again.

There is a tradition in the Inn that the Screen which we have mentioned, and also some of the dining-tables now used in the Hall, were given to the Society by Queen Elizabeth. At dinner on Grand Day in each term 'the glorious, pious, and immortal memory of good Queen Bess' is still

solemnly drunk in Hall. Certainly and happily this Hall, one of the most venerable and most beautiful of all the Halls in London, remains very much, as regards the interior, what it was in the days of the Virgin Queen.

There is another legend which connects the name of good Queen Bess with this Hall. It is said that Her Majesty was present at the performance in Gray's Inn Hall of the masque, 'A Midsummer Night's Dream,' under the stage management of Shakespeare. There is no intrinsic improbability about this. Though the Pension Book does not record any visit of Elizabeth to Gray's Inn, the nature of the entries is such that omission therefrom cannot be said to prove the non-occurrence of an event. Francis Bacon, who was made a Bencher in 1586, and was elected Treasurer in 1590, was a *persona grata* at Court, and not only took a delight in the preparation of pageantries, but also knew Shakespeare well. It is, therefore, quite likely that Queen Elizabeth visited the Inn on the occasion of the production of a masque by Shakespeare.^[64] It is at least certain that in February, 1587, eight Members of Gray's Inn, acting apparently with the approval of the Bench, produced a play called 'The Misfortunes of Arthur' for the entertainment of Queen Elizabeth at Greenwich while Her Majesty was visiting the fair. It was apparently in connection with this play that Bacon, being then Reader of Gray's Inn, wrote to Lord Burleigh as follows: 'There are a dozen gentlemen of Gray's Inn that, out of the honour which they bear to your Lordship and my Lord Chamberlain, to whom at their last masque they were so much bounden, are ready to furnish a masque: wishing it were in their power to perform it according to their minds.'^[65]

The Benchers and Students of Gray's Inn indulged in the Christmas *Saturnalia* of Masques and Revels with as great, or even greater, zest than the other Societies of Lawyers. And Bacon, philosopher, statesman, and courtier, was by no means backward in his enjoyment of 'Masques and Triumphs.' 'These things are but toys,' he wrote, 'but since Princes will have such things, it is better they should be graced with elegance than daubed with cost.' And accordingly he devoted some of his abundant energy to superintending the festivities in his own Inn, and even to assisting in the composition of some of the 'Triumphs.'

As early as 1525 mention is made of a masque that was acted in the Hall here, which was composed by John Roo, Serjeant at the Law, and 'sore displeased' Cardinal Wolsey. George Gascoigne, the poet, a Member of the Inn, translated plays from the Greek (Euripides' 'Jocasta'—the

‘Phœnissæ’?) and Italian for the students to act. And now, in 1594, there were high festivities at Gray’s Inn, when an extravaganza was produced bearing the significant title: ‘History of the High and Mighty Prince Henry, Prince of Purpoole [Portpool], Archduke of Stapulia [Staple’s Inn] and Bernarda [Barnard’s Inn], Duke of High and Nether Holborn, Marquis of St. Giles and Tottenham, Great Lord of the Cantons of Islington, Kentish Town, Paddington, and Knightsbridge, Knight of the most Heroical Order of the Helmet and Sovereign of the same; who reigned and died A.D. 1594.’ Owing to the Hall being overcrowded on the first night, the students of the Inner and Middle Temples quitted the Hall in dudgeon, and the performance of the main piece had to be adjourned. To make up for the withdrawal of ‘The History of Prince Henry’ from the playbill, it was thought ‘good not to offer anything of account saving Dancing and Revelling with Gentlewomen.... To eke out the programme Shakespeare’s “Comedy of Errors” was then played by the players.’

Thus Gray’s Inn Hall shares with the Hall of the Middle Temple the distinction of being the only buildings now remaining in London in which, so far as we know, any of the plays of Shakespeare were performed in his own time.^[66]

At Shrovetide the Prince of Purpoole and his company entertained Queen Elizabeth at Greenwich. After the performance Her Majesty ‘willed the Lord Chamberlain that the gentlemen should be invited on the next day, which was done, and her Majesty gave them her hand to kiss with most gracious words of commendation to them: particularly in respect of Gray’s Inn, as an House that she was much beholden unto for that it did always study for some Sports to present her with.’

The success of this Masque was no doubt largely due to the fact that it was supposed to contain veiled allusions to many living persons of note, and that these allusions, uttered by the mimic Councillors of the Purpoole Court, were known to be written by the greatest of the sons of Gray’s Inn, Bacon himself. ‘The speeches of the six Councillors,’ says James Spedding, ‘carry his signature in every sentence.’^[67] That they were written by him, and by him alone, no one who is at all familiar with his style, either of thought or expression, will for a moment doubt.

The Masque prepared by Francis Beaumont, to celebrate the marriage of the Count Palatine with the Princess Elizabeth, was performed before the

King and Royal Family in the Banqueting House at Whitehall (February 20, 1613), and Francis Bacon, it is recorded, then Solicitor-General, 'spared no time in the setting forth, ordering, and furnishing' of it.

On Twelfth Night, 1614, the 'Maske of Flowers' was presented 'by the Gentlemen of Graies Inn' in the same Banqueting Hall upon the occasion of the marriage of the Earl of Somerset. This Masque, when published, was dedicated to Sir Francis Bacon, who apparently bore the whole expense of the performance. In 1887 'The Masque of Flowers' was revived, being again performed with great success in Gray's Inn Hall. Other masques of this and later times are mentioned by Mr. Douthwaite (p. 234 *et seq.*). Of the Masque performed by the Inns of Court before Charles I., which has been already referred to, 'The Triumph of Peace,' James Shirley, the dramatist, was the author. He had chambers in Gray's Inn.

The form of self-government that obtained at Gray's Inn was very similar to that which the other Inns enjoyed.

The Officer named Treasurer at other Inns was at Gray's Inn known as the Pensioner. According to Sir Nicholas Bacon and some other Commissioners who drew up a report upon the Houses of Court for the information of Henry VIII., 'a Pension, or, as some Houses call it, a Parliament,' was summoned every quarter, or more if need be, 'for the good ordering of the House, and the reformation of such things as seem meet to be reformed.' These Pensions or Parliaments were 'nothing else but a conference of Benchers and Utter Barristers only, and in some other Houses an Assembly of Benchers and such of the Utter Barristers and other ancient and wise men of the House as the Benchers have elected to them before time, and these together are named the Sage Company.' This report does not mention the Ancients of Gray's Inn. 'The Grand Company of Ancients' consisted of three classes—Barristers called by seniority to that degree; sons of Judges, who by right of inheritance were admitted Ancients; and persons of distinction who, in the words of Fortescue already quoted, were placed in the Inns of Court, not so much to make the Laws their study as to form their manners and to preserve them from the contagion of vice. The Constitution of the Inns, and the correct relation between the Benchers and Junior Members, were not arrived at without certain crises. The internal politics of the Houses were occasionally lively. Thus at the Middle Temple the right of the Benchers to regulate the affairs of the Inn, without reference to the Parliaments of barristers and students to whom, apparently, the right

of self-government within certain limits was, by ancient custom, entrusted in the Vacations, was a ground of hot dispute in the seventeenth and eighteenth centuries. The right to hold a Parliament at any time was demanded. The Benchers replied that the Junior Members were only entitled to deliberate and represent on matters occurring in Vacation.^[68]

The Chapel of Gray's Inn Loftie describes with equal brevity and justice as 'ancient, but without interest.'

In 1315 John, Lord Grey, had given lands in



GRAYS INN SQUARE

THE Hall (on the right) was rebuilt in 1556, and the chapel, covered with greenish stucco (in the centre), is ancient, but has suffered much from wholesale restorations.

the manor to the Canons of St. Bartholomew, to endow a Chaplain. Chaplain and Chapel alike passed to the lawyers along with the Inn, and it is likely enough that the present old Chapel, in spite of plaster and bad stained glass, represents at heart the fourteenth-century Chapel of the Greys.

The earliest mention of it in the existing records of the Society is in the eleventh year of Elizabeth. It was 'beautified and renewed' at the end of the seventeenth century, and received a blanket of stucco, a fringe of silly battlements, and an ugly slate roof in the first part of the nineteenth. Some armorial bearings, chiefly of the seventeenth-century Bishops and Archbishops, survive in the Eastern Window of five lights, but much of the painted glass mentioned by Dugdale has disappeared or been removed to the Hall.

Beyond South Square stretches a delightful quadrangle of homogeneous houses, which contains a large gravelled centre, bordered by a few sickly plane-trees. This is Gray's Inn Square, which, as we have seen, took the place of Coney Court and Chapel Court. It was at No. 1, Coney Court, burnt down in 1678, that Bacon, 'the greatest, wisest, meanest of mankind,' is said to have lived. The site of his rooms is covered now by No. 1, Gray's Inn Square, part of the row of buildings erected in 1868 at the West end of this Court. In 1622 Bacon was granted chambers in the Inn consisting of 'certayne buildings in Graies Inne [of late called Bacon's Buildings] for the terme of fiftie years.'

Francis Bacon was entered by his father, the Lord Keeper, on June 27, 1576, together with his four brothers, Nicholas, Nathaniel, Edward, and Anthony. This was that Sir Nicholas who founded the Cursitor's Office or Inn, from which Cursitor Street takes its name; Cursitor Street, with its bitter memories of sponging-houses and bailiffs, which have been improved away along with the lumbering machinery of the law that made such things possible. Sir Nicholas had been Treasurer of the Inn in 1536. Francis Bacon, in the dedication quoted below, describes Gray's Inn as 'the place whence my father was called to the highest place of justice, and where myself have lived and had my proceedings, and therefore few men are so bound to their Societies by obligation both ancestral and personal as I am to yours.' An Order in the following year, 1577, directed that all the sons of Sir Nicholas Bacon should be 'of the Grand Company and not be bound to any vacations.' In the twenty-eighth year of Elizabeth, Francis Bacon was advanced to the Readers' Table. He was elected Treasurer in 1608.^[69] As Solicitor-General he dedicated his 'Arguments of Law' to 'my lovinge friends and fellowes, the Readers, Ancients, Utter Barresters and Students of Graies Inn,' signing himself 'your assured loving friend and fellow, F. B.'

It was from Gray's Inn that the procession of Earls, Barons, Knights and Gentlemen started, which accompanied him to Westminster when he became Lord Keeper. And it was to Gray's Inn that he returned after his impeachment and fall, coming 'to lie at his old lodgings,' and write many of his Treatises and Essays. 'Those noble studies,' says Macaulay, the brilliant historian, who himself occupied chambers at No. 8, South Square, in a building that was destroyed to make room for the extension of the Library—'those noble studies, for which he had found leisure in the midst of professional drudgery and of courtly intrigues, gave to this last sad stage of his life a dignity beyond what power or titles could bestow. Impeached, convicted, sentenced, driven with ignominy from the presence of his Sovereign, shut out from the deliberations of his fellow-nobles, loaded with debt, branded with dishonour, sinking under the weight of years, sorrows and diseases, Bacon was Bacon still.' He commenced a Digest of the Laws of England, a History of England under the Tudors, a body of Natural History, a Philosophical Romance. 'He made extensive and valuable additions to his Essays. He published the inestimable treatise, "*De Augmentis Scientiarum*." The very trifles with which he amused himself in hours of pain and languor bore the marks of his mind. The best collection of jests in the world is that which he dictated from memory, without referring to any book, on a day on which illness had rendered him incapable of serious study.' It is the brain and personality of such a genius that haunts this spacious, quiet square of Gray's Inn. And presently we shall see how upon the Inn itself and its pleasaunces this many-sided mind impressed itself to our advantage.

Through an arch in the far angle of the Square we pass to a narrow, oblong building of the crudest early nineteenth-century type, looking across an ugly wall upon the noisy Gray's Inn Road. This is the ugly line of Verulam Buildings (1811), which Charles Lamb justly called 'accursed,' for they encroached upon the gardens, 'cutting out delicate crankles, and shouldering away one or two of the stately alcoves of the terrace.' A postern-gate at the far corner leads out to the junction of Gray's Inn Road with Theobald's Road, a dismal thoroughfare, which is bounded by a railing, through which a delightful vista of green trees and turf gladdens the sight of the passer-by—turf and green trees which form the gracious playground of the children for whom the gates are opened each summer evening.

Another Gateway by 'Jockey Fields,' in Theobald's Road, leads past Raymond Buildings, the same kind of ugly, unabashed, stock-brick barracks as Verulam Buildings, and dating from the same period. Crude and unpleasing as these dull blocks are to behold, they have the great advantage of being very pleasant to live in, for they line and look out upon the Gardens which the great Philosopher laid out. Raymond Buildings end in Field Court, which in turn adjoins South Square. One side of Field Court is formed by the iron railings and fine iron Gateway (1723) which terminate the Gardens. Square stone gate-posts carry the Griffin of the Inn. For the device of Gray's Inn is a Griffin, or, in a field sable. Within this Gate a broad avenue of plane-trees, flanked by grassy lawns and terraces, leads to a green earth-work terrace at the northern end of the gardens. This terrace was probably constructed with the intention of shutting out the view of the squalid houses that had begun to spring up in that direction.

James Spedding records that Raleigh, just before his last disastrous voyage to the New World, had a long conversation with Bacon in those Gardens. And it is said that Bacon planted here a 'catalpa tree,' very likely brought home by Raleigh, which still survives, and is certainly one of the oldest in England. This is the sprawling, senile tree, tottering to its grave with the aid of a dozen propping sticks, which forms a striking feature upon the left-hand side of the path, looking from the Gateway.

Bacon's love of gardening is breathed in every line of his delightful Essay upon Gardens. 'God Almighty first planted a garden. And indeed it is the purest of human pleasures. It is the greatest refreshment to the spirits of man, without which buildings and palaces are but gross handyworks.' And it appears probable that the Gardens of Gray's Inn were laid out under his direction in 1597 and the following years. For in 1597 the Society ordered 'that the summe of £7 15s. 4d., due to Mr. Bacon for planting of trees in the walkes, be paid next terme.' In the following year a further supply was ordered 'of more yonge elme trees in the places of such as are decayed, and that a new Rayle and quicksett hedge bee set uppon the upper walke at the good discretion of Mr. Bacon and Mr. Wilbraham, soe that the charges thereof do not exceed the sum of seventy pounds.' And, this limit having apparently been carefully observed, in 1600, £60 6s. 8d. was paid to Mr. Bacon 'for money disbursed about the Garnishing of the Walkes.'

There is also record of a Summer-house erected by Bacon 'upon a small mount' in the Gardens, which bore a Latin inscription to the effect that

Francis Bacon erected it in memory of Jeremy Bettenham, formerly Rector of the Inn, in the year 1609. It was destroyed in the eighteenth century.

The rooks which nest in the trees of Gray's Inn Gardens, and which fare sumptuously upon the fragments of food daily offered to them by the residents in the Chambers of Gray's Inn, made their first appearance when the elms on the Chesterfield property in May Fair were felled. They appear to have driven out a pair of carrion crows which had built here time out of mind, and whose ancestors may well have looked down upon the author of the 'Novum Organum,' as he walked in those quiet alleys with his friend, or mused as he rested on the seat which was so callously destroyed a century and a half ago.^[70]

The principal entrance to the Gardens was from Fullwood's Rents, and, when coffee-drinking first came into vogue, Coffee-Houses sprang up here, and reaped a rich harvest from the crowds who made of Gray's Inn Gardens a fashionable and popular promenade.

For Gray's Inn Walks became as fashionable a resort in the seventeenth century as Merton Gardens at Oxford in the eighteenth, and when Pepys' wife was 'making some clothes,' he took her here to observe the fashions. And Sir Roger de Coverley loved to pace the green terrace of Gray's Inn.

The figure of the great Philosopher overshadows all others at Gray's Inn, but the Society can boast a long line of members distinguished in Politics, the Law and Literature. Sir Philip Sidney was a Member of this Inn; so were John Hampden and John Pym, and Thomas Cromwell became an Ancient in 1534.

Sir William Gascoigne, Chief Justice 1400, is claimed by both Gray's Inn and the Middle Temple. The former can at any rate point to Gascoigne's arms in the bay-window of the Hall.

George Gascoigne, the poet, William Camden, and William Dugdale, the great and learned antiquaries, were all members of Gray's Inn. Among the poets who resided here are George Chapman, Samuel Butler, John Cleveland, Oliver Goldsmith, and Robert Southey, who entered the Inn in 1797. Cobbett dwelt here for a season, and another 'Rymer' in the author of the 'Fœdera.' Dr. Kenealy, who defended 'the Claimant,' was the last barrister to have business Chambers here, the tide of legal business having flowed down Chancery Lane. Gray's Inn can boast a Royal Bencher in the person of H.R.H. the Duke of Connaught, who, by a 'Special Pension' in

1881, was admitted a Member, called to the Bar, and elected a Benchers in one day.

Such, in brief outline, is the history of the Four Inns of Court, in which is vested the monopoly of calling to the Bar of England such students as have kept terms at the Inn, and have commended themselves to the approval of the Benchers. Starting as independent voluntary associations of students and practisers of the law, either in connection with the Court of some great Justiciar, or merely in hostels, where the apprentices might find board and lodging during their years of learning, they developed into Societies, nobly housed, which controlled their students after a collegiate fashion.

Without charters, endowments, or title-deeds, they developed on the lines of self-governing Guilds, subject only to a certain ill-defined control by the Judges, whilst their property was vested in a self-elected Committee of Benchers for the time being. It is under the guidance of these Committees that the Inns of Court have gained and maintained their position through the centuries, training the successive generations of barristers in the high traditions of honour and ability characteristic of the English Bar, and imparting to their youthful apprentices at the law, through the social system of 'keeping terms,' the unwritten rules of right conduct in the legal profession.

It remains now to glance at the Inns which started level in the race with the Inns of Court, but whose history and development have been so different.



**THE GABLED HOUSES OUTSIDE STAPLE INN,
HOLBORN**

THEY are the sole survivors of Elizabethan domestic architecture to be found in the streets of London. The restoration of the frontage was made in 1884, under the care of Mr. Alfred Waterhouse.

CHAPTER VIII

INNS OF CHANCERY

As is the case with regard to the origin of the Inns of Court, the first beginnings of the Inns of Chancery are buried in obscurity, from which they can only be retrieved by the discovery of new documents. It seems probable, in the absence of definite evidence, that there was at first no distinction between Inns of Court and Inns of Chancery, but that, all alike, Inns of Court and the ten lesser Inns called Inns of Chancery, mentioned by Fortescue, were originally mere Hostels where Students of the Law congregated, lived and learned. Then, in course of time, the natural laws of differentiation and development came into play, and these Inns or Hostels gradually resolved themselves into two classes. The four great Inns of Court developed, as we have seen, from small associations in small hostels into great and wealthy institutions upon lines of aristocratic monopoly. The other Inns, taking their names from the Clerks of the Chancery who chiefly studied there, passed through different stages of development into subjection under the Inns of Court, and after a period, during which they partly performed the function of preparatory schools for the preliminary training of young students who were afterwards admitted as members of the Inns of Court, crystallized into close corporations of Solicitors and Attorneys. Then all official connection between the two kinds of Inns came to an end.

Thus, whilst the Inns of Court became aristocratic Schools of Law, reserved for lawyers of gentle birth, the Inns of Chancery were gradually monopolized by Writ clerks, both of the Court of Chancery and of the Court of Common Pleas, and by other minor officials. These gradually ousted the well-born Apprentices who were training on for the Inns of Court. On the one hand Attorneys and Solicitors were excluded from the Inns of Court. In 1557, for instance, they were refused admission to the Inner Temple, and ordered to repair to their Inns of Chancery. In 1574 such as remained were expelled the House. The Middle Temple soon followed the example of the Inner. On the other hand, in spite of the remonstrances of the Benchers, the Attorneys, who had gained an ascendancy over the Inns of Chancery, set

themselves to secure a monopoly of them. Without definitely excluding students for the Bar, they received them so ungraciously that, for instance, Sir Mathew Hale passed straight from Magdalen College, Oxford, to Lincoln's Inn (1629). Indeed, John Selden, the antiquary (1584-1654), seems to have been the last of the great lawyers to be trained at these schools for the larger Societies. Thus one step in the ladder of education, so much approved by Coke and Fortescue, was eliminated. The Inns of Chancery were abandoned to the Attorneys.^[71] They then gradually fell out of fashion and deteriorated in discipline as in prestige. By the middle of the eighteenth century they had become obsolete. But if they fell early into decline, their decadence was long drawn out. The proceedings of the Court of Chancery in 1900, in regard to the sale of Clifford's Inn, marked their final disappearance.

Of these ten lesser Inns, mentioned by Fortescue as having, in his day, each one hundred students studying the first principles of the Law and preparing to pass into the four Inns of Court, all have been now dissolved, and many of them have been destroyed.

In the days when Clerks of Chancery and Attorneys dwelt in these Inns, together with embryo Barristers who were learning the rudiments of their legal craft, Stow neatly describes them as Provinces, for they were severally subject to one of the Inns of Court. Their relationship is obscure. Mr. Inderwick^[72] compares it to that which the smaller seaport towns of the Kent and Sussex coast bore to the more important Cinque Ports.

An Inn of Court appointed Readers for its Inns of Chancery, settled the precedence of their Principals, admitted their members at a reduced fee, and entertained their Ancients at grand feasts and festivals. Each Inn of Chancery had its own Hall for meetings, moots, readings, and festivity, but none could boast of a Chapel of its own. It was only after having studied the necessary exercises at these 'provincial' Inns, including boltings, moots, and putting of cases, that the young students or apprentices were admitted as students at one of the four Inns of Court.

Of the Inns of Chancery, Staple Inn and Barnard's Inn were attached to Gray's Inn; Clifford's Inn, Clement's Inn, and Lyon's Inn to the Inner Temple; Furnival's Inn and Thavie's Inn to Lincoln's Inn; and to the Middle Temple, New Inn and Strand Inn.

Of these by far the most interesting and picturesque at the present time is Staple Inn.

It was of this 'little nook composed of two irregular quadrangles' that Dickens wrote in 'Edwin Drood':

'It is one of those nooks, the turning into which out of the clashing street imparts to the relieved pedestrian the sensation of having cotton in his ears, and velvet soles on his boots. It is one of those nooks where a few smoky sparrows twitter in smoky trees, as though they called to one another: "Let us play at country," and where a few feet of garden-mould and a few yards of gravel enable them to do that refreshing violence to their tiny understandings.'

Nothing could be more striking or delightful than the block of quaint old buildings, with its overhanging stories of timber and rough-cast, and its gabled roof. The preservation of this delightful specimen of Elizabethan domestic architecture, which stands at Holborn Bars like an island of art in an ocean of crude ugliness, we owe to the wisdom and good taste of the Directors of the Prudential Assurance Company, to whom the site now belongs. It is a pleasure to express one's gratitude to them.

Staple Inn Hall, which forms the south side of the first Court within the old entrance archway facing Holborn, was built and embellished between 1580 and 1592. The frontage dates from about the same time, so that Sir George Buck, writing in 1615, could describe it as 'the fayrest Inn of Chancery in this University.' The Hall is now used for the Institute of Actuaries. It retains a delightful little louvre, with a bell in a cupola. Mullioned windows and a charming Gothic doorway (1753) open, on the far side of the Hall, upon the garden front.

Beyond this old sunk garden, which is bounded by a terrace and iron railing, the Patent Office occupies part of what was once the property of the Inn. To the west the garden is overshadowed by the flamboyant atrocity of a gross Bank building. The houses which form these quiet courts were for the most part rebuilt in the eighteenth century. No. 10, in the second Court, is that immortalized by Dickens in 'Edwin Drood' (Chapter XI.). It was rebuilt in 1747, and the initials over the doorway do *not* stand for Perhaps John Thomas, or Perhaps Joe Tyler, nor for any other of the phrases the humourist suggests, but for plain Principal John Thomson, who ruled in that year.

Staple, or Stapled Inn, has been so called since the beginning of the fourteenth century (1313). The Staple Inn, or House, was the Warehouse in which commodities, especially wool, chargeable with export duties, might be stored, weighed, and taxed. It was the business of the Company of Staplers, established in the reign of Edward III., ‘to see the Custom duly paid.’^[73] The proximity of Portpool Market—or Ely Fair, as it was called, after the Bishops of Ely, whose large property lay on the North side of Holborn—doubtless added much to the importance of this Staple Inn.

The site of this Inn may possibly have been included in the Old Temple property, which the Templars sold to the Bishopric of Lincoln when they moved South (Chapter I.). However that may be, some time in the fifteenth century Staple Inn ceased to have any claim to be a Customs-house,^[74] and was given over to the Lawyers. It was not a surprising change, for the conduct of the King’s wool-trade and the settlement of the disputes that must have arisen in connection with the clearing of woollen merchandise for export were likely to have made ‘Le Stapled Halle’ long ere this a home of clerks and apprentices of the Law.^[75] The steps by which this home of lawyers passed into the control of the ‘Grand Company and Fellows’ of Staple Inn, with a Principal and Pensioner at their Head, are not known. They must, at least, have been taken long before ‘the first Grant of the inheritance thereof to the Ancients of Gray’s Inn’ mentioned by Dugdale as being dated in the twentieth year of Henry VIII. The transaction referred to would seem to have been rather in the nature of the creation of a trust. At any rate, Staple Inn became an appendage of Gray’s Inn. But by the end of the last century it had long ceased to fulfil the functions either of a Customs-house or of an Inn for Law-students.

Finally, in 1884, the Society of Staple sold their property, and the Prudential Assurance Company presently acquired it. Under their public-spirited and artistic care, Mr. Alfred Waterhouse made a practical and scholarly restoration, displacing from



STAPLE INN HALL AND COURTYARD

THE Hall was built between 1580 and 1592, and has a fine hammer-beam roof, and some old stained glass in its windows.

the frontage the plaster with which the eighteenth century had disfigured it.

The most famous occupant of rooms in Staple Inn was Dr. Johnson (1759), who came here after he had completed his 'Dixonary.' It was here that he wrote his little romance of 'Rasselas,' in order to pay for his mother's funeral.

The Mackworth coat-of-arms over a modest doorway between 22 and 23 Holborn used to indicate until recently the entrance to Barnard's Inn, the other Inn attached to Gray's Inn.

This was the residence of Dr. John Mackworth, who was Dean of Lincoln in the reign of Henry VI. When leased by his successor to Lyonel Barnard, it took the name which it now bears. The Inn was let to students of Law as early as 1454, for in that year Stow records that there was a great affray in Fleet Street between 'men of Court' and the inhabitants there, in the course of which the Queen's Attorney was slain. As punishment, the principal Governors of Clifford's Inn, Furnival's Inn, and Barnard's Inn were sent to prison.

Barnard's Inn was governed by a Principal and twelve Ancients. The study of legal forms was insisted on with great strictness. Fines were imposed of one halfpenny for every defective word, one farthing for every defective syllable, and one penny for every improper word in writing the writs according to the form of the Chancery, in the moots of the House.^[76]

A Reader was appointed by Gray's Inn, and great respect was paid to him. The Principal, accompanied by the Ancients and Gentlemen in Commons in their gowns, met him at the rails of the House on his coming, and conducted him into the Hall.

This is a delightful fifteenth-century building. The original timber and rough-cast exterior was cased in red brick in the eighteenth century. It has a high-pitched roof and louvre in the centre, and, within, an open timber roof, and some heraldic glass in the windows (1500). It stands in a small courtyard, beyond which there used to be another Court, wherein were the Library and Kitchen, and, beyond, houses grouped about a railed-in garden.

Portraits of Lord Chief Justice Holt, the most distinguished Principal, and of Lord Burghley, Bacon, Lord Keeper Coventry, and Charles II. once hung upon the walls. In 1854 the Society consisted of a Principal, nine Ancients, and five Companions. The Companions were chosen by the Principal and Ancients. The advantage of being a Companion was, in the evidence given before the Royal Commission in 1855, stated to be 'the dining'; the advantage of being an Ancient 'dinners and some little fees.' Barnard's Inn is now the property of the Mercers' Company, who moved their School hither in 1894. Only the Hall now (1909) remains of the old buildings. Even the passage from Holborn has been altered, and an imposing block of offices, fronting Holborn, is in course of erection, behind which lie the Hall and modern School buildings.

Furnival's Inn, which Stow says belonged to Sir William Furnival and Thomasin, his wife, in the reign of Richard II., lay to the west of the Bishop of Ely's Palace in Holborn. It was brought by the heiress of the Furnivals to the Earls of Shrewsbury, from whom it passed to the Society of Lincoln's Inn, and was by them leased to the Principal and Fellows of the Inn of Chancery there inhabiting (1548).

Inigo Jones erected a building on this site in 1640, which was afterwards demolished. It was rebuilt in 1820, and the site is now occupied by part of the new offices of the Prudential Assurance Company. Of this Inn Sir Thomas More was Reader for more than three years, and here Charles Dickens wrote the 'Pickwick Papers,' and here he gave John Westlock chambers in 'Martin Chuzzlewit.' To Charles Dickens's rooms in Furnival's Inn came an artist seeking employment, who offered two or three drawings to illustrate 'Pickwick,' which the rising young author did not think suitable. This artist was William Makepeace Thackeray. A bust of Dickens by Percy Fitzgerald is placed within the entrance of the modern pink pile of offices.

Opposite Ely House, and adjoining Crookhorn Alley, stood Thavie's Inn, which is another form, no doubt, of Davy's Inn. It is spelt so in the early records, and the will of John Tavy (1348) mentions his hospice in St. Andrew, Holborn (see pp. 5 and 39). The spelling 'Tavy,' I suppose, indicates the Welsh origin of this Mr. Davy. A John Davy occurs as holding lands in Holborn fifty years later. This Inn was also closely connected with Lincoln's Inn.

Of the Inns of Chancery which were attached to the Inner Temple, only Clifford's Inn survives, and its days are numbered. Lyon's Inn, which is mentioned as an Inn of Chancery in King Henry V.'s time, lay between Old Wych Street and Holywell Street, and disappeared with them



THE GREAT HALL OF THE ROYAL COURTS OF JUSTICE

STREET's noble Gothic Hall, through which the Judges pass in dignified procession at the opening of the Courts after the Long Vacation.

in the course of the recent Strand improvements. Clement's Inn took its name probably from 'a fountain called St. Clement's Well,' which Stow describes (1603) as 'North from the parish Church of S. Clement's, and neare unto an Inn of Chancerie called Clement's Inne; [it] is faire curbed square with hard stone, kept cleane for common use, and is alwayes full.'

The picturesque Queen Anne buildings of the Inn have disappeared, and in their place some more pretentious flats and offices have been erected. They looked out, until the beginning of 1909, upon a green open space,

some two acres in extent, bounded by the Law Courts, Carey Street, and the Strand. A road runs under the Judges' Rooms in the Law Courts from the Strand to a flight of steps, which lead up to Carey Street beneath ornamental arches. This space was intended to be covered by the Law Courts, according to the original design. But the estimates were cut down, and the block which was meant to cover this space was sacrificed. The inconvenience which has resulted for lawyers and litigants ever since has been the gain of the less litigious public. For, thanks to the generosity of the late Mr. W. H. Smith, the vacant place was laid out as a lawn and flower-garden, and has long formed a refreshing strip of greensward in the heart of this busy centre of London. Two-thirds of it have now been sacrificed, for the pressing need of more accommodation is at last to be met by the extension of the Law Courts, and the erection of four new Courts, which have been begun at the north-west end of this plot. The new building, designed to harmonize with Street's somewhat bastard Gothic building, will be connected with it by a bridge of three arches spanning the walk between Carey Street and the Strand.

Clifford's Inn still survives. It can be approached either from Chancery Lane, through Serjeants' Inn, from Fetter Lane, or from Fleet Street. Out of the roar and bustle of that busy thoroughfare a passage leads up past the porch of St. Dunstan's Church. On the north side of a tiny Court, from which an archway leads into a larger one, stands a tiny Hall, with a large clock and windows full of heraldic glass, amongst which the chequers of the Cliffords are conspicuous. This Hall in its present shape, re-cased and transmogrified, dates from 1797, but a fourteenth-century arch at the end of it points to pristine beauty.

A few separate houses are dotted irregularly about on the opposite side. But the chief charm of Clifford's Inn lies in the green grass space and shady trees, a garden bounded by railings, and on two sides by old brick buildings, with deep cornices and tiled roofs, which forms so grateful a view from the interior of the Record Office, or from the Court of Serjeants' Inn.

The Inn is called after Robert de Clifford, whose widow (1344) let the messuage to students of the law for £10 per annum. It was acquired by the Society at a rental of £4 towards the end of the fifteenth century. The Society was composed of the Principal and Rulers, and the Juniors or 'Kentish Men.' It would be of interest, if for no other reason, because Coke and Selden once resided here.

It was in Clifford's Inn that Sir Matthew Hale and the other Commissioners sat to deal with the cases which arose after the Great Fire of London and the questions of boundaries and rebuilding.

Clifford's Inn was always reckoned, except by its members, a dependency of the Inner Temple. No Inn of Court, at any rate, acquired its lease or freehold. Clifford's Inn paid its own way, had its own customs, its great days, and peculiar rules. The most interesting of its old customs was a kind of grace, which used to be performed after dinner by a member of what was mysteriously called the Kentish Mess. The Chairman of this Mess, for which a special table was always provided, after bowing gravely to the Principal, took from a servitor four small loaves joined together in the shape of a cross. These he dashed upon the table before him three times, amid profound silence. The bread was then passed down to the last man in the Kentish Mess, who carried it from the Hall. A number of old women used to wait at the buttery to receive these crumbs which had fallen from the rich man's table. The exact significance of the symbolism of this performance is not clear. It is probably the usual mixture of Pagan rites and Christian observance. Antiquaries, indeed, have suggested that 'this singular custom typifies offerings to Ceres, who first taught mankind the use of laws, and originated those peculiar ornaments of civilization, their expounders, the lawyers.'^[77]

Of the Inns attached to the Middle Temple, the Strand, or Chester's Inn, so-called 'for the nearnesse to the Bishop of Chester's house' (Stow), stood near the Church of St. Mary le Strand, without Temple Bar. It was pulled down by the Protector, Duke of Somerset, 'who in place thereof raised that large and beautiful house, but yet unfinished, called Somerset house.'

Lastly, there was New Inn. In St. George's Lane, near the Old Bailey, was an Inn of Chancery, whence the Society, Stow tells us, moved to 'a common hostelry, called of the sign Our Lady Inne, not far from Clement's Inne, and which they hold by the name of the New Inn, paying therefor £6 rent, for more cannot be gotten of them, and much less will they be put from it.' (See [40](#).)

This 'New Inn,' which lay west of Clement's Inn, in Wych Street, has also disappeared. Here Sir Thomas More studied prior to his being admitted to Lincoln's Inn.

Next to Serjeants' Inn in Chancery Lane, and adjoining the garden of Clifford's Inn, stood the House of the Converted Jews, founded by Henry III., in place of a Jew's house forfeited to him (1233).

There were gathered a great number of converted Jews and Infidels, who were 'ordayned and appointed, under an honest rule of life, sufficient maintenance,' and who lived under a learned Christian appointed to govern them. As was the case, however, with the similar House of Converts founded by Henry at Oxford, when all Jews were banished from the Kingdom in 1290, the number of converts naturally decayed, and the House was accordingly annexed by Patent to William Burstall, Clerk, Custos Rotulorum, or Keeper of the Rolls of the Chancery, in 1377. 'This first Maister of the Rolles was sworne in Westminster Hall at the Table of Marble Stone; since the which time, that house hath beene commonly called the Rolles in Chancerie Lane.' So the invaluable Stow, who adds that Jewish converts continued none the less to be relieved there.

Henry III. also built for his Converts 'a fair Church,' afterwards 'used and called the Chapel for the custody of Rolls and Records of Chancerie.' The fabric of Rolls Chapel, after being frequently rebuilt, had ceased to have any merit. It was demolished when the recent additions to the Record Office were made (1895), and when to the vast Gothic Tower, designed by Pennethorne, the section facing Chancery Lane was added. This building, in spite of its feeble minarets and decadent, nondescript ornamentation, often, by virtue of its mass and handsome material, looks extremely effective, especially when London sun, shining through London mist, dimly suffuses its pearly domes with delicate pinks and yellows.

Upon the site of Rolls Chapel a Museum of equal size has been built, which the present Deputy Keeper of the Records, Sir Henry Maxwell Lyte, has made so interesting a feature of our National Archives. In this Museum of the Public Record Office, three large monuments, once in the Rolls Chapel, have been re-erected, two of them in their former positions. They are of great interest and beauty. Chief among them is the Tomb of Dr. Young, who was Dean of York and Master of the Rolls (died 1516). This beautiful terra-cotta monument is ascribed to Torrigiano, who made the splendid tomb in Henry VII.'s Chapel. Here, too, are the monuments, in alabaster, of Sir Richard Allington (died 1561), and of Edward Bruce, Lord Kinlosse, Master of the Rolls, who died in 1611.

Amongst other Masters who were buried in Rolls Chapel, Pennant mentions Sir John Strange, but without the quibbling line—

‘Here lies an honest lawyer, that is Strange.’

Bishop Butler’s ‘Sermons at the Rolls’ and the fame of Bishop Atterbury and Bishop Burnet keep alive the memory of the office of ‘Preacher at the Rolls,’ an office held also by the late Dr. Brewer, whose name is famous in the annals of historical research. As to Bishop Burnet, the story runs that, in 1684, he preached here upon the text, ‘Save me from the lion’s mouth, for Thou hast heard me from the horns of the unicorns’ (Ps. xxii. 21), and was promptly dismissed for a sermon supposed to be levelled at the Royal Arms.

Seven panels of heraldic glass have been transferred from the old Chapel to the new windows of the Museum, and some fragments of a fine chancel arch of the thirteenth century, found in the East wall, are there preserved. In the Museum a series of Documents of historical interest are exhibited, ranging from Domesday Book to the Coronation Roll of Queen Victoria. One of the most interesting, perhaps, of the many autographs is the suggestive signature of Guy Fawkes before and after he had been examined by torture.^[78]

In view of the origin of this House of the Rolls, it is interesting to note that Jews began to be admitted to the Bar at the beginning of last century. In 1833 Mr. (afterwards Sir) Francis



CLIFFORD'S INN

SHOWING the gloomy little Hall reconstructed in 1797 (see [p. 178](#)), a corner of the shady garden, and the fretted lantern of St. Dunstan's Church in Fleet Street.

Goldsmid was 'called' at Lincoln's Inn, and Sir George Jessel in 1847. The latter, in 1873, succeeded Lord Romilly as Master of the Rolls, and Keeper of those Records which are stored upon the site of the House founded for the maintenance of converted Jews and Infidels.

CHAPTER IX

THE SERJEANTS AND SERJEANTS' INNS

LIKE so much of the history of the Lawyers and their Inns, the origin of the Serjeants and the steps by which they obtained a monopoly of pleading are buried in obscurity. It is, at any rate, certain that the Serjeants-at-Law, or *Servientes ad legem*, early acquired the exclusive right of audience in the Court of Common Pleas, wherein were determined all matters between subject and subject, where the King was not a party.

The Serjeants-at-Law had secured a monopoly of pleading; but, as business increased in the Courts, they found themselves unable to deal with it. In 1292, therefore, they were empowered, by an ordinance of Edward I., to select from the students and apprentices of the Common Law some of those best qualified to transact affairs in the King's Courts (*cf.* p. 6). It is not clear who these students and apprentices were, but they were destined in the course of time to supersede the body of Counsel whom they were called in to aid.

'Apprentice' is a term that smacks of the Guild, and though in the fifteenth century it came to be applied to the Serjeants themselves, it must originally have denoted the students who sat at the feet of some recognized teacher of the Law. But, in truth, we have not enough evidence to enable us to trace the developments of the relationship between the Serjeants, the Students, and the Inns. The fact that the Serjeants, or Doctors of Law, upon attaining that degree, entirely severed their connection with their Inns, and that it was the Masters, and not they, who formed the governing bodies of the Inns, may be significant of some early difference or antagonism between the original Serjeants-and Apprentices-at-Law.

The custom of tolling a newly-elected Serjeant out of Lincoln's Inn by ringing the chapel bell—'a half-humorous, half-serious reminder that hence-forward he was dead to the Society'—may be considered to support this view.^[79]

The obscurity of this question is enhanced, not only by the lack of documentary evidence, but also by the fact that the technical terms of the

profession had no stationary significance. *Apprenticii ad legem* was a fluid phrase; it came to be applied to the genuine junior apprentices of the law in the Inns of Chancery, to the senior students who instructed them, as well as to those who had completed the eight years' curriculum of the University, and, having passed their examinations, were admitted to practise as advocates in Court, to the very Serjeants and Judges themselves.

We have seen how the topography of the Inns of Court—and of London itself—is bound up with the history of the Crusades and the Order of Templars who sprang from them. It is supposed that the Order of Serjeants, these Professors of the Common Law, who acquired the exclusive privilege of practising in the Court of Common Pleas, imitated the second degree of the Old Templars, and derived their name from the 'free serving brethren' of the Order of the Temple. The word Serjeant is said to translate the Latin *Servientes*, and the King's Servants-at-Law, *Servientes domini Regis ad legem*, were, it is suggested, the lineal descendants of the *fratres servientes*, the servant brethren, of the Knights Templars. The peculiar dress of the 'Order of the Coif' is advanced as an argument in support of this fascinating pedigree. The Serjeants-at-Law marked their rank, it is suggested, by wearing red caps, under which, as in the East, a linen cap, or coif, was worn. Did the Templars bring this habit from the East, and were their first 'servants' Mohammedan prisoners? At any rate, the coif proper was a kind of white hood made of lawn (later of silk), which completely covered the head like a wig, and whilst the later black patch represented the cornered cap worn over it, the true vestigial representative of the coif is to be found in the white border of the lawyer's wig.^[80] A connection may be traced between the white linen thrown over the head of a Serjeant on his creation and the white mantle in which the novice was clothed when, in the Chapel of St. Anne, he was initiated into the Order of the Knights Templars, and declared a free, equal, elected and admitted brother.

In this connection it is at least noteworthy that the Serjeants had a cult for St. Thomas of Acre (Thomas à Becket), and that in the Chapel of their patron Saint, adjoining the Old Hall of the Temple, they used to pray before going to St. Paul's to select their pillars. The Knights of St. Thomas in Palestine were placed at Acre under the Templars in the Holy Land, and a Chapel dedicated to St. Thomas of Acre was built for them. Can it be that the Serjeants trace from the subservient Order of the Knights of St. Thomas?

There is some trace of an ecclesiastical origin, not only in their ‘long, priest-like robes,’ which Fortescue describes, ‘with a cape, furred with white lamb about their shoulders, and thereupon a hood with two labels,’ but also in their performance of a rite, which none but priests might offer, in a solemn ceremony that lasted down to the Reformation. When feasts were held in the Temple Hall, the Serjeants, in the middle of the feast, went to the Chapel of St. Thomas of Acre in Cheapside, built by Thomas à Becket’s sister after his canonization, and there offered; and then to St. Paul’s, where they offered at St. Erkenwald’s shrine; then into the body of the Church. Here they were appointed to their pillars by the Steward of the feast, to which they then returned.

The theory has, indeed, been advanced that the coif was a device for covering the tonsure of ecclesiastical pleaders after clerics had been forbidden to practise in the secular Courts. But this explanation seems too ingenious.

The ceremony of choosing a pillar at St. Paul’s, referred to above, points to the ancient practice of the Lawyers taking each his station at one of the pillars in the Cathedral, and there waiting for clients. ‘The legal sage stood, it is said, with pen in hand, and dexterously noted down the particulars of every man’s case on his knee.’^[81]

It long remained the custom of the Law-Courts to adjourn at noon. Then the Serjeants would repair to the ‘Parvis,’ or porch, of St. Paul’s to meet their clients in consultation. And this practice is alluded to by Chaucer:

‘A serjeant of the law ware and wise,
That often had y been at the “Parvise,”
There was also, full rich of excellence.
Discreet he was, and of great reverence;
He seemed such, his words were so wise.
Justice he was full often in assize,
By patent and by pleine commissioun.’
‘Prologue,’ *Canterbury Tales*.

Whatever the exact history of their lineage, the trained lawyers who were summoned to attend and advise the King in Council did, undoubtedly, become a recognized Order, styled *Servientes Regis ad Legem*—King’s Serjeants-at-Law. From their ranks the Judges were always supposed to be chosen. The old formula at Westminster, when a new Serjeant approached the Judges, was, ‘I think I see a brother.’ Down to the time of the abolition

of the Order, a lawyer, when nominated a Judge, first had to get himself admitted a Serjeant, and to enter the Order of the Coif. This was always an expensive step.

Fortescue enlarges upon the cost which attended the ceremonies, when one of the persons 'pitched upon by the Lord Chief Justice with the advice and consent of all the Judges' was summoned in virtue of the King's Writ to take upon him the state and degree of a Serjeant-at-Law.

His own bill for the gold rings he was obliged to present—*fidei symbolo*—on such an occasion to the Princes, Dukes, Archbishops and Judges who were present at the 'sumptuous feast, like that at a Coronation, lasting seven days, which the new-created Serjeants were called upon to give,' amounted to £50. There is record of a Serjeants' Feast held in the Inner Temple, 1555, which cost over £660. These feasts were held at first at Ely Place, Lambeth Palace, or St. John's Priory at Clerkenwell. Afterwards they took place in the Hall of the Inn of which the new Serjeant had been a Student. The whole House contributed to the expense of this degree. The elaborate ceremonies which attended the creation of a new Serjeant-at-Law are given at length by Dugdale (chapter xli. *et seq.*). It would be out of place to recount them here.

It has been humorously, though not quite accurately, observed that the Bar 'went into mourning for Queen Anne, and has remained in mourning ever since.' The sombre robes now worn by the English Bar may well be thought to symbolize the dignity of the law and the gravity of the profession, as the 'spotless ermine' typifies the integrity and independence of the Judges. But, as was the case with the hoods and gowns of other degrees in other Universities, or the black *felze* of a gondola at Venice, brilliancy and splendour of colour was the original note, and dulness was the result of restriction. The robes which the Serjeants wore varied from time to time, and with different occasions.

In the seventeenth century Dugdale observes that their robes still in some degree resembled 'those of the Justices of either Bench, and were of murrey, black furred with white, and scarlet. But the robe which they usually wear at their Creation only is of murrey and mouse-colour,' with a suitable hood and the coif.

Arrangements were made about 1635 between the Judges and Serjeants, in accordance with which gowns of black cloth were to be worn for term-

time; violet cloth for Court or holidays; scarlet in procession to St. Paul's, or when dining in state at the Guildhall or attending the Sovereign's presence at the House of Lords, and black silk for trials at *Nisi Prius*. But the fashions and colours were always changing. The violet gown, which superseded the mustard and murrey worn in Court during term-time, gave occasion for Jekyll's witty rhyme, when a dull Serjeant was wearying the Court with a prosy argument:

‘The Serjeants are a grateful race;
Their dress and language show it;
Their purple robes from Tyre we trace;
Their arguments go to it.’

It was the militant Chief Justice Willes who, ten years after the '45, first endeavoured to secure the abolition of the exclusive right of the Serjeants to practise in the Court of Common Pleas. But their hour had not yet come. In 1834 a mandate was obtained from William IV. abolishing the privilege of the Serjeants, but this was set aside by the Privy Council as being defective in form. At length doom fell upon the old Order of the Coif, in the shape of an Act of Parliament, 1846, which threw open the Common Pleas to all counsel indiscriminately. The last Queen's Serjeants to be appointed were Serjeants Byles, Channel, Shee, and Wrangham, in 1857. By the Judicature Act of 1873, which consolidated the three Courts of Law at Westminster (See Chapter I.) into the High Court of Justice, the Judges were no longer required to receive the coif on their nomination to the bench. The knell of the Serjeants' doom had now rung. Five years later their Inn in Chancery Lane and the Brotherhood were dissolved.

When the mere pillars of St. Paul's had ceased to be regarded as satisfactory 'chambers,' the Serjeants, like the law-apprentices, took possession of Inns for the purposes of practice and residence. These Inns remained independent bodies, and never became, like the Inns of Chancery, subject to the Inns of Court.

Scrope's Inn, adjoining the Palace of the Bishops of Ely, and opposite the Church of St. Andrew in Holborn, was the first abode of the Serjeants. Its site was long marked by Scrope's Court in Holborn. It took its name from the Le Scropes, who rose to eminence under Edward I. Two brothers, Sir Henry and Sir Geoffrey, both became Chief Justice of King's Bench, in 1317 and 1324 respectively. Richard Le Scrope, son of the former, was created Baron Scrope of Bolton, and was twice Chancellor of England. He died in 1403, whilst in residence at his Inn. Scrope's Inn would thus naturally be a centre round which the trained professors of the law would congregate, as round Lincoln's Inn and Grey's Inn, to help in the transaction of the business of the Justice of King's Bench. It then became an Inn for Judges and Serjeants-at-Law, and so continued until, in 1498, it was abandoned. For the lawyers were concentrating upon the southern end of

Chancellor's Lane and Fleet Street. The Serjeants took up their residence in Serjeants' Inn (Fleet Street) at least as early as the reign of Henry VI., and probably much earlier (Dugdale). This Inn is connected with the Inner Temple by a passage past the little garden once in the possession of Sir Edward Coke, and afterwards known as the 'Bencher's' Garden.' But the principal entrance is from Fleet Street, through a pair of handsome iron gates, in which are wrought the arms of the Inn, a dove and a serpent.

The Gate House forms the offices of the Norwich Union Fire and Life Assurance Society. The whole Inn was burnt down in the Great Fire, and was afterwards rebuilt (1670) by means of voluntary subscriptions on the part of the Serjeants. But upon the expiration of the lease then granted to them, the Serjeants abandoned their Inn, with its fine chapel, hall, and houses that surrounded the Court, and united with their brethren in Chancery Lane. The Inn was afterwards pulled down and rebuilt from the designs of Adam, the architect of the Adelphi, for private houses and Assurance offices. The 'elegant building,' as Herbert calls it, in the classical style, which was erected on the site of the old Hall, formed at first the offices of the Amicable Assurance Company, and is now occupied by the Church of England Sunday School Institute. The quiet quadrangle is surrounded by pleasing eighteenth-century houses, with decorated porches and fine iron-work. Some of them have extinguishers for the links in front of their porches. Loftie noted the initials "S. I." and the date 1669 upon one survivor of the Serjeants' rebuilding.

The Inn, which the Serjeants joined when they left Fleet Street, had been occupied by their brethren since the end of the fourteenth century. But, though leased to their representatives by the Bishops of Ely, who held the freehold, or their lessees, it was not called Serjeants' Inn until 1484. Prior to that date it was known as Faryngdon's Inn in Chancellor's Lane. Here all the Judges, as having been Serjeants-at-Law before their elevation to the Bench, had chambers assigned to them.

A plain, unpleasing, stuccoed, Early Victorian building now faces Chancery Lane, and drops as a screen of ugliness across the old brick buildings within. This we owe to Sir Robert Smirke, who rebuilt the Inn (1837-1838), with the exception of the old Hall, which was 'approached by a handsome flight of stone steps and balustrade.' So Herbert, who says that in his day (1804) all the buildings were modern. He describes the Inn as then consisting of two small Courts, the principal entrance from Chancery

Lane fronting the Hall, and the second Court communicating with Clifford's Inn by a small passage. As there is an exit from Clifford's Inn to Fetter Lane, it is thus possible to pass from Chancery Lane to Fetter^[82] Lane without going into Fleet Street. When, in 1877, the Brotherhood of Serjeants dissolved, they sold the Inn for some £60,000 to Serjeant Cox, and divided the proceeds, but gave the twenty-six valuable portraits of their predecessors, that had adorned the walls of the Hall, to the National Portrait Gallery. The tiny Hall, the single, narrow Court of plain stuccoed houses, and some trees and turf behind some railings, remain to remind us of the Serjeants' Inn and the Serjeants' Garden, where Lord Keeper Guildford would take his ease, and where the great roll of English Judges have had chambers. But the beautiful old stained glass windows of the Hall and Chapel, which bore the arms of the various members, together with the heraldic device of the Order—an ibis *proper* on a shield *or*—were removed by the purchaser to his residence of Millhill, where he built a chamber, the facsimile of the Hall, for their reception.

Such is the story of the Inns of Court, which have gone on from strength to strength, and of the Inns of Chancery and the Serjeants' Inns, which have almost vanished, together with the Societies which made them famous, from off the changing face of London. It is a story which, though briefly told, and told by a layman who makes no claim to originality of material, can hardly fail to be of interest to those who are alive to the charm of the old things of the Capital.

It brings before us, not only the vision of the great Justiciars who transacted the business of the King's Courts, of the great Lawyers who built up the mighty fabric of English Law, and the great Judges who defended the rights and liberties and progress of the people, but also many of the greatest names in literature and architecture. The precincts of the Temple remind us of the Order of the Red-Cross Knights, and near at hand are the vacated Inns of that other Order which has been likewise dissolved. For we see no more, save in the light of imagination, either the mail-clad figures of the Templars in their white cloaks stamped with the red cross, or the Serjeants in their white lawn coifs and parti-coloured gowns, wending their way from the Temple Hall to the shrine of St. Thomas.

The silver tongue of Harcourt is mute as the impassioned eloquence of Burke and Sheridan, yet these buildings seem to echo with their voices, with the sonorous declamation of Dr. Johnson, or the witty stammer of

Charles Lamb. There, in Gray's Inn, we still seem to see the figure of Francis Bacon, pacing the walks with Raleigh, talking of trees and politics and high adventure; from the Gateway of Lincoln's Inn, and past the red bricks laid by Ben Jonson, when Wolsey was Cardinal, the form of Sir Thomas More emerges; and across the way the thin, alert figure of Sir Edward Coke steps briskly from his tiny garden into Old Serjeants' Inn.

Here Dickens talks with Thackeray, and Blackstone scowls at Goldsmith; there, in the Middle Temple Hall, Queen Elizabeth leads the dance with Sir Christopher Hatton, and the rafters ring with the music of Shakespeare's voice and Shakespeare's poetry. And the buildings themselves are the works of a noble army of English Architects, admirable creations and memorials of the genius of Sir Christopher Wren, Inigo Jones, Adam, Hardwick, Street, and of the unknown builders of Norman, Gothic, and Elizabethan things. These facts once known, not all the dirt and fog of London air, not all the noise and distraction of City business and legal affairs, can ever again wholly obscure the charm, the romance, the historical and literary associations, which haunt these homes of so many great English Lawyers, Writers, and Administrators.

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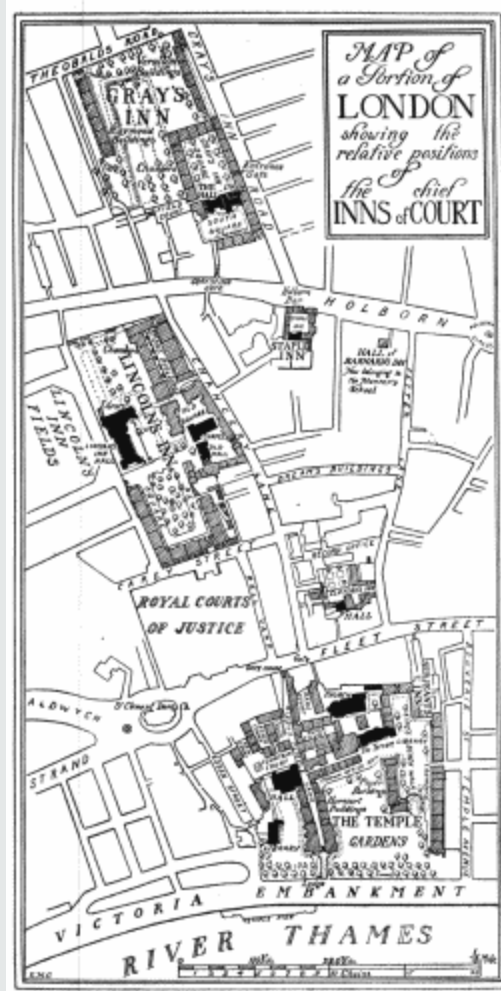
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THE END



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FOOTNOTES:

- [1] 'Survey of London.'
- [2] Dugdale, 'Origines Juridicales.'
- [3] Fortescue, 'De Laudibus Legum.'
- [4] Bedwell, *Quarterly Review*, October, 1908.
- [5] Strype.
- [6] Pollock and Maitland, 'History of English Law,' vol. i., p. 102.
- [7] See my 'Story of Oxford,' chap. iv.

[8] Kelly, 'Short History of the English Bar.'

[9] 'The Glory of Generosity,' quoted by Herbert, 'Aniquities of the Inns of Court.'

[10] Kelly, p. 56.

[11] Kelly, p. 127.

[12] Bellot, 'Inner and Middle Temple,' p. 36.

[13] Dugdale.

[14] MS. cited by Addison, 'Knights Templars,' p. 348.

[15] 'History of the Temple,' pp. 64-67.

[16] See Hutchinson, 'Minutes of Parliament of Middle Temple,' vol. i., p. 12.

[17] An excellent little brochure on No. 17, Fleet Street, is published by the L.C.C., and obtainable in 'Prince Henry's Council Chamber.'

[18] The site is marked by seven large stone slabs. Outside the north door of the old Hall stood the Chapel of St. Thomas. It was connected with the Cloisters, and thereby with the Chapel of St. Anne or with the present main entrance of the Temple Church. Indications of the old cloister are traceable in the present Buttery and the ancient chamber beneath it. The walls of this chamber are of rubble and Kentish rag, and the ceiling is supported by groined arches. Its floor is on the same level as that of the ancient Church. There is an open fireplace of later date. Mr. Inderwick takes this room to have been the old "Refectory of the Priests."

[19] 'The Temple Church.'

[20] Cf. 'The Inns of Court and Chancery' (W. J. Loftie).

[21] 'Origines Juridicales.'

[22] 'Sepulchral Monuments,' vol. i., pp. 24, 50.

[23] Gough, 'Sepulchral Monuments.'

[24] Raised 2 feet in 1908, but otherwise unaltered.

[25] Can only be visited by obtaining an order. It would be gracious of the Benchers to relax this restriction.

[26] Bellot, 'Inner and Middle Temple.'

[27] Thackeray, 'Pendennis.'

[28] 'Pendennis.' Before migrating to No. 2, Brick Court, William Makepeace Thackeray lived at 10, Crown Office Row, probably sharing chambers, which have since disappeared, with Tom Taylor.

[29] 'Middle Temple Records.'

[30] 'Life of Wolsey.'

[31] Bellot, p. 269.

[32] 'English Humourists.'

[33] See Irving, 'Goldsmith.'

[34] Wheatley, 'Literary Landmarks of London.'

[35] Vol. v., p. 231.

[36] Restored 1903.

[37] 'Diary of John Manningham, of the Middle Temple.'

[38] *Quarterly Review*, October, 1908; *Green Bag*, April, 1908.

[39] Upon the seventeenth-century block, which it replaced, there used to be a sundial, which has disappeared. Perhaps its motto, 'Vestigia nulla retrorsum,' was deemed too generous a warning against entering upon the perilous paths of litigation.

[40] Dickens, 'Martin Chuzzlewit.'

[41] Those of Nos. 4 and 5 are attributed to Sir Christopher Wren.

[42] His portrait, by Van Somer, hangs in the Hall.

[43] Inderwick, 'Inner Temple Records,' vol. ii., p. lxii.

[44] Inderwick, 'Inner Temple Records,' vol. i., p. xxiv. *Cf.* p. 48, *supra*.

[45] Bellot.

[46] The last occasion of a Revel taking place in the Halls of the Inns of Court was upon the elevation of Mr. Talbot to the woolsack (1734). Then, after dinner, the Benchers all assembled in the Great Hall of the Inner Temple, and a large ring having been formed round the fireplace, the Master of the Revels took the Lord Chancellor by the hand, who with his left took Mr. Justice Page, and the other serjeants and benchers being joined together, all danced about the fireplace three times, while the ancient song, 'Round about our Coal Fire,' accompanied by music, was sung by the Comedian, Tony Aston, dressed as a barrister. This song of the House has unfortunately been lost.

[47] Bellot, 'Inner and Middle Temple,' p. 49.

[48] *Notes and Queries*, April 2, 1892.

[49] Duchy of Lancaster, Ancient Deeds, L, 137; Close Rolls, 14 Edward I., M, 2d.

[50] Quoted by Stow.

[51] Loftie, p. 53.

[52] Dugdale.

[53] 'Life of Dr. Donne,' by Izaak Walton.

[54] 'Black Book of Lincoln's Inn.'

[55] *Ibid*.

[56] Loftie.

[57] *Cf.* *Daily Telegraph*, January 4, 1909.

[58] Kelly, 'Short History of the English Bar.'

[59] Stow, vol. i., p. 11; ed. Kingsford.

[60] Douthwaite, 'Notes on Gray's Inn,' 1876.

[61] Luttrell's 'Diary,' June 10, 1684, quoted by Douthwaite.

[62] Douthwaite, p. 175.

[63] Enumerated by Douthwaite, 'Gray's Inn,' 1886, and, with plates, by Dugdale.

[64] *Cf.* Professor A. V. Dicey, in the *Nineteenth Century*, September, 1903.

[65] Spedding, 'Life and Letters of Francis Bacon.'

[66] Halliwell-Phillipps, 'Outlines of the Life of Shakespeare,' p. 104.

[67] *Op. cit.*, vol. i., p. 342.

[68] 'Master Worsley's Book'—Observations on the Constitution, etc., of the Middle Temple. Written, 1733.

[69] To commemorate the centenary of this date a bronze statue of the Philosopher is shortly to be placed in the centre of the grass plot in South Square.

[70] W. J. Broderip, *Fraser's Magazine*, 1857.

[71] *Cf. Edinburgh Review*, vol. cxxxiv., p. 488.

[72] 'Calendar of Inner Temple Records,' vol. i., p. xiii.

[73] Historical MSS. Commission, XII., part i., vol. i., p. 60.

[74] By a charter of Edward IV., 1463, the Staple of wools was set at Leadenhall.

[75] *Cf. 'Staple Inn,'* by E. Williams, F.R.G.S., p. 100.

[76] Douthwaite, p. 257.

[77] *Notes and Queries*, April 2, 1892.

[78] A full descriptive catalogue, drawn up by Sir Henry Maxwell Lyte, is obtainable at the Public Record Office.

[79] 'Black Books of Lincoln's Inn,' vol. i., p. xxxix.

[80] See Serjeant Pulling, 'The Order of the Coif.'

[81] *Notes and Queries*, April 2, 1892.

[82] Fetter Lane is said to be derived from 'Fewters,' as the abode of vagrants, cheats, and fortune-tellers.



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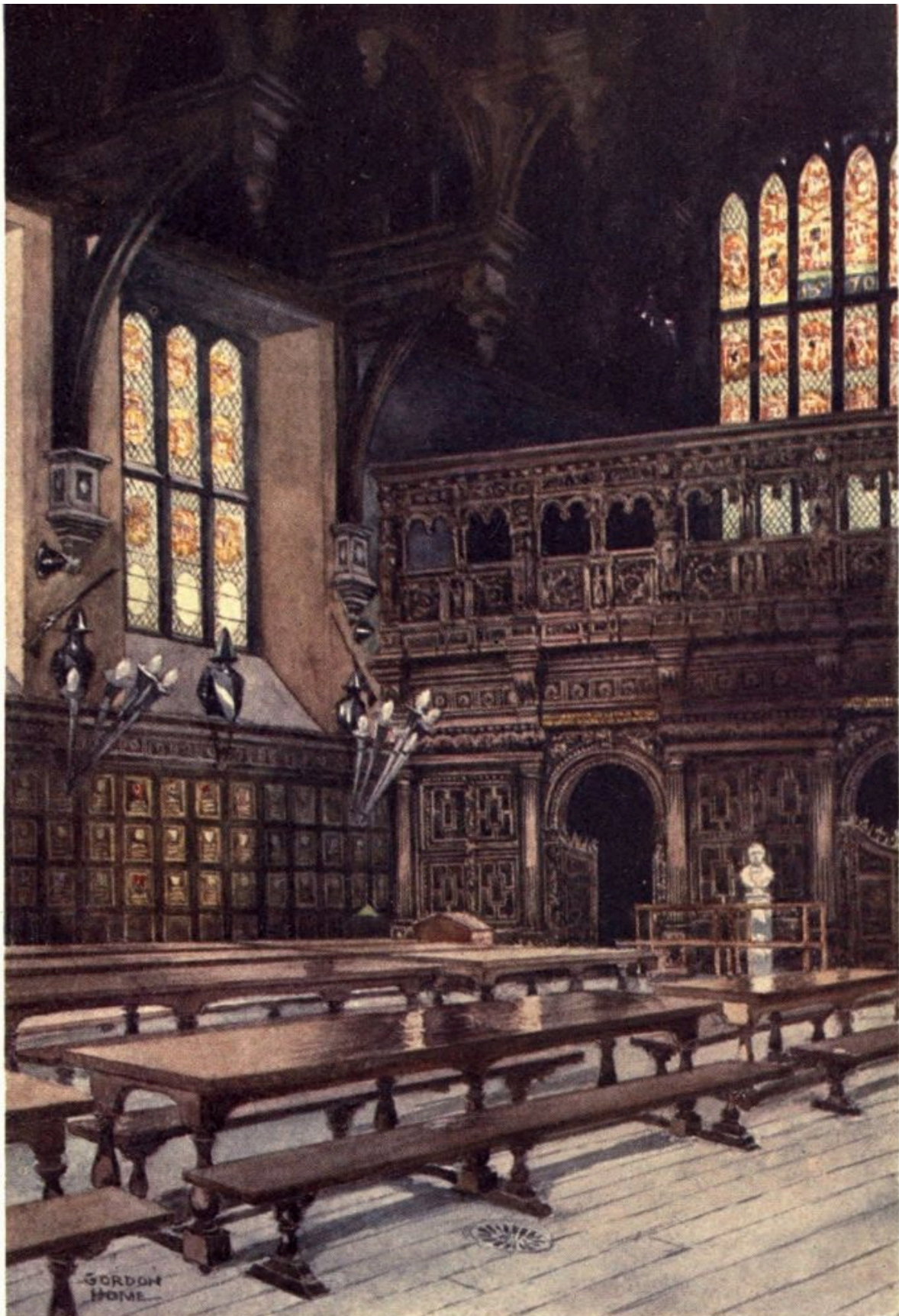


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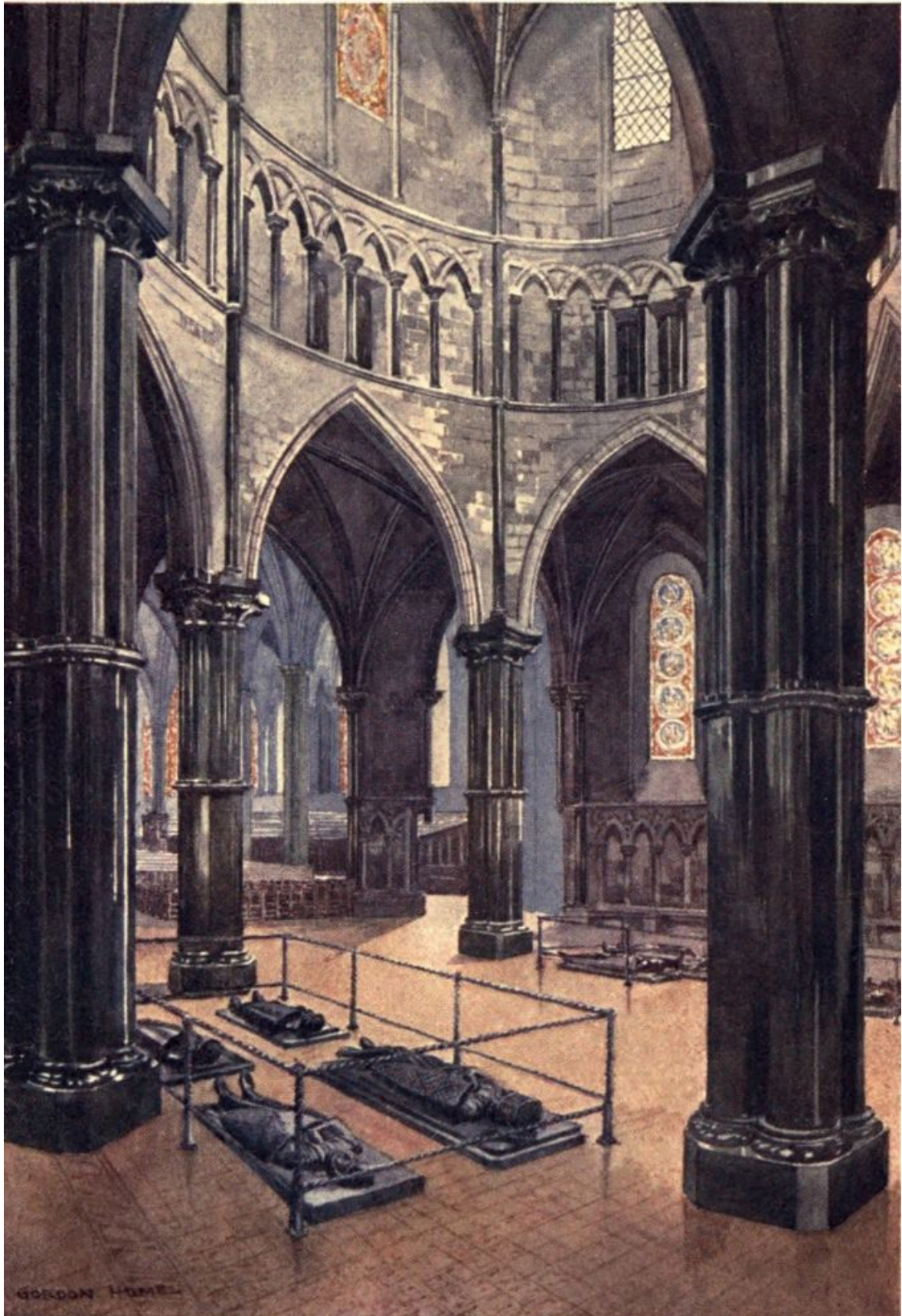
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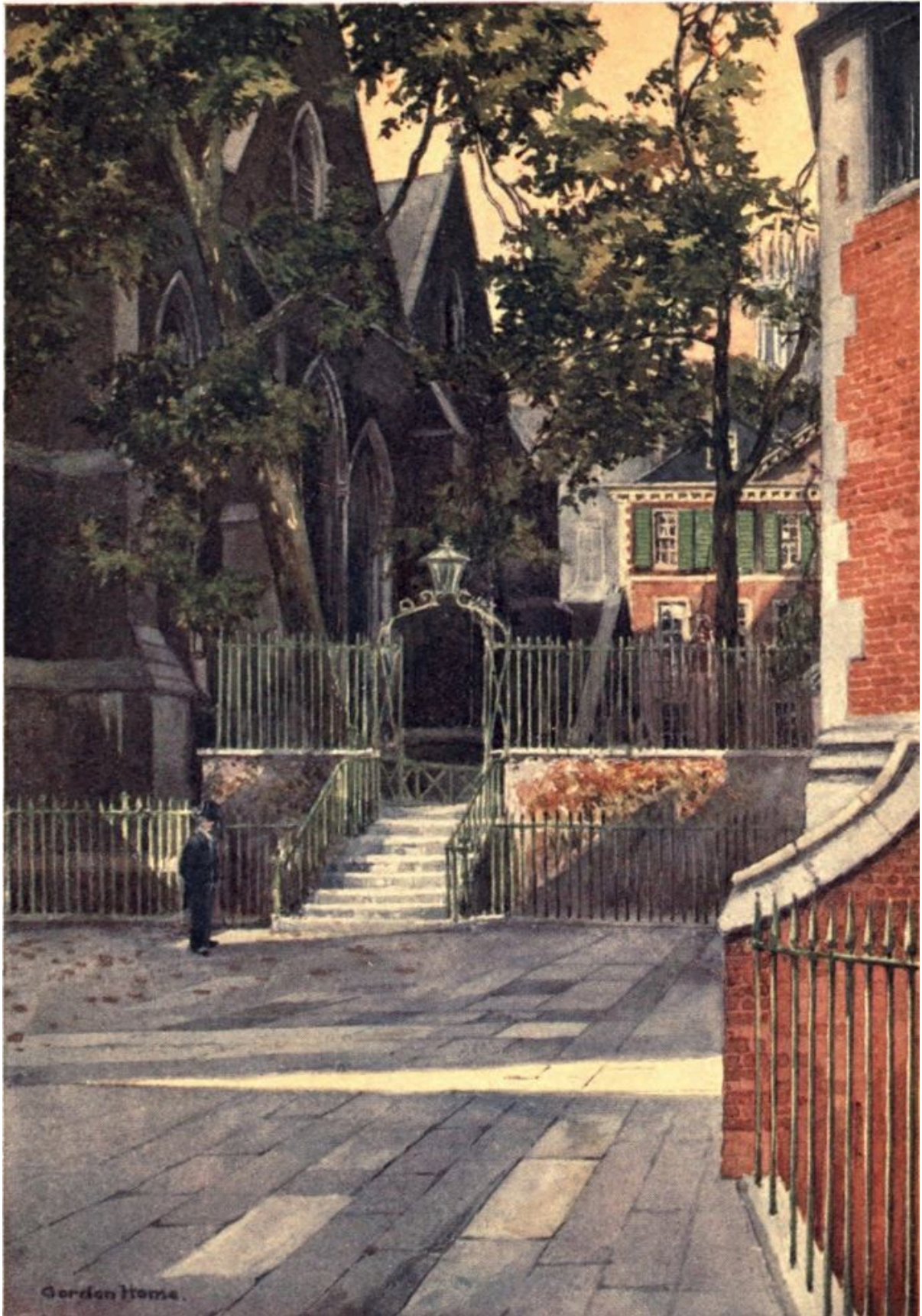


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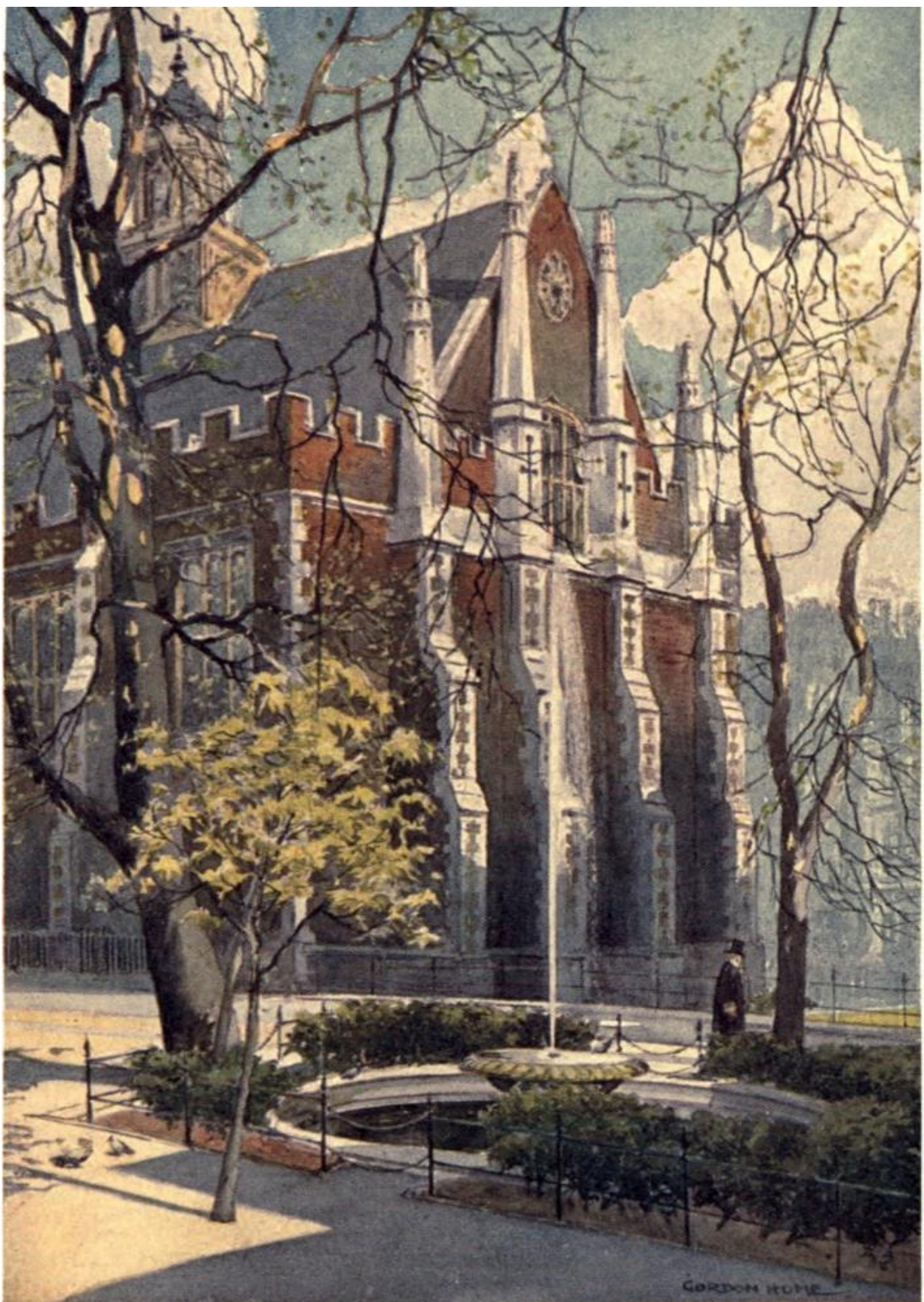
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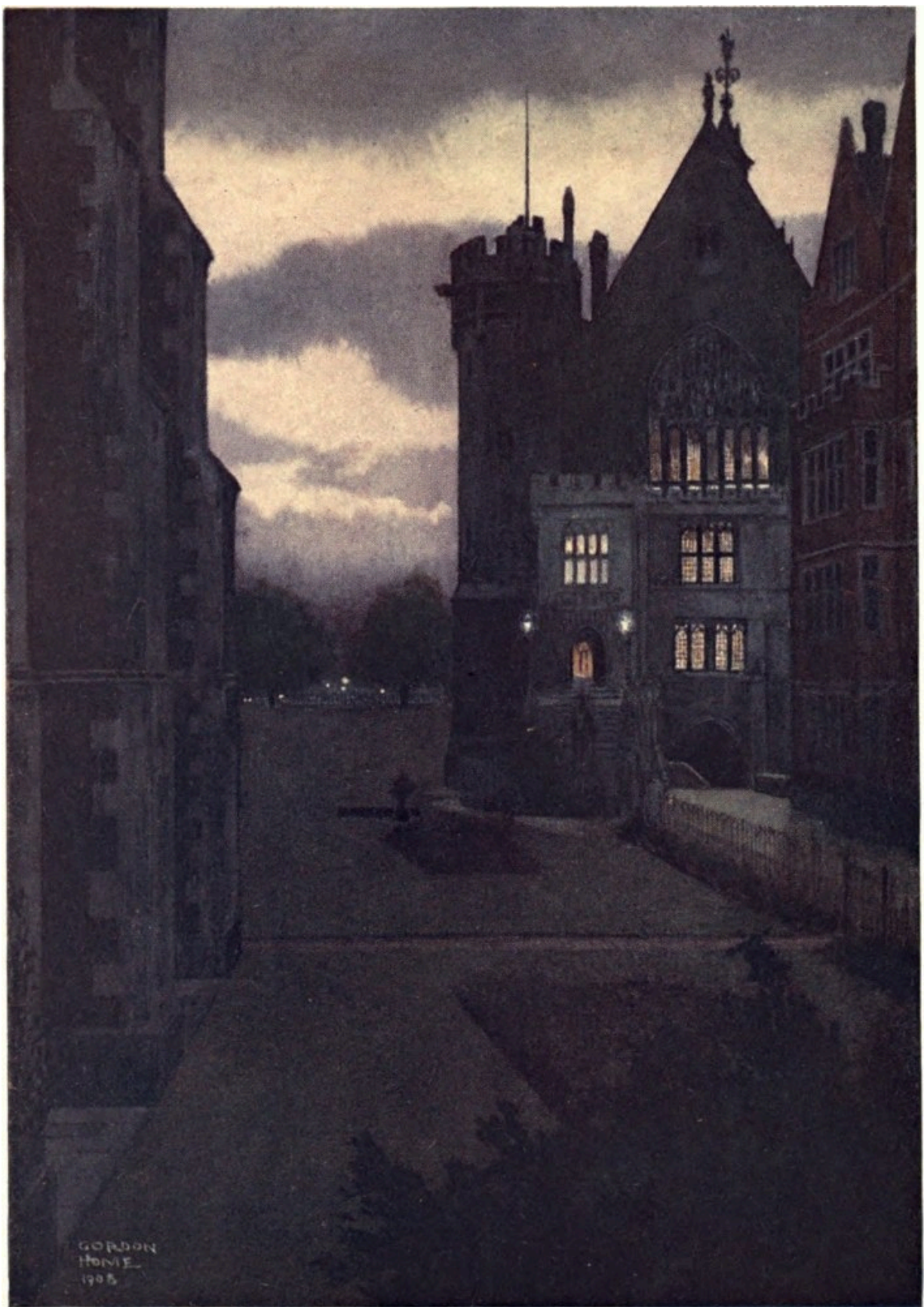


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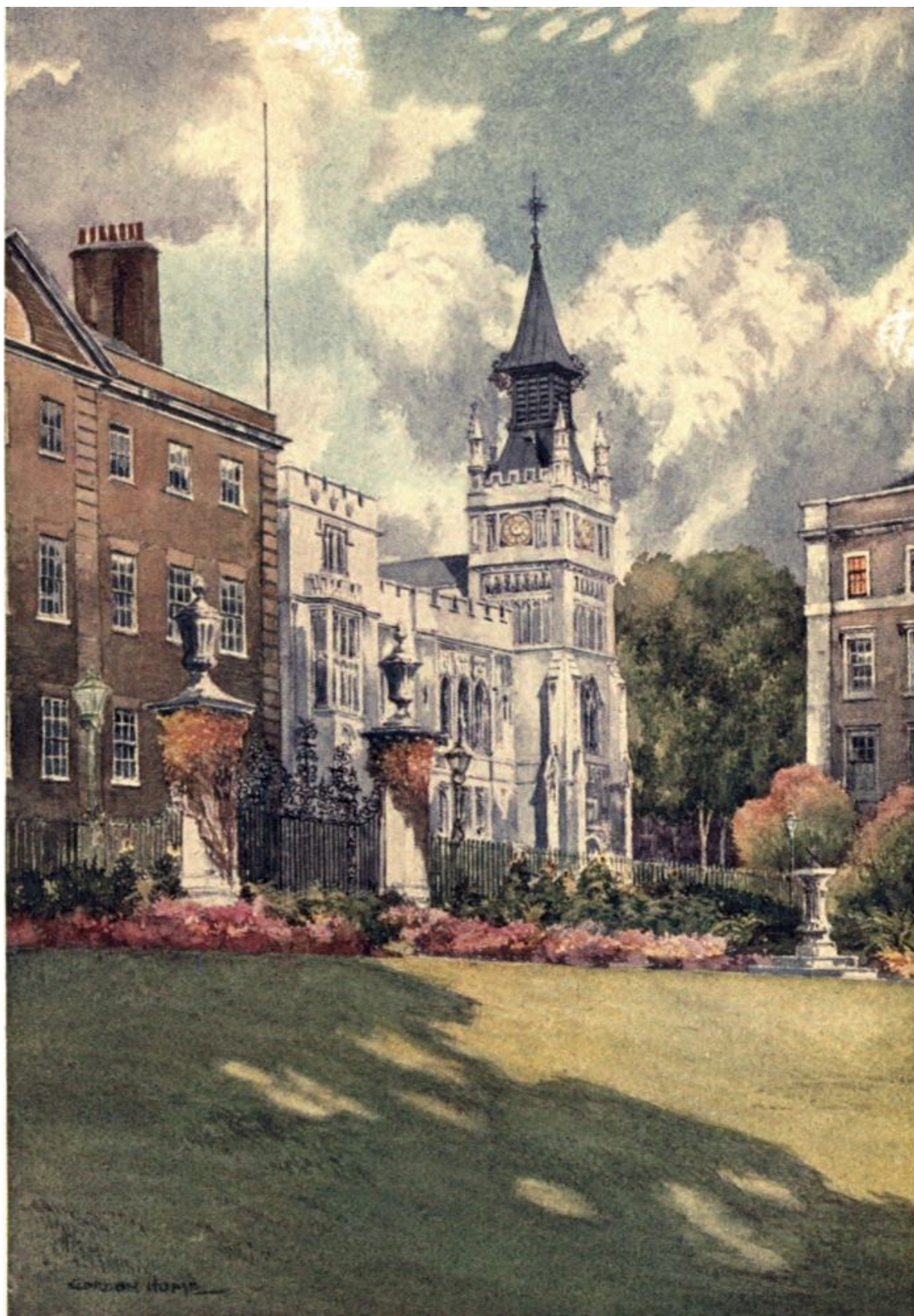
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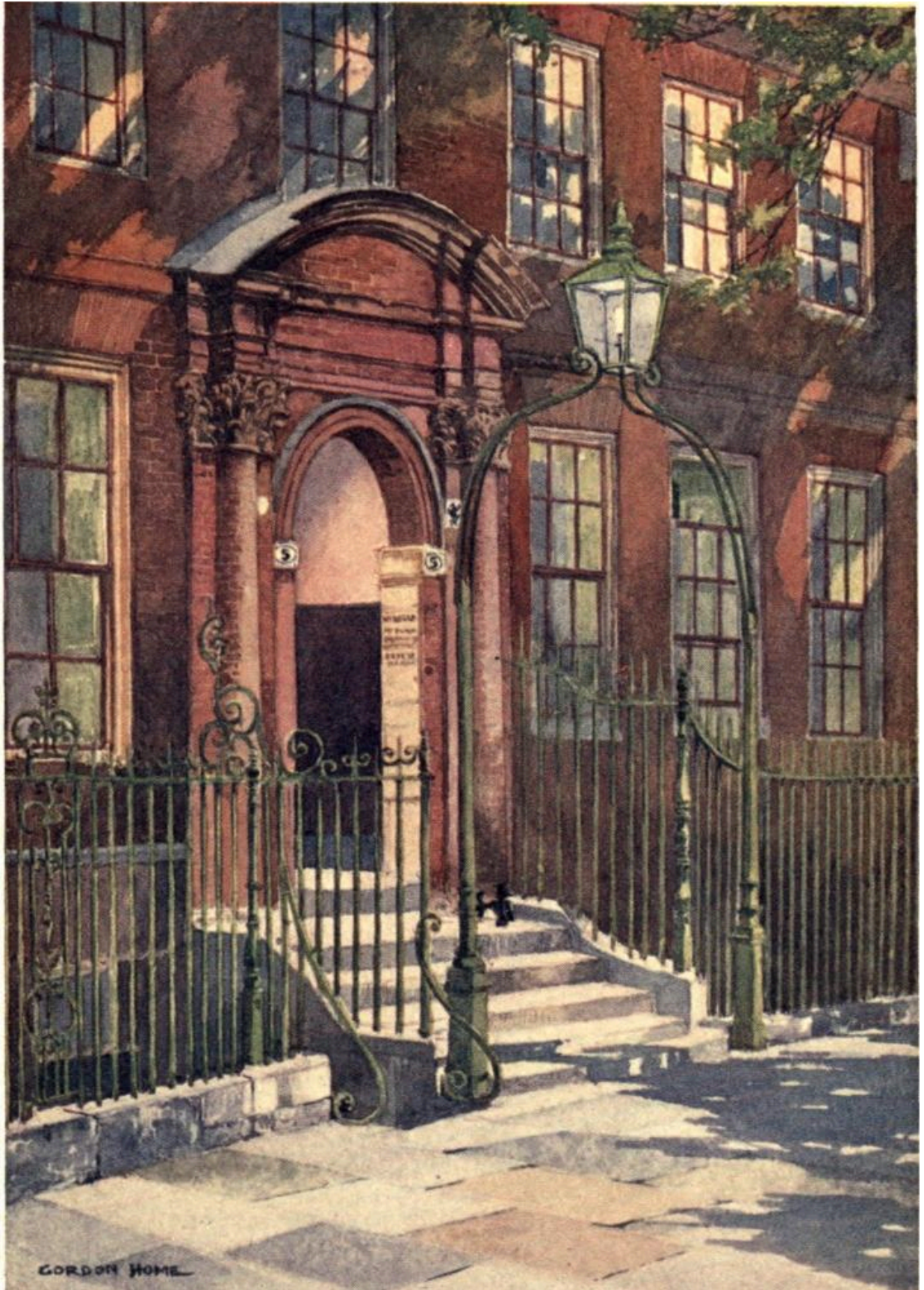


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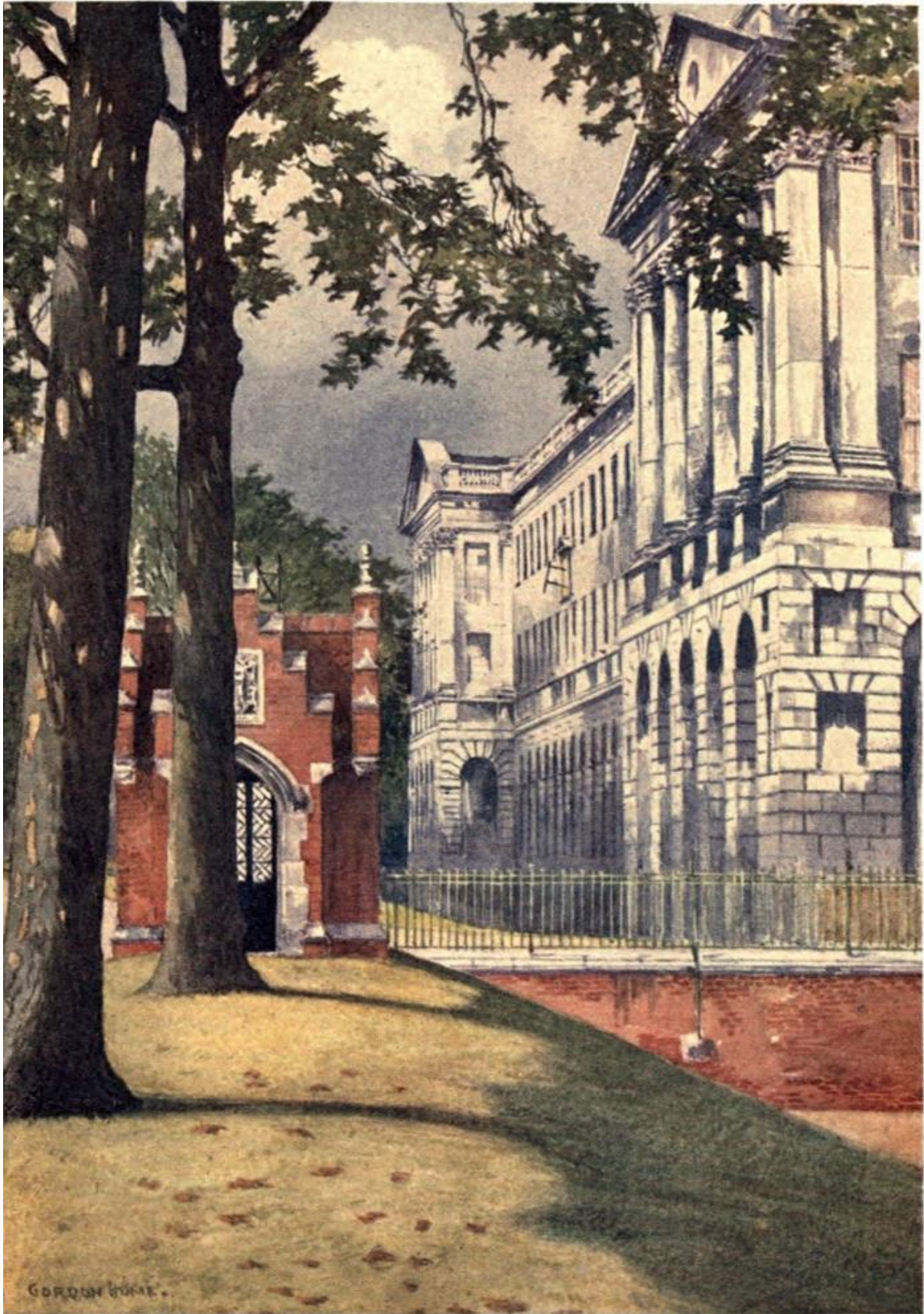
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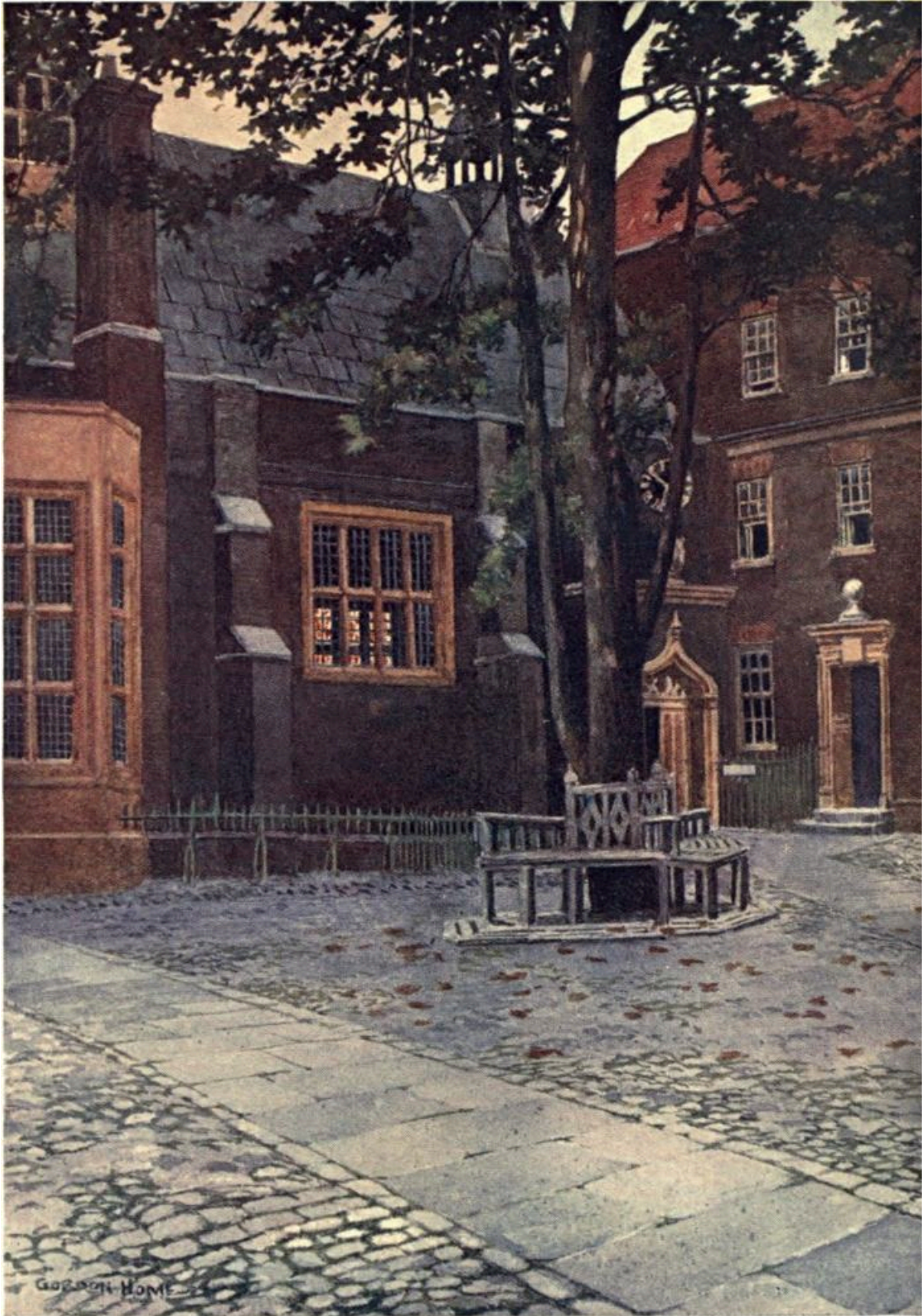
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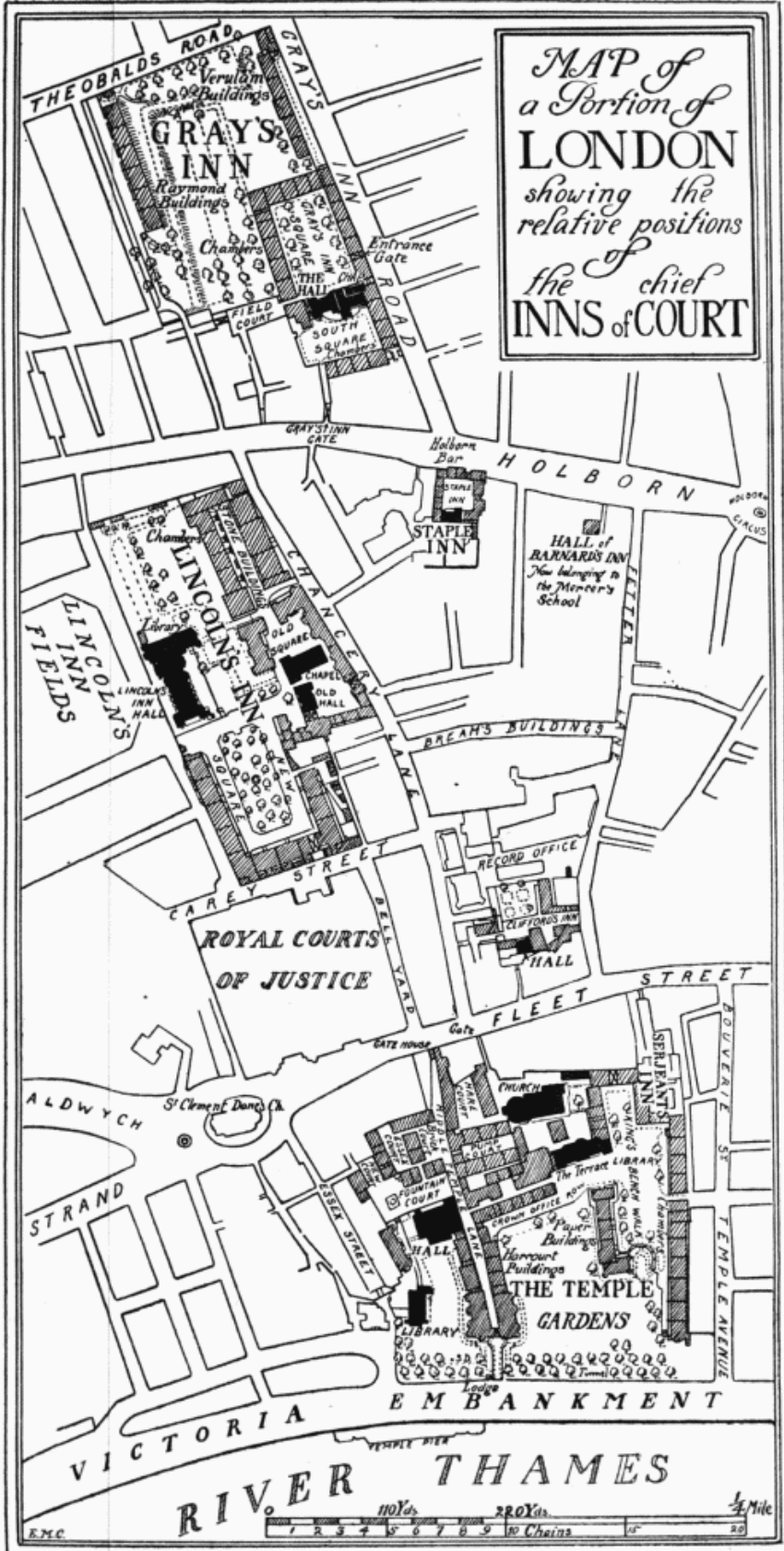


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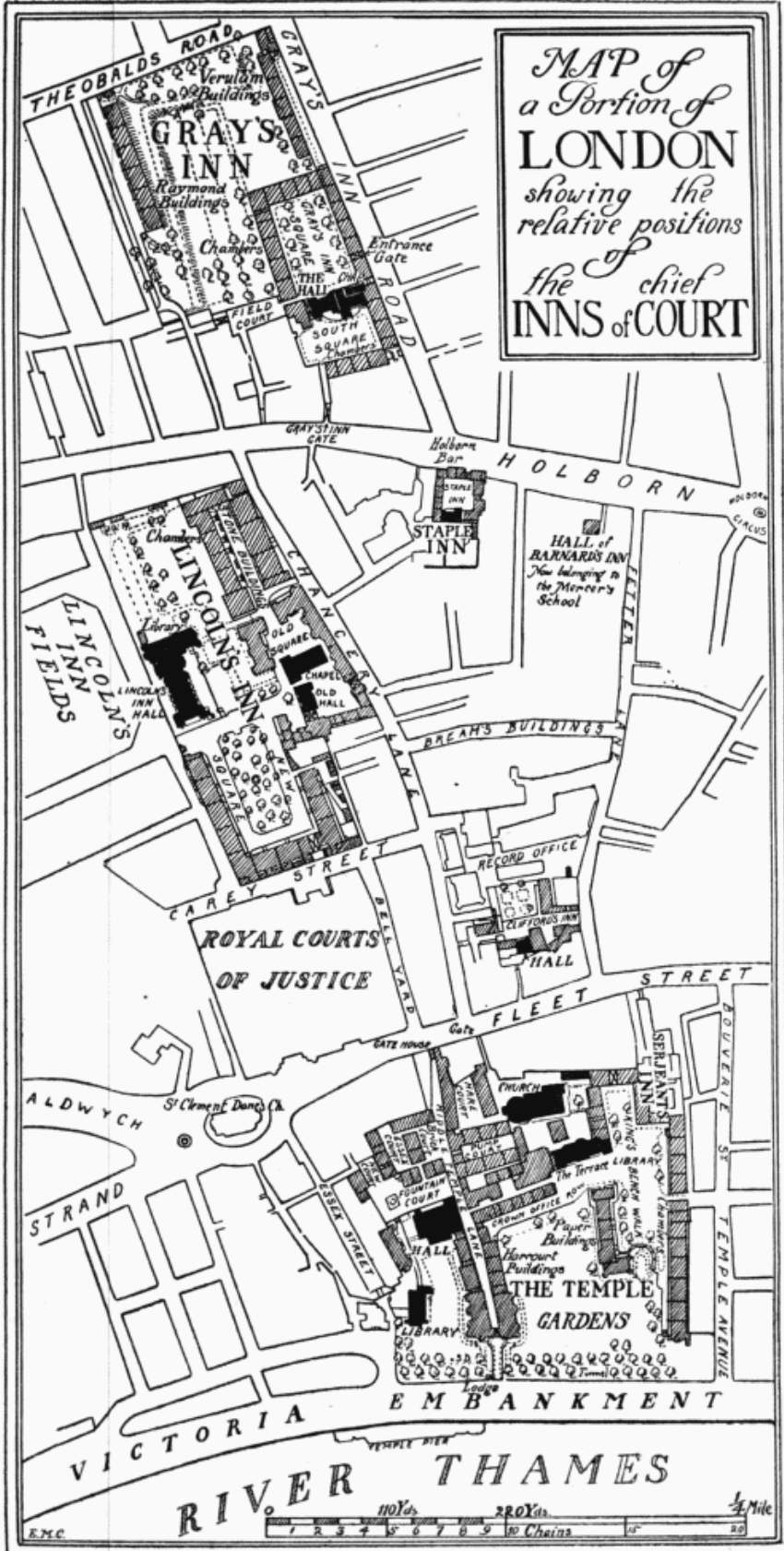
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of the chief
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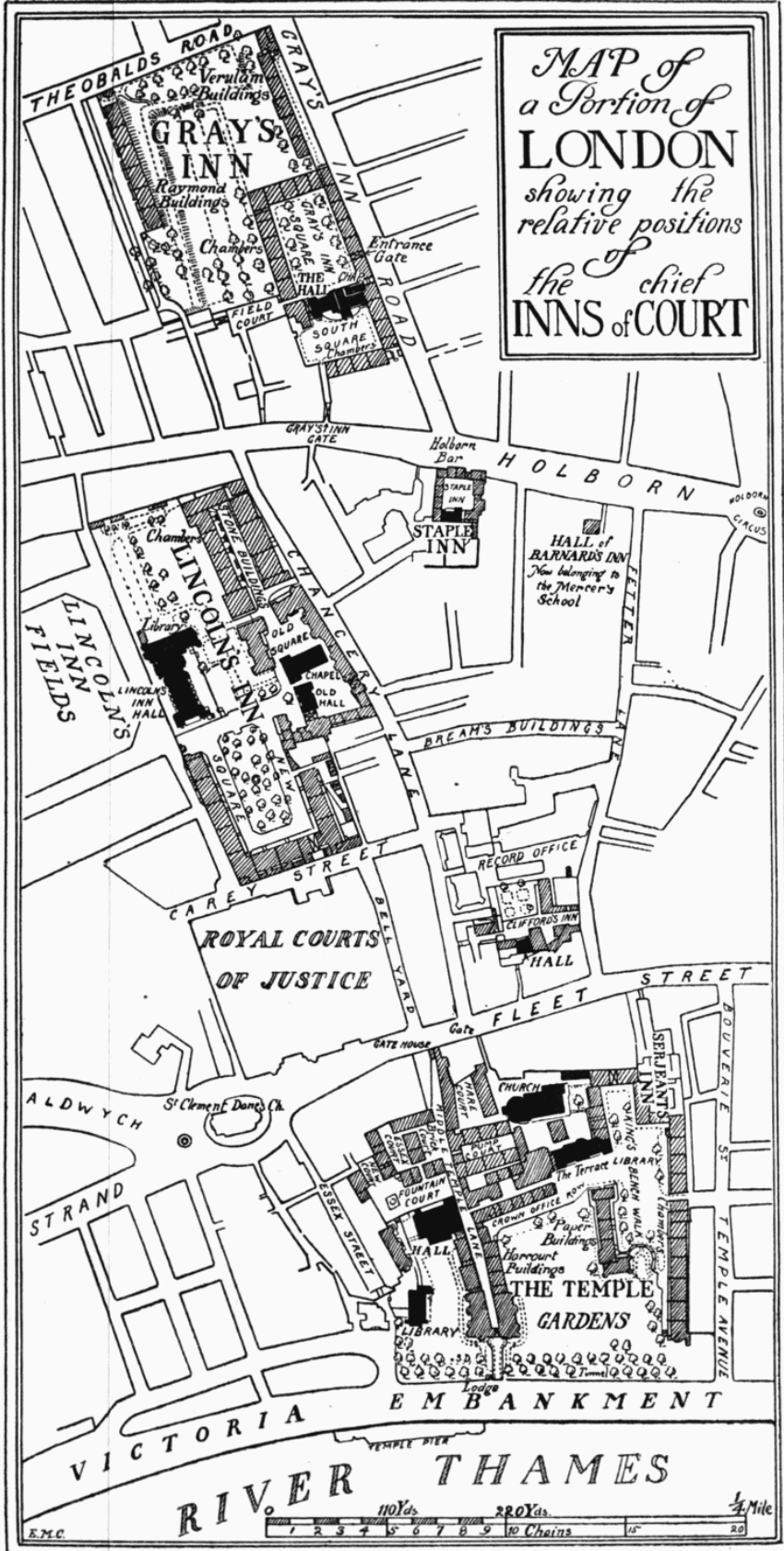
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